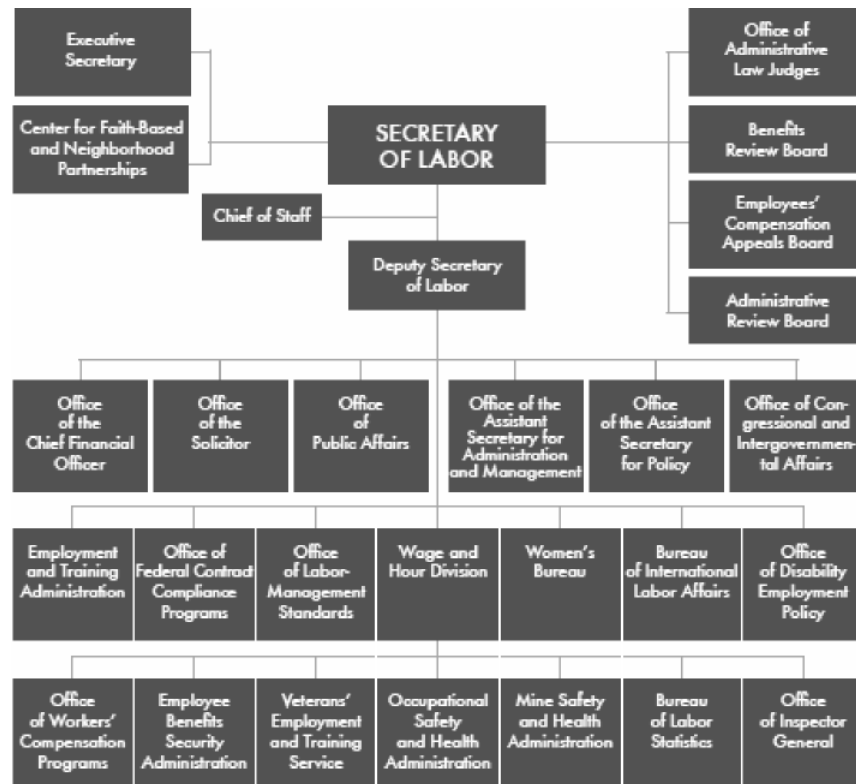


Overview

Mission, Organization, Secretary's Vision, and Goal Structure

The Department of Labor fosters and promotes the welfare of job seekers, wage earners, and retirees of the U.S. by improving their working conditions, advancing their opportunities for profitable employment, protecting their retirement and health care benefits, helping employers find workers, strengthening collective bargaining, and tracking changes in employment, prices and other national economic measures.

The Department accomplishes this mission through component agencies and offices that administer various statutes and programs. These programs are carried out through a network of regional offices and smaller field, district, and area offices, as well as through grantees and contractors. The largest program agencies, each headed by an Assistant Secretary, Commissioner, or Director, are the Employment and Training Administration (ETA), Occupational Safety and Health Administration (OSHA), Mine Safety and Health Administration (MSHA), Veterans' Employment and Training Service (VETS), Employee Benefits Security Administration (EBSA), and Bureau of Labor Statistics (BLS). The Secretary of Labor chairs the Board of Directors of the Pension Benefit Guaranty Corporation (PBGC).¹



¹PBGC – a Federal corporation created by the Employee Retirement Income Security Act of 1974 – is not included in the DOL organization chart. PBGC is included in this report because PBGC is included in the Department's performance budget. PBGC publishes an Annual Performance Report that can be found at http://www.pbgc.gov/Documents/2010_annual_report.pdf.

Performance Report Outline

The Agencies, Programs and Strategies section of this report introduces each of DOL's agencies; they are grouped by program type (employment and training, worker protection, etc.). Each narrative describes agencies, their programs, the Departmental outcome goals they support, and the strategies they are using to reach performance goals. The Priority and Strategic Goals sections present results and plans organized under the five strategic goals and fourteen outcome goals established in the FY 2011-2016 Strategic Plan. Strategic goals are general outcomes clearly linked to the Department's mission. Outcome goals articulate more specific objectives associated with one or more programs and DOL agencies. Agency performance goals outline each agency's contribution to the Department's objectives. The Department will track progress toward achieving these goals by using quantifiable performance measures.

Tables and narratives present complete results including brief analyses and summaries of independent program evaluations. Results and analyses are organized by agency; however, evaluations and audits are presented together at the end of each outcome goal section.

- Narratives explain data, summarize the analyses, and provide plans in the performance goal tables, providing important context and details as needed.
- Performance goal summary tables list each applicable agency goal, its key indicators, and applicable targets and results. Where "baseline" appears in the target cell for new indicators, no data were available for establishing a numerical target. If results improve over the prior year but do not reach the target, "I" appears in the target cell. The last three columns identify what worked, what didn't work, and what the agency plans for FY 2011 to improve results.²
- Where applicable, tables at the end of each outcome goal section summarize findings, recommendations, and actions for relevant evaluations and audits completed during the fiscal year.

² Forward-funded Workforce Investment Act (WIA) programs report performance for a Program Year (PY) that lags the Federal fiscal year by nine months. Hence, these programs are reporting on a different period (PY 2009 – July 1, 2009 to June 30, 2010).

Agencies, Programs, and Strategies

Employment and Training
Employment and Training Administration (ETA) Veterans' Employment and Training Service (VETS)
Worker Protection
Office of Federal Contract Compliance Programs (OFCCP) Occupational Safety and Health Administration (OSHA) Wage and Hour Division (WHD) Employee Benefits Security Administration (EBSA) Mine Safety and Health Administration (MSHA) Office of Labor-Management Standards (OLMS)
Policy
Women's Bureau (WB) Office of Disability Employment Policy (ODEP) Bureau of International Labor Affairs (ILAB)
Benefits
Office of Workers' Compensation Programs (OWCP) Federal-State Unemployment Insurance (UI) System (administered by ETA)
Statistics
Bureau of Labor Statistics (BLS)

In addition to these agencies and programs, the Department's mission is supported by administrative, policy, legal, public affairs, and congressional liaison offices.

Employment and Training

Employment and Training Administration (ETA)

The Employment and Training Administration provides high quality employment assistance, labor market information, and job training through the administration of the following programs: programs authorized by the Workforce Investment Act of 1998 (WIA) for adults, dislocated workers, youth (including Job Corps), and targeted populations; Trade Adjustment Assistance (TAA) authorized by the Trade Act of 1974, as amended; Employment Services authorized under the Wagner-Peyser Act; Foreign Labor Certification activities authorized by the Immigration and Nationality Act; the Senior Community Service Employment Program authorized by the Older Americans Act; Apprenticeship programs authorized by the National Apprenticeship Act; significant enhancements to many of these programs, and Competitive Grants for Worker Training and Placement in High Growth and Emerging Industry Sectors authorized under the American Recovery and Reinvestment Act of 2009 (Recovery Act).

The public workforce system has a vital role to play in our knowledge-based economy, contributing to our nation's global competitiveness and economic productivity by providing lifelong learning opportunities and a broad array of services. The economy's downturn posed substantial economic and workforce challenges to our nation, but the workforce system is responding to these challenges by becoming more flexible and innovative in order to get workers back to work quickly and support the workforce needs of employers in the recovering economy, particularly in high demand and emerging industry sectors. The workforce system provides critical services to a broad array of customers at all skill levels. These services include high-quality career counseling and case management and assessments that identify transferable skills. ETA and the workforce system are committed to continuous improvement and testing and rigorously evaluating new ideas and approaches.

ETA contributes to the following Departmental goals in support of the Secretary's vision of good jobs for everyone:

- Outcome Goal 1.1 – Increase workers' incomes and narrow wage and income inequality.
- Outcome Goal 1.2 – Assure skills and knowledge that prepare workers to succeed in a knowledge-based economy, including in high-growth and emerging industry sectors like "green" jobs.
- Outcome Goal 1.3 – Help workers who are in low-wage jobs or out of the labor market find a path into middle class jobs.
- Outcome Goal 1.4 – Help middle-class families remain in the middle class.
- Outcome Goal 1.5 – Secure wages and overtime.

Strategic Direction and Priorities:

- Provide an innovative public workforce system that helps enable future economic growth and advancing shared prosperity for Americans.
- Continue support of Green Jobs — supporting the creation and expansion of good green jobs by developing a skilled workforce for these industries.
- Increase services and training for workers in need.

- Provide workers with the resources necessary to increase their likelihood of obtaining middle class jobs.
- Enhance programs that provide opportunities to particularly vulnerable populations – WIA Youth, Job Corps, and YouthBuild for disadvantaged youth, Indian and Native American and Migrant and Seasonal Farmworkers programs, and One-Stop services for individuals with disabilities.
- Improve the effectiveness of services through innovative funding mechanisms and rigorous research and evaluation.
- Expand regional partnerships and collaboration.
- Promote sector strategies for high-demand industry sectors, including the nation’s investment in green jobs and health sector jobs as an effort to restart the economy.
- Forge meaningful partnerships with other Federal agencies.
- Continue to develop a workforce system that embodies a dual customer approach — meeting the needs of both workers and employers.

Veterans’ Employment and Training Service (VETS)

The Veterans’ Employment and Training Service provides veterans and transitioning service members the resources and services to succeed in the workforce by maximizing their employment opportunities, protecting their employment rights, and meeting labor market demands with qualified veterans.

VETS helps veterans obtain positive employment outcomes through services provided at One-Stop Career Centers and other locations. Grants are provided to State Workforce Agencies (SWA) to support staff dedicated to serving Veterans, including those who require special assistance due to disabilities or other barriers to employment. VETS also provides funding, through the Homeless Veterans’ Reintegration Program (HVRP) and Veterans’ Workforce Investment Program (VWIP), to organizations that serve Veterans with employment barriers that warrant more comprehensive services.

VETS protects the employment and reemployment rights of veterans and members of the National Guard and Reserve Forces under the provisions of the Uniformed Services Employment and Reemployment Rights Act (USERRA) program so that they can serve on active duty without harm to their employment status and by assuring that veterans who seek Federal employment obtain the preferences agencies are required to apply.

VETS contributes to the following Departmental goals in support of the Secretary’s vision of good jobs for everyone:

- Outcome Goal 1.1 – Increase workers’ incomes and narrow wage and income inequality
- Outcome Goal 1.3 – Help workers who are in low-wage jobs or out of the labor market find a path into middle class jobs
- Outcome Goal 1.4 – Help middle class families remain in the middle class

Strategic Direction and Priorities:

- Support Disabled Veterans' Outreach Program specialists, Local Veterans' Employment Representatives, and Transition Assistance Program Employment Workshops through the Jobs for Veterans State Grants.
- Launch a new Jobs for Veterans State Grants program service delivery model to improve the quality and effectiveness of employment services.
- Enhance Transition Assistance Program (TAP) workshops to make them more accessible to spouses of separating Service Members, so that the entire military family can successfully transition to new jobs in new locations.
- Provide Homeless Veterans' Reintegration Program competitive grants to operators of employment programs that specialize in outreach, supportive services and training for homeless veterans, including homeless women veterans and incarcerated veterans, to assist in their reintegration into the workforce.
- Provide training to Federal staff and Veterans service providers through the National Veterans' Employment and Training Services Institute.
- Award competitive grants through the Veterans' Workforce Investment Program that are geared toward focused training, re-training and employment opportunities for recently separated veterans to meet the needs of employers for qualified workers in high demand industries, particularly those occupations requiring a license or certification. The goal has been refined to provide services that will result in new skills and employment in Green Jobs as referenced in the Green Jobs Act of 2007.
- Collaborate with the Departments of Defense and Veterans Affairs and with State partners and Veterans' service organizations to implement USERRA and Federal Veterans' Preference enforcement activities.

Worker Protection

Office of Federal Contractor Compliance Programs (OFCCP)

The Office of Federal Contract Compliance Programs ensures that employers doing business with the Federal Government comply with the laws and regulations requiring a fair and diverse workplace, free of discrimination and harassment. OFCCP also ensures that federal contractors meet contractual equal employment opportunity and affirmative action requirements mandated by the Code of Federal Regulations. OFCCP carries out its responsibilities by:

- Conducting compliance evaluations and complaint investigations of federal contractors' and subcontractors' personnel policies and procedures.
- Obtaining conciliation agreements from contractors and subcontractors who are found in violation of regulatory requirements.
- Monitoring the progress of those contractors and subcontractors found in violation through periodic compliance reports.
- Forming linkage agreements between contractors and community organizations and job training programs to help employers identify and recruit qualified workers.
- Recommending enforcement actions to the Solicitor of Labor.
- Offering technical assistance to federal contractors and subcontractors to help them understand the statutory and regulatory requirements and review process.

OFCCP contributes to Outcome Goal 3.1 – Break down barriers to fair and diverse work places so that every worker's contribution is respected.

Strategic Direction and Priorities:

- Strengthen and clarify requirements for federal contractors and subcontractors through regulatory reform.
- Revitalize enforcement capacity – a new enforcement strategy that focuses on corporate-wide accountability.
- Develop and conduct programmatic initiatives and litigation focused on the most persistent and egregious violators.
- Implement a stakeholder strategy that reaffirms commitments to equal employment opportunity and affirmative action by building coalitions and collaborative partnerships among Federal and State agencies, federal contractor communities, community-based organizations, advocacy groups, and other public and private sector community resources.
- Strengthen compliance evaluations of federal contractors' and subcontractors' compensation practices.
- Conduct more thorough compliance evaluations and complaint investigations of federal contractors' and subcontractors' personnel policies and practices.
- Expand identification and resolution of systemic and individual discrimination.
- Partner with national and community-based advocacy groups to educate workers on their equal employment opportunity rights and employer responsibilities.
- Promote and quantify new job opportunities that stem from conciliation agreements with federal contractors.
- Expand construction reviews to include MEGA projects with a focus on improving employment opportunities for women and minorities.

Occupational Safety and Health Administration (OSHA)

The Occupational Safety and Health Administration was established by the Occupational Safety and Health Act of 1970 with the mission to assure, so far as possible, that every working man and woman in the American workplace has safe and healthful working conditions. OSHA ensures the safety and health of America's workers by setting and enforcing workplace safety and health standards; delivering effective enforcement; providing training, outreach, and education; and encouraging continual improvement in workplace safety and health. Through these efforts, OSHA aims to reduce the number of worker illnesses, injuries, and fatalities and contribute to the broader goals aimed at promoting economic recovery and the competitiveness of our nation's workers.

OSHA contributes to Outcome Goal 2.1 – Secure safe and healthy workplaces, particularly in high-risk industries.

Strategic Direction and Priorities:

- Strengthen enforcement capabilities — target the most egregious and persistent violators.
- Increase OSHA's presence in the workplace.

- Protect workers in high-hazard occupations.
- Protect worker populations that are vulnerable due to impediments related to communication including Spanish-speaking/non-English speaking workers – and disabled workers.
- Review and restructure penalties to ensure that penalties imposed are consistent with the seriousness of the violation and act as effective deterrence to violators.
- Maintain a strong outreach, education and technical assistance program.

Wage and Hour Division (WHD)

The Wage and Hour Division is responsible for administering and enforcing a number of laws that establish the minimum standards for wages and working conditions in the United States.

These labor statutes provide basic protections for all workers and while they differ in scope, all of the statutes enforced by WHD are intended to protect and to promote the welfare of the nation's workforce, to provide opportunities for advancement, and to ensure fair compensation for work performed. The Fair Labor Standards Act (FLSA) minimum wage provisions and the prevailing wage laws provide a floor for the payment of fair wages, while the FLSA overtime provisions are intended to broaden work opportunities and promote employment. The Migrant and Seasonal Agricultural Worker Protection Act and the immigration programs establish working conditions intended both to protect the wages and the safety and health of vulnerable workers and to ensure that the labor force is not displaced by lower-paid foreign or migrant labor. The prevailing wage programs provide protection to local middle class workers who may be disadvantaged by competition from outside labor who offer their services at wages lower than those in the locality. The Family and Medical Leave Act was enacted to help workers balance family and work responsibilities, and the child labor provisions of the FLSA ensure the safe employment of young workers, encourage their educational endeavors, and provide a path to future employment.

WHD contributes to the following Departmental goals in support of the Secretary's vision of good jobs for everyone:

Outcome Goal 1.1—Increase workers' incomes and narrow wage and income inequality

Outcome Goal 1.5—Secure wages and overtime

Outcome Goal 2.1—Secure safe and healthy workplaces, particularly in high-risk industries

Outcome Goal 3.2—Provide workplace flexibility for family and personal care-giving

Strategic Direction and Priorities:

- Protect the most vulnerable workers in the workplace — ensure that they are employed in compliance with wage and hour laws.
- Promote sustained and corporate-wide compliance among employers — make certain that employers, including the most persistent violators, are brought into and maintain compliance.
- Foster a customer-oriented, quality-driven culture within WHD and boost customer satisfaction among workers seeking WHD services and other entities that share the goals of improving the lives of working men, women, and children.
- Issue prevailing wage determinations that are current and accurate.

Employee Benefits Security Administration (EBSA)

The FY 2012 budget is the first budget submitted under the Secretary's new Strategic Plan. The Secretary's plan lays out the Department of Labor roadmap for continuing to meet the workplace and economic challenges we face as a nation. Contained within the plan are the strategies which DOL will use to accomplish the Secretary's vision for the future: *Good Jobs for Everyone*. The Secretary defines *good jobs* as, among many other factors, jobs that provide health benefits and retirement security. In support of the Secretary's vision, EBSA has a single outcome goal of "improving health benefits and retirement security for all workers." EBSA is charged with protecting more than 149 million workers, retirees and their families who are covered by an estimated 718,000 private retirement plans, 2.6 million health plans, and similar numbers of other welfare benefit plans which together hold \$6.1 trillion in assets. Under the Secretary's leadership, in FY 2010 and FY 2011, the Administration sought to reestablish a credible foundation for the EBSA enforcement, participant assistance, and regulatory programs.

EBSA contributes to Outcome Goal 4.3 – Improve health benefits and retirement security for all workers.

Strategic Direction and Priorities:

- Continue a multi-faceted enforcement program that effectively targets the most egregious and persistent violators.
- Play a major role in the implementation of significant health reform legislation.
- Provide innovative outreach and education that assists workers to protect their pension and health benefits.
- Conduct a robust, well-integrated research program based on evidence and comprehensive analysis.

Mine Safety and Health Administration (MSHA)

The Mine Safety and Health Administration protects the safety and health of the nation's miners under the provisions of the Federal Mine Safety and Health Act of 1977, as amended by the Mine Improvement and New Emergency Response (MINER) Act of 2006. The purpose of the Mine Safety and Health Administration is to prevent death, disease, and injury from mining and to promote safe and healthful workplaces for the nation's miners through the enactment and enforcement of mandatory safety and health standards, mandated inspections which require four complete inspections annually at active underground mines and two complete inspections annually at active surface mines, and miner training and compliance assistance.

MSHA contributes to the following Departmental goals in support of the Secretary's vision of good jobs for everyone:

Outcome Goal 2.1 – Secure safe and healthy workplaces, wages and overtime, particularly in high-risk industries

Outcome Goal 3.3 – Ensure worker voice in the workplace

Strategic Direction and Priorities:

- Increase Inspection and Enforcement Effectiveness.
- Increase Training and Education.
- Promote Mine Operator Adoption of Prevention-focused, Comprehensive Health and Safety Management Programs by Mine Operators.
- Improve Mine Emergency Response Preparedness.
- Increase Efforts to Protect Miners from Discrimination.
- Strengthen Mine Regulations.

Office of Labor-Management Standards (OLMS)

The Office of Labor-Management Standards (OLMS) administers the Labor-Management Reporting and Disclosure Act of 1959, as amended (LMRDA) and related laws. These laws primarily establish safeguards for union democracy and union financial integrity and require public disclosure reporting by unions, union officers, union employees, employers, labor consultants and surety companies.

OLMS also administers employee protections under various Federally-sponsored transportation programs that require fair, equitable protective arrangements for transit employees when Federal funds are used to acquire, improve, or operate a transit system. These arrangements must be approved by the Department of Labor before Federal funds may be released to grantees.

OLMS contributes to Outcome Goal 3.3 – Ensure worker voice in the workplace.

Strategic Direction and Priorities:

- Increase the number of reports filed by employers and consultants who make agreements to persuade employees with regard to their rights to organize and bargain collectively.
- Increase the percent of disclosure reports filed electronically.
- Improve timeliness in resolving complaints filed by labor union members that their union violated democratic standards for conducting union officer elections.
- Increase effectiveness of audits by focusing resources on labor unions most likely to be in violation of the law.
- Improve the Internet public disclosure service and public access to information reported by unions, union officers, union employees, employers, labor consultants, and surety companies under the Act.
- Reduce the number of delinquent filers of Labor Organization Annual Financial Reports.
- Reduce the number of chronically delinquent filers of Labor Organization Annual Financial Reports.
- Increase provision of compliance assistance to national and international labor organizations to increase their affiliates' LMRDA compliance by developing, implementing, and doubling the number of voluntary compliance agreements to establish goals, baselines, and measures for improving recordkeeping, reporting, and internal controls.

- Improve compliance with minimum bonding requirements of local and intermediate union affiliates by working closely with their parent national and international unions, including those who are not party to a voluntary compliance agreement.

Policy

Women's Bureau

The Women's Bureau provides collaborative leadership on policies and activities that impact 72 million women in the labor force. The Women's Bureau is the only Federal office exclusively concerned with serving and promoting the interests of women in the workforce. The Bureau conducts research, projects, outreach, and evaluations on issues of importance to working women, and provides information about women in the labor force to stakeholders and customers.

The Women's Bureau supports the Secretary's vision of *Good Jobs for Everyone* by focusing on the economic and financial security of working women through policies that narrow the wage gap and ensure fair compensation, promote higher paying/non-traditional jobs for women, ensure safe and quality work environments through workplace flexibility, and – in cooperation with VETS – improve services for women veterans who are homeless.

The Women's Bureau contributes to the following Departmental goals in support of the Secretary's vision of good jobs for everyone:

- Outcome Goal 1.1 – Increase workers' incomes and narrow wage and income inequality
- Outcome Goal 1.2 – Assure skills and knowledge that prepare workers to succeed in a knowledge-based economy, including in high-growth and emerging industry sectors like "green" jobs
- Outcome Goal 1.3 – Help workers who are in low-wage jobs or out of the labor market find a path into middle class jobs
- Outcome Goal 3.2 – Provide workplace flexibility for family and personal care-giving

Strategic Direction and Priorities:

- Conduct research and studies on issues concerning women in the workforce.
- Build collaborations with stakeholders, partners and colleagues that lead to adoption and implementation of policies and practices developed by the Bureau through its research and programs.
- Develop and share resources and information with employers, unions, and working women on fair pay and negotiating for better wages and benefits.
- Collaborate with stakeholders and other agencies to decrease occupational segregation — one of the leading causes of income inequality.
- Provide collaborative leadership on data sharing and public awareness efforts related to gender based compensation practices.
- Collaborate with other Federal agencies, workforce professionals, non-profits, and women's organizations to increase awareness of training, employment, and entrepreneurship opportunities in emerging industries and markets including "green" and non-traditional sectors.

- Address critical issues associated with women veterans who are homeless so they may gain economic security for themselves and their families.
- Promote flexible work schedules, family-friendly leave policies, and telework.
- Promote workplaces that are free of discrimination and harassment through publications and a broad-based multi-media campaign on employment rights, including the rights of pregnant women, mothers, women with disabilities, and women veterans.
- Collaborate with BLS to explore ways to improve the collection of data on parental leave, child care responsibilities, family leave insurance program usage, and other data related to the intersection of work and family responsibilities.

Office of Disability Employment Policy (ODEP)

The Office of Disability Employment Policy was established to bring a permanent focus within the U.S. Department of Labor and across the Federal government to develop, test, validate, and disseminate evidence-based policies and strategies, fostering their adoption and implementation through the provision of technical assistance and collaboration with its public and private partners. Although many American workers with disabilities are educated, trained, willing, and able to work, they remain out of the labor force at a much higher rate than their similarly qualified counterparts without disabilities.

ODEP will focus on collaborating with Federal agencies, private and public sector employers, labor organizations, and other stakeholders to develop policy solutions that will expand physical and programmatic access to One-Stop Career Centers and the workforce system in general; improve employer organizational practices and make workplaces more inclusive; and increase access to the employment supports that are crucial to every worker's success throughout the employment process, and especially to a job seeker or worker with a disability.

ODEP contributes to the following Departmental goals in support of the Secretary's vision of good jobs for everyone:

Outcome Goal 1.2 – Assure skills and knowledge that prepare workers to succeed in a knowledge-based economy, including in high-growth and emerging industry sectors like “green” jobs

Outcome Goal 3.1 – Break down barriers to fair and diverse work places so that every worker's contribution is respected

Strategic Direction and Priorities:

- Evaluation/Data Driven Strategies: Research
Conduct research & analysis that identifies/validates effective disability employment policy/strategies.
 - Base policy and strategies on sound evidence to ensure that results of implementation are successful;
 - Validate and replicate evidence-based disability employment policy and effective practices.
- Innovation: Partnerships and Stakeholder Collaboration
Build partnerships to develop policy/strategies and to promote the adoption and

implementation of disability employment policy/practice.

- Include under-represented populations in policy development and outreach
- Collaborate broadly within DOL and with other Federal agencies and private sector organizations to comprehensively address issues and leverage limited resources
- Improved Implementation: Technical Assistance
Provide technical assistance regarding the adoption and implementation of disability employment policy/practice.
 - Emphasize inclusive planning and universal usability to leverage limited resources and ensure access to more individuals.
 - Reach out to public and private sector organizations to provide information and technical assistance to dispel misperceptions/broaden understanding of disability and employment issues and to improve employment practices.

Bureau of International Labor Affairs (ILAB)

The Bureau of International Labor Affairs (ILAB) supports the President's international agenda on labor matters, carries out international responsibilities for the Secretary of Labor, fulfills mandates from the Congress, and provides oversight and coordination of the Department's international activities.

ILAB works to improve working conditions and labor standards for workers around the world. Fostering fair working conditions in the global marketplace is an integral component of the Department of Labor's strategic goal "Good jobs for everyone". The Department recognizes the need to ensure that global markets are governed by fair market rules that protect vulnerable people, including women and children, and provide workers a fair share of their productivity and voice in their work lives. These objectives will contribute to achieving the Department's goals for U.S. workers, build the foundation for a sustained recovery of the global economy and contribute to a more balanced pattern of global trade in the future. Pursuing these objectives will once again position the U.S. as a leader and pace-setter on international labor issues and demonstrate our commitment to assist governments that have the political will to foster better livelihoods and rights for their workforces.

In order to carry out these strategic objectives, responsibilities, and mandates, ILAB collaborates with other U.S. government agencies to formulate international economic, trade, and labor policies, including the formulation and implementation of the labor aspects of international trade and investment agreements; coordinates U.S. government participation in international organizations relative to labor issues; oversees and implements technical assistance programs; and conducts research and analysis and publishes reports on international labor issues.

ILAB contributes to Outcome Goal 1.6: Foster acceptable work conditions and respect for workers' rights in the global economy to provide workers with a fair share of productivity and protect vulnerable people.

Strategic Direction and Priorities:

- Implement new approaches to counter the root causes of child labor.

- Improve the ability of workers in trading partner countries to work in good jobs, receive a fair share of their productivity, and enjoy a voice in their work lives.
- Improve worker rights and livelihoods for vulnerable populations.
- Improve its monitoring and enforcement of trade agreements to protect workers' rights.
- Engage more extensively and substantively with other countries' labor ministries and with international and regional organizations.
- Coordinate the Department's participation in international labor organizations and the interagency trade and economic policy process.

Benefits

Office of Workers' Compensation Programs (OWCP)

The Office of Workers' Compensation Programs (OWCP) is comprised of four separate compensation programs which provide wage replacement, medical treatment, and vocational rehabilitation benefits and one division providing information technology support services.

- The Federal Employees' Compensation Act (FECA) program provides monetary wage-loss and medical compensation to civilian employees of the Federal Government injured at work, and to certain other designated groups.
- The Longshore and Harbor Workers' Compensation Act program provides similar benefits to injured private sector workers engaged in certain maritime and related employment.
- The Black Lung Benefits program provides monetary and medical benefits to totally disabled miners suffering from coal mine pneumoconiosis stemming from mine employment, and monetary benefits to their dependent survivors.
- The Energy Employees Occupational Illness Compensation Program Act (EEOICPA) provides benefits to employees or survivors of employees of the Department of Energy (DOE), contractors or subcontractors with DOE, who have been diagnosed with cancer due to exposure to radiation or toxic substances.
- The Division of Information Technology Management and Services (DITMS) provides information technology General Services Support (GSS) shared by the Wage and Hour Division (WHD), the Office of Federal Contract Compliance Programs (OFCCP), the Office of Workers' Compensation Programs (OWCP), and the Office of Labor Management Standards (OLMS).

Major workload activities in OWCP include: claims adjudication, benefit payment, disability case management, assisting in the re-employment of people with disabilities, medical bill processing, information services delivery, benefit fund management, and technical assistance to employers to ensure proper compliance with OWCP procedures and requirements including insurance/self-insurance and payment of benefits.

OWCP outcomes include earlier recovery from injury, shorter time away from work, and reduced lost production days being supported by proactive disability claims management. OWCP uses early nurse intervention to coordinate medical treatment and provide reemployment assistance in new FECA cases. Permanently disabled claimants receive vocational rehabilitation assistance. OWCP provides income support and medical care by ensuring proper claims adjudication and efficient case

processing, effective mediation of disputed claims, and accurate and timely payment of benefits. Timely delivery of compensation payments also ensures that the economic position of workers with injuries will not be jeopardized by extended interruptions in income. Timely delivery of medical services is ensured through centralized coordination and processing of requests from providers for treatment authorizations. OWCP has improved customer access to program information through its communications systems to be more responsive to customer service needs.

OWCP contributes to the following Departmental goals in support of the Secretary's vision of good jobs for everyone:

Outcome Goal 4.1 – Facilitate return to work for workers experiencing workplace injuries or illnesses who are able to work

Outcome Goal 4.2 – Ensure income support when work is impossible or unavailable

Strategic Direction and Priorities:

- Advance the Administration's Priority Goal to make the Federal Government as a model workplace for safety and return to work in the event of on-the-job injury or illness. Key strategies include:
 - Directing, in partnership with the Occupational Safety and Health Administration, the Presidential initiative, "*Protecting Our Workforce and Ensuring Re-employment (POWER)*", setting performance targets and providing technical assistance that will enhance Federal employers' focus and improve results for workplace safety and injured worker reemployment.
 - Supporting Executive Order 13548 to increase Federal agencies' reemployment of injured workers and employment of persons with disabilities.
 - Researching and testing better hiring, job placement and job accommodation strategies with Federal employers to improve the reemployment of injured workers and those with disabilities.
- Continue to implement improvements in FECA's disability claims management and return to work assistance activities as recommended in independent evaluations of the program.
- Continue proper claims adjudication, effective mediation in disputed claims, efficient case processing, and accurate and timely payment of benefits.
- Speed claims reporting and shorten the duration between injury and first payment of benefits by industry employers and insurance carriers in the Longshore program.
- Through outreach and other educational activities, improve Black Lung stakeholders' understanding of the program and improve the quality of claims and supporting documentation filed.
- Continue to assess OWCP customer services and improve the agency's efficiency and effectiveness.
- Continue to identify and pursue opportunities to evaluate OWCP program performance and results.
- Continue to enhance systems and develop integrated IT technology services that improve and support business processes.
- Continue to seek reform of the Federal Employees' Compensation Act.

Federal-State Unemployment Insurance (UI) System (administered by ETA)

The federal-state UI program, authorized under the Federal Unemployment Tax act and Title III of the Social Security Act, provides temporary, partial wage replacement for unemployed workers, providing them with income support when suitable work is unavailable. To be eligible for benefits, unemployed workers must meet eligibility requirements established by state laws that conform to federal law, including that they have worked recently, be involuntarily unemployed, and be able and available for work.

UI contributes to Outcome Goal 4.2 – Ensure income support when work is impossible or unavailable.

Strategic Direction and Priorities:

- Partner with state agencies with a focus on bolstering broad program accountability and facilitating performance improvement nationally.
- Enact new strategies to prevent, detect, and recover improper payments.
- Develop a national vision on reemployment that will promote and support states' service delivery to all jobseekers, helping reconnect unemployed workers with jobs.
- Extend income support to more categories of unemployed—recent entrants to the workforce, low-wage workers, workers who are upgrading their skills, and workers with family care giving obligations.

Statistics

Bureau of Labor Statistics (BLS)

The Bureau of Labor Statistics (BLS) of the Department of Labor (DOL) is the principal Federal agency responsible for measuring labor market activity, working conditions, and price changes in the economy. Its mission is to collect, analyze, and disseminate essential economic information to support public and private decision-making. As an independent statistical agency, BLS serves its diverse user communities by providing products and services that are objective, timely, accurate, and relevant.

BLS serves the general public, the U.S. Congress, other Federal agencies, State and local governments, business, and labor by providing up-to-date, high-quality statistical information to formulate policy, negotiate purchasing agreements, and plan for the future.

In line with the Interagency Council on Statistical Policy's (ICSP) Guidelines for Reporting Performance by Statistical Agencies, BLS measures timeliness, accuracy, relevance, dissemination, and mission achievement. BLS also reports the full cost to produce its data products. These criteria are common among statistical agencies because these are critical aspects of a statistical program's performance.

BLS supports Outcome Goal 5.1 – Provide sound and impartial information on labor market activity, working conditions, and price changes in the economy for decision making, including support for the formulation of economic and social policy affecting virtually all Americans.

Strategic Direction and Priorities:

- Continue to produce objective data and analyses that are timely, accurate, and relevant.
- Improve the timeliness, accuracy, and relevance of BLS products and develop new products that meet the needs of a broad customer base.
- Inform current and potential customers about the availability and uses of BLS products and reach out to BLS customers to understand their needs for economic information.
- Maintain high response rates in BLS surveys.
- Make the data and other products and services available on bls.gov accessible, understandable, and usable.
- Recruit, train, and retain a talented and diverse group of individuals who are experts at the production and continuous improvement of BLS products and services, including employees who will support those functions, and who are well prepared to represent the agency and become its future leaders.
- Continuously evaluate and improve the efficiency and effectiveness of BLS programs and processes.

The BLS performance measures that support Outcome Goal 5.1 are available in the 2012 Congressional Budget Justification in the Detailed Workload and Performance Tables.

Priority Goals

The Department of Labor has identified five performance goals that will be a particular focus through FY 2012. These goals are a subset of those used to regularly monitor and report performance. Detailed information on progress with these goals will be available at www.performance.gov.

- **Workplace Fatalities:** Reduce fatalities resulting from common causes by two percent in Occupational Safety and Health Administration-covered workplaces, and all fatalities in mining by five percent per year based on a rolling five-year average.
- **Wage Law Enforcement:** Increase the percent of prior violators who remain in compliance with the minimum wage and overtime provisions of the Fair Labor Standards Act (FLSA).
- **International Labor Rights and Livelihoods:** By the end of 2011, improve worker rights and livelihoods for vulnerable populations in at least eight developing country trading partners.
- **Workers' Compensation:** Create a model return-to-work program to reduce lost production day rates by one percent per year and reduce injury and illness rates by at least four percent per year.
- **Worker Job Training:** Increase opportunities for America's workers to acquire the skills and knowledge to succeed in a knowledge-based economy.
 - By June 2012, increase by 10 percent (to 220,000) the number of people who received training and attain a degree or certificate through the following programs: Workforce Investment Act (WIA) adult, dislocated worker, and youth, National Emergency Grants (NEG), Trade Adjustment Assistance (TAA), and Career Pathways.
 - Train over 120,000 Americans for green jobs by June 2012.

Strategic Goal 1: Prepare workers for good jobs and ensure fair compensation

Outcome Goal 1.1—Increase workers' incomes and narrow wage and income inequality

Analysis and Future Plans

Employment and Training Administration

Among the three employment measures utilized by ETA, the performance under average earnings has been the least impacted by the economic downturn. Performance targets for average earnings were reached by six of seven programs in this goal.

To encourage effective workforce system responses to the current challenges facing American workers, including the need for quality job placements with living wages, the Department issued new guidance on the importance of credentials. In TEGL 15-10, Increasing Credential, Degree, and Certificate Attainment by Participants of the Public Workforce System, the Department emphasized the value of credentials to employers and workers. For employers, credentials demonstrate and document skills, increasing their ability to fill skilled positions, build talent pipelines and compete. For workers and job seekers, credentials improve their labor market experience through higher earnings, greater mobility and enhanced job security. Good-paying jobs in high demand industries generally require some form of postsecondary education or training and the earnings bump that accompanies postsecondary credentials is well established. ETA will continue to provide technical assistance to the workforce system to improve credential attainment for its customers.

ETA also continued to build expertise around career pathways, a key strategy to improve labor market outcomes for low-skilled, low-wage adults. Career pathway models integrate basic skills education with occupational skills training and align state and local administrative policies to meet the needs of low-income workers. The Office of Vocational Education and the ETA co-hosted a Career Pathways Technical Assistance Institute in Washington, D.C. Technical assistance was shared among 11 grantees. ETA also began the preliminary gathering of best practices from states already using the model. The Career Pathways Technical Assistance Initiative will continue to leverage the latest research in adult learning and workforce development to help grantees and the greater workforce system.

FY 2011-2012 targets have been adjusted based on a regression model that accounts for the effect of unemployment rates on program performance outcomes and OMB's assumptions about future economic conditions.

In FY 2011, the Office of Apprenticeship is planning to issue a Notice of Proposed Rulemaking (NPRM) to update regulations for equal employment opportunity (EEO) in apprenticeship and training, which have not been revised since 1978. This second phase of regulatory updates will ensure that the

Strategic Goal 1

Registered Apprenticeship's EEO regulations are consistent and in alignment with both the current state of EEO law and the final rule governing labor standards for registration of apprenticeship programs published in October 2008. Through these regulatory updates, ETA will seek to address barriers to fair and diverse work places so that all qualified individuals participating in or seeking entrance to the nation's labor market have access to training and employment through registered apprenticeship.

Under a reauthorized TAA program, after expiration of the 2009 Amendments, DOL plans to provide additional guidance and training for State staff who deliver services to trade affected workers to reflect changes to the program. TAA developed the capability to process the significantly increased flow of petitions. Through refining and modifying those changes to reflect continued petition workload, the Department will continue to manage petition processing workload within the 40 day processing time allowed for each investigation. In addition, DOL will continue its effort to monitor quality in the petition processing area to ensure that petitions are processed accurately.

For the TAA program, ETA will continue to focus on obtaining timely and accurate data. The 2009 Amendments required an extensive revision to the data collection component of State reporting. In FY 2010, those changes were implemented and the transparency and accountability they foster will continue to result in a greater focus on meeting performance goals by State Workforce Agency staff and provide more reliable data for program monitoring and provision of technical assistance.

Strategic Goal 1

ETA - Increase the average earnings of individuals served through the Workforce Investment Act (WIA), Registered Apprenticeship, Community Service Employment for Older Americans (CSEOA), Job Corps, and Trade Adjustment Assistance (TAA) Programs

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Average earnings in the second and third quarters after exit (WIA Dislocated Worker)	Target	\$13,800.00	\$14,410.00	\$14,888.00	\$15,542.00	\$15,238.00	\$15,418.00	\$15,840.00	Wage increases suggest ETA efforts to improve the quality of placements were successful.	Research shows that individuals who begin their careers during economic downturns earn lower wages than similar workers who begin careers at other times (Wozniak 2010)	Among the program's most critical goals is to develop technical assistance to increase the rate of industry-recognized credential attainment among customers who receive training.
	Result	\$14,265.00	\$15,188.00	\$16,167.00	\$16,804.00	--	--	--			
	Status	Y	Y	Y	Y	--	--	--			
Average earnings in the second and third quarters after exit (CSEOA)	Target	Base	\$6,775.00	\$6,360.00	\$6,374.00	\$6,919.00	\$6,984.00	\$7,079.00	SCSEP improved its average earnings' result for the third straight year.	SCSEP does not produce the same average earnings' results as other ETA programs, which is primarily due to Seniors seeking part-time employment to supplement retirement income.	SCSEP will continue to work on reconciling participant records with the unemployment insurance wage records to ensure the most accurate and complete picture of participant outcomes.
	Result	\$6,704.00	\$6,713.00	\$6,795.00	\$6,893.00	--	--	--			
	Status	--	I	Y	Y	--	--	--			
Average earnings in the second and third quarters after exit (TAA)	Target	--	Base	\$14,050.00	\$13,386.00	\$13,314.00	\$13,074.00	\$14,370.00	Positive outcomes resulting from increased focus on co-enrollment with WIA for wrap around services led to authorization of dedicated case management funds as part of the 09 amendments to Trade Act.		
	Result	--	\$13,914.00	\$14,281.00	\$15,087.00	\$14,214.00	--	--			
	Status	--	--	Y	Y	Y	--	--			
Average earnings in the second and third quarters after exit (WIA Adult)	Target	\$11,000.00	\$12,045.00	\$12,862.00	\$13,741.00	\$12,721.00	\$12,865.00	\$13,178.00	ETA issued guidance on benefits and methods for improving credential attainment for job seekers. Credentials improve labor market outcomes, including higher earnings and enhanced job security.	More job placements in part-time employment are one of the reasons noted by states as a contributor to lower than expected earnings results.	ETA's technical assistance will continue to emphasize services that increase attainment of industry-recognized credentials among customers who receive training.
	Result	\$11,870.00	\$13,575.00	\$14,649.00	\$13,712.00	--	--	--			
	Status	Y	Y	Y	N	--	--	--			
Average earnings in the second and third quarters after exit (WIA Indian and Native American Program)	Target	--	Base	\$9,157.00	\$9,174.00	\$9,261.00	\$9,363.00	\$9,575.00	WIA Indian and Native American grantees tailored training opportunities to the needs of low-skilled adults in order to improve quality job placements and career advancement.	Few jobs in high growth, high wage occupations are available in tribal territories.	DOL will continue to emphasize combined education and occupational skills training to maximize placing customers on a positive career path.
	Result	--	\$9,665.00	\$9,780.00	\$9,853.00	--	--	--			
	Status	--	--	Y	Y	--	--	--			

Strategic Goal 1

ETA - Increase the average earnings of individuals served through the Workforce Investment Act (WIA), Registered Apprenticeship, Community Service Employment for Older Americans (CSEOA), Job Corps, and Trade Adjustment Assistance (TAA) Programs

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Average wage of placed graduates (Job Corps)	Target	--	--	--	\$9.02	\$9.10	\$9.25	\$9.30	Job Corps aligned its career tech training with industry-based standards and standards-based instruction, organized around industry clusters, and enhanced links with employers and industry.		
	Result	--	--	--	\$9.22	--	--	--			
	Status	--	--	--	Y	--	--	--			
Average earnings in the second and third quarters after exit (Apprenticeship)	Target	--	--	--	Base	\$19,324.00	\$19,077.00	\$19,352.00	In FY 2010, program completers earned an average of \$54,000 per year, with many earning more.	Employment cutbacks, reduced hours, high unemployment rates, and lack of work projects (particularly in building trades) negatively impacted results.	As the economy recovers, average earnings are likely to increase.
	Result	--	--	--	\$20,566.00	\$20,335.00	--	--			
	Status	--	--	--	--	Y	--	--			

Sources: SCSEP – SCSEP Performance and Results Quarterly (SPARQ) reporting system. TAA – Trade Act Participant Report (TAPR), Quarterly Determinations, Allowance Activities and Employability Services. Job Corps – Job Corps Management Information System. WIA Adult and Dislocated Worker – Annual State WIA performance reports (ETA-9091) and quarterly reports (ETA-9090). INAP – grantee records. Apprenticeship – Registered Apprenticeship Partners Information Data System (RAPIDS).

Notes: “Average earnings” indicators measure approximately six months’ average earnings for their respective programs’ participants. In FY 2009, the Office of Apprenticeship converted to the Common Measures to track the outcomes of apprentices that either have completed or cancelled from the program. Currently 32 states enter data on registered programs and apprentices into the program’s case management system, RAPIDS.

Analysis and Future Plans

Veterans’ Employment and Training Service

VETS assesses the performance of the One-Stop Career Center system on behalf of veterans by applying three common measures: the entered employment rate, the employment retention rate and the average earnings. For PY 2009, all three of these indicators were sharply impacted by the severe recession in progress at the time that these outcomes were measured. The entered employment rate experienced the most severe decline, dropping by 21 percent from the prior year. Analysis conducted by VETS found that this outcome measure declined directly and immediately on a quarterly basis in response to the increases in the unemployment rate. The declines in the retention rate and average earnings were not nearly as severe, at six percent and four percent respectively compared with the prior year.

VETS has encouraged front-line service delivery staff to respond in a variety of ways to the severe constraints imposed by current economic conditions. First, veteran jobseekers are encouraged to maintain their active status in the workforce system for longer periods while they continue to seek employment. In conjunction with that approach, DVOP specialists and LVER staff also have sought to refer greater numbers and proportions of veterans for enrollment in WIA training, under the provisions of priority of service. Second, VETS has encouraged a refocusing of the responsibilities of DVOP specialists and LVER staff. DVOP specialists have been encouraged to place greater emphasis on the delivery of intensive

Strategic Goal 1

services (e.g., counseling, assessment, lifelong learning skills and referral to training), which better prepare veteran jobseekers to compete for scarce job openings. LVER staff members have been encouraged to place greater emphasis on employer outreach, which is intended to expand the number of job openings available with employers who are favorably inclined to hire veterans. In addition to these service delivery emphases, VETS has projected the performance targets for this goal for PY 2010 by applying the regression adjusted methodology developed by ETA, which seeks to account for the impact of economic conditions on performance outcomes.

VETS - Improve employment outcomes for veterans who receive One-Stop Career Center services

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of veteran participants employed in the first quarter after exit	Target	60.00%	61.00%	62.50%	55.60%	44.80%	45.20%	46.00%	Large numbers of veterans accessed One-Stop Career Centers and remained active participants during the recession.	Lack of vacancies precluded employment entry for many. Entries declined as the unemployment rate rose.	VETS has encouraged referral of unemployed veterans to WIA training and to the WIA OJT initiative.
	Result	60.00%	62.50%	58.70%	46.20%	--	--	--			
	Status	Y	Y	N	N	--	--	--			
Percent of veteran participants employed in the first quarter after exit still employed in the second and third quarters after exit	Target	81.00%	80.00%	82.00%	77.80%	71.20%	71.30%	71.70%	The veteran entry to employment rate declined by 21 percent, the employment retention rate only declined by 6%, indicating that those who enter tend to stay.	The downward adjustment of the performance target did not accurately account for the impact of the recession on the retention rate.	VETS' refocusing of the roles of veterans' specialists to increase intensive services and employer outreach is expected to improve the retention of veterans.
	Result	79.00%	81.80%	80.60%	75.50%	--	--	--			
	Status	N	Y	N	N	--	--	--			
Average earnings of veteran participants in the second and third quarters after exit	Target	--	--	\$15,300.00	\$14,356.00	\$16,535.00	\$16,662.00	\$16,884.00	Veterans' wages are relatively stable.	As indicated by the 21 percent decline in the entered employment rate, fewer veterans got jobs.	VETS continues to emphasize the placement of veterans in jobs with long-term career potential.
	Result	--	--	\$16,583.00	\$15,922.00	--	--	--			
	Status	--	--	Y	Y	--	--	--			

Sources: Quarterly Labor Exchange Reporting System reports included in the Enterprise Business Support System and Unemployment Insurance records.

Notes:

Analysis and Future Plans

Wage and Hour Division

In FY 2010, the Wage and Hour Division (WHD) reengineered its Davis-Bacon wage survey process to begin improving the timeliness of its wage determination rates. With respect to highway construction, WHD examined State highway wage determination methodologies and where consistent with WHD's methods, adopted wage rates from surveys conducted by State Departments of Transportation. In 2010, new wage rates from state conducted highway surveys were published for Delaware, Virginia, Maryland, West Virginia, Tennessee, Kentucky, Nevada, and Minnesota. WHD

Strategic Goal 1

also implemented pilot wage surveys of building and heavy construction in the States of North Carolina, South Carolina, Wyoming, Montana, Maine, Vermont, New Hampshire, West Virginia, Oklahoma, and Nebraska. Under these pilot surveys, WHD reduce the survey size by concentrating on only two construction types, building and heavy, as opposed to all four construction types (building, heavy, highway, and residential). WHD also used contractor staff to do all mailing, imaging, data collection and data entry. This shift in tasks allowed WHD regional survey staff to focus on data analyses and data clarification as soon as data was received from contractors rather than waiting until the final data collection end date. By clarifying the data soon after receipt, WHD significantly reduced the time spent in this survey phase and increased the accuracy because submitting contractors could be contacted immediately after they submitted their payment data. This reduced survey time also reduced the time spent in the data verification process, particularly on-site verification as contractor records were readily available and on-site was being conducted six to ten months after cut-off date rather than two to five years later. WHD will implement a pilot program for residential construction in FY 2011 with planned residential surveys in the State of Ohio, Wisconsin, Indiana, and Pennsylvania. The pilot program will focus on more direct contact with contractors and interested parties to increase participation which has always been the primary problem with residential surveys.

WHD - Issue timely and accurate prevailing wage determinations

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of Davis-Bacon wage rates that are three years old or less	Target	--	--	--	--	Base	75.00%	80.00%	WHD implemented a re-engineered survey process for DBRA surveys. For highway construction, this included considering State determined highway rates where the states have a supportable methodology.	WHD concentrated its reengineering efforts on building, heavy, and highway. Residential wage surveys continue to be out-of-date.	A pilot program for residential construction will begin in FY 2011.
	Result	--	--	--	--	72.00%	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Wage Determination Generation System (WGDS)

Notes:

Analysis and Future Plans

Office of Disability Employment Policy

ODEP will continue its Employment First initiative in FY 2012, developing Federal and state models of excellence for alignment of Federal and state policy and funding in support of employment first policies that lead to integrated employment in the community for individuals with the most significant disabilities. The initiative will fund efforts to facilitate and document systems change leading to increased choice in employment for such individuals. The initiative places ODEP in a leadership role as a catalyst for change in this area.

Strategic Goal 1

Women's Bureau

In FY 2010, the Bureau, as a member of the National Equal Pay Enforcement Task Force, worked with the DOL Office of Federal Contract Compliance (OFCCP), the Equal Employment Opportunity Commission (EEOC), the Department of Justice (DOJ), and the Office of Personnel Management (OPM) to better understand the pay gap and to improve enforcement efforts through data collection and education of workers and employers. The Bureau funded a year-long comparative research study on the occupational progression of African American women to identify new issues facing this population and a year-long baseline research study on the occupational progression of Latinas in the U.S.

In FY 2011, the Bureau hosted an Equal Pay Research Summit to gather information to identify current research and data gaps in equal pay, best approaches to information gathering and current state-level best practices on ensuring equal pay. The Bureau will assess/revise its educational tools, materials and publications to both educate employees on their rights and employers on their obligations related to equal pay. Equal pay publications for employees and employers, as well as an overall background report will be issued. These publications will be shared with the National Equal Pay Enforcement Task Force and will be disseminated through a national outreach effort and regional equal pay events. The Bureau will also begin two research studies on the occupational progression of Native American and Asian American women.

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

VETS – “Assessment of Veteran Outcomes and Service Provider Skills,” February 2010 (SRA International)	
Relevance: Four surveys and two on-line discussion sessions were conducted to identify the knowledge, skills and abilities (KSAs) of DVOP specialists and LVER staff members that are key to assisting veteran participants at One-Stop Career Centers to achieve successful employment outcomes.	
Findings and Recommendations: • DVOP specialists require full proficiency on 11 KSAs prior to entry. • LVER staff members require full proficiency on 12 KSAs within one month of entry. • Both the DVOP and LVER proficiencies required at entry focus on communication. • Courses provided by the National Veterans’ Training Institute (NVTI) appear to emphasize the intermediate level of proficiency. • Because of the geographic and cost barriers to participation in NVTI training, distance learning strategies should be expanded to leverage NVTI training. • Since achievement of full proficiency may rely more on experience than training, establishing “communities of practice” could enhance this experiential learning. • The KSAs required at full proficiency at or near entry are suitable to be applied for recruiting and selecting candidates for DVOP specialist and LVER staff positions.	Next Steps: • Continue to expand the amount of NVTI course content that is disseminated through distance learning approaches. • In conjunction with NVTI training and distance learning, explore the establishment of communities of practice for experiential learning. • Encourage the adoption by State Workforce Agencies of the KSAs required at or near entry for recruiting and selecting DVOP specialists and LVER staff members.

Strategic Goal 1

Additional Information: Contact Patrick Hecker: Hecker.Patrick@dol.gov (202) 693-4708

WHD – “Project Section and Starts Are Influenced by Certain Federal Requirements and Other Factors” and “Officials' Views Vary on Impacts of Davis-Bacon Act Prevailing Wage Provision,” both in February 2010 (Government Accountability Office)

Relevance:

Findings and Recommendations:

- The Government Accountability Office (GAO), in report no. GAO-10-383 stated that four agencies, the Departments of Commerce, Energy, and Housing and Urban Development, and the Environmental Protection Agency, indicated delays in the timing of certain Recovery Act projects related to the application of the Davis-Bacon Act prevailing wage requirements. Report GAO-10-421 stated that Federal, state, and local officials involved with the 40 Recovery Act programs that are newly subject to Davis-Bacon requirements differed on whether those requirements would increase program costs. GAO found that these officials generally did not expect Davis-Bacon requirements to inhibit their ability to achieve Recovery Act and program goals.
- There were no recommendations for WHD.

Next Steps:

- None

Additional Information: Report GAO-10-383 is accessible at <http://www.gao.gov/new.items/d10383.pdf> and report GAO-10-421, at <http://www.gao.gov/highlights/d10421high.pdf>.

Outcome Goal 1.2—Assure skills and knowledge that prepare workers to succeed in a knowledge-based economy, including in high-growth and emerging industry sectors like “green” jobs

Analysis and Future Plans

Employment and Training Administration

Through investments in youth education and training programs under the WIA Youth formula program, Job Corps, and YouthBuild grants, the Department worked to ensure that workers get the skills and knowledge needed to prepare them to succeed in a knowledge-based economy, including in high-growth and emerging industry sectors like “green” jobs. The Job Corps, WIA Youth, and YouthBuild programs exceeded their degree or certificate attainment targets, while the Job Corps and WIA Youth programs fell short of their target for the placement in employment, education, or training. The unprecedented high unemployment rates and low employment rates for youth likely contributed to DOL’s lower results on the placement measure. The placement result mirrors both trends in the national economy. The FY 2010-2012 targets are based on a methodology developed by DOL for setting national performance targets using regression analysis. This econometric model uses program results from the prior year, current labor market conditions and individual characteristics to correct for the effects of the business cycle and labor market conditions on the outcomes of employment and training programs, producing targets that objectively reflect the impact of the economic environment on program performance.

The first full cycle of the 2007 YouthBuild grantees was completed in PY 2009 and the YouthBuild program was able to achieve its goal of establishing a baseline for the degree or certificate measure. To continue the upward trend for this measure, the Department provided a “coach” (a youth development content expert) to each of over 200 YouthBuild grantees to provide grantees with phone and on-site coaching services. Targets for FY 10 -12 are based on the aforementioned regression analysis methodology.

Job Corps achieved two of its three performance goals for PY 2009. Placement of Job Corps graduates and former enrollees in employment, the military or post-secondary education continued to mirror the national employment picture; the placement result was nine points below the 75 percent target. Certificate attainment outcomes, however, reversed a three-year decline and literacy/numeracy gains rose six points. It appears that the strategic focus on academics had a positive impact.

Strategic Goal 1

ETA - Increasing skill attainment, certification and work preparedness of individuals served through a range of programs to prepare them to compete in a knowledge-based economy featuring emerging industries such as green jobs

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of participants entering employment or enrolling in post-secondary education, the military or advanced training/occupational skills training in the first quarter after exit (WIA Youth)	Target	60.00%	61.00%	59.40%	58.00%	53.10%	53.30%	53.60%	In response to GAO report 08-013, ETA provided guidance on serving the youth most in need and emphasizing summer employment opportunities and other work experiences.	Record high unemployment and low employment rates for youth made finding jobs hard for participants. In many areas of the country, the local economic situation made placement more difficult.	DOL will issue guidance to encourage grantees to focus programs on work experience and skills training leading to credentials and career pathways in high demand industries.
	Result	60.00%	62.00%	60.60%	53.70%	--	--	--			
	Status	Y	Y	Y	N	--	--	--			
Percent of participants who earn a diploma, GED, or certificate by the end of the third quarter after exit (WIA Youth)	Target	40.00%	45.00%	50.90%	47.90%	55.40%	54.70%	53.40%	In response to GAO report 08-013, ETA provided guidance on serving the youth most in need, emphasizing summer employment opportunities and other work experiences.	States indicate a need for additional guidance for credential attainment in high demand industries, such as health care.	DOL will issue program guidance on increasing credential, degree, and certificate attainment during Program Year 2010.
	Result	44.00%	57.00%	53.90%	52.90%	--	--	--			
	Status	Y	Y	Y	Y	--	--	--			
Percent of Job Corps participants entering employment or enrolling in post-secondary education and/or advanced training/occupational skills training in the first quarter after exit from the program	Target	87.00%	82.00%	74.00%	75.00%	65.30%	66.30%	67.30%	Placement of Job Corps students into post-secondary education or advanced skill training rose from 14 percent in PY 2008 to 16 percent in PY 2009.	Although the overall placement rate remained steady at 66 percent in PY 2008-2009, placement rates and initial wages were lower in many areas of the country.	To improve outcomes, JC aligned career technical training with industry-based standards and standards-based instruction. Each Region assessed and submitted results and plans for PY 10 adjustments.
	Result	74.00%	73.00%	66.00%	65.80%	--	--	--			
	Status	N	N	N	N	--	--	--			
Percent of Job Corps participants who earn a diploma, GED, or certificate by the end of the third quarter after exit	Target	65.00%	64.00%	54.00%	55.00%	56.00%	57.00%	58.00%	Utilization of quality on-line High School Diploma programs and well-established local partnerships contributed to the increase in credential attainment rates.	Increases in career technical training completions were limited due to the introduction of comprehensive curriculum revisions over the past two years	Work closely with other Federal Agencies to provide training and career pathways and expand links with community colleges, registered apprenticeships, employers and local service providers.
	Result	57.00%	53.00%	55.00%	60.60%	--	--	--			
	Status	N	N	Y	Y	--	--	--			
Percent of participants who earn a diploma, GED, or certificate by the end of the third quarter after exit (YouthBuild)	Target	--	--	--	Base	60.70%	60.00%	58.50%	Grantee training on improving GED preparation; trainer certification in industry-recognized construction curricula and training provided to integrate green building concepts into classroom curricula.	Numerous grantees have not yet been successful in integrating academic and occupational skills training.	Continue to focus technical assistance to build the capacity of programs to integrate classroom and occupational skills training.
	Result	--	--	41.00%	58.00%	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Job Corps – Job Corps Management Information System. WIA Youth – Annual State WIA performance reports (ETA-9091) and quarterly reports (ETA-9090). YouthBuild – grantees’ quarterly reports.

Notes: “Participants” in Job Corps’ first measure includes graduates and former enrollees, but not “uncommitted” – which are those students in the program for less than 60 days or who exit because of the zero tolerance policy.

Analysis and Future Plans

Office of Disability Employment Policy

In FY 2010 and FY 2011, ODEP developed successful physical and programmatic universal design strategies designed to increase access to and use of WIA One-Stop Career Center services by all customers, including adults and youth with disabilities. In FY 2012, ODEP and ETA, through continuation of the Disability Employment Initiative and other collaborative work, will develop and issue joint policy guidance for the public workforce system. ODEP, in partnership with ETA and the Office of the Assistant Secretary for Administration and Management (OASAM), plans to conduct a survey that provides a baseline assessment of the physical, programmatic and communications accessibility of the One-Stop Career Center system in a related initiative. This baseline information will be invaluable in guiding targeted efforts to enhance accessibility on an as needed basis.

Women's Bureau

In FY 2010 the Women's Bureau hosted a series of seven (7) teleconferences for workforce professionals designed to offer information and an exchange of ideas to help better connect women to green jobs training and green employment. The Women's Bureau conducted nine green jobs training projects throughout the country. These projects were developed in conjunction with experts in green industries to serve as models for engaging and preparing women for a variety of high-growth and emerging green jobs over the next decade.

In FY 2011, the Bureau will publish "*Why Green Is Your Color: A Woman's Guide to a Sustainable Career*" to increase women's access to high-growth and emerging industry occupations in the green jobs sector nationwide. Data collected from the nine green jobs training projects conducted in FY 2010 will be analyzed, and a report prepared that will be shared with the workforce development community, and education and training providers. The report will contain model practices to help workforce professionals and educational entities prepare women for jobs in the emerging green economy.

Program Evaluations and Audits

No relevant independent evaluations or audits were completed in FY 2010.

Outcome Goal 1.3—Help workers who are in low-wage jobs or out of the labor market find a path into middle class jobs

Analysis and Future Plans

Employment and Training Administration

Although news from the past program year showed that the economy began adding jobs, demand far outpaced supply. This mismatch between the number of workers looking for jobs and the number of job openings remained the single biggest challenge to successful job placement. The inverse statistical correlation of local unemployment rates and entered employment rates for participants of publicly-funded workforce programs has long been established. As the national unemployment rate increased, program exiters took longer to find jobs. As a result, only 1 out of 7 ETA programs with measures included in this goal met the entered employment rate target during the past year.

While training cannot create jobs, the Department will continue to stress the need to train individuals for jobs and occupations in demand. Throughout the year, the program worked to accurately determine which sectors and career opportunities were gaining strength. Critical investments were made to further understand promising reemployment approaches such as on-the-job training and career pathways. Information on these and other effective strategies for reemployment will be shared with the workforce system in the coming year. The agency also issued new guidance to the workforce system to support individuals in gaining credentials that have labor market value. Looking forward, determining how to invest precious training funds will remain a top priority for the program in the coming year and throughout the economic recovery.

In the coming program year, DOL will focus on assisting participants with entry to career pathways that lead to middle-class jobs and strengthening strategic partnerships with businesses and the education community. Workforce solutions will be developed within the context of state and regional economies. DOL will continue to target placement of workers in high-demand sectors and occupations, and to emphasize occupational training and adult education – especially in green and health care occupations.

Apprenticeships are tied to employment and therefore have declined in number with the nation's widespread job losses over the past few years – especially since a large majority of apprentices are in the construction and manufacturing industries, both of which have been severely affected by the recession. On a positive note, over 100,000 new apprentices nationwide participated in registered apprenticeship programs in FY 2010. This equates to over 100,000 individuals entering jobs or returning to work since registered apprenticeship is an “earn while you learn” model that combines employment with on-the-job learning and related technical instruction.

Reemployment (in suitable jobs) is one of the underlying purposes of the UI program. Although the UI program does not provide reemployment

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services directly, many of its payment eligibility provisions, such as work search and Employment Service registration requirements, are designed to promote reemployment.

In the year ending June 30, 2010, 53.0 percent of UI claimants were reemployed in the calendar quarter following the quarter in which they received their first UI payment. This performance was below the FY 2010 target of 58.6 percent, and represents a decrease of 1.8 percentage points from the FY 2009 level. Analysis of the state reemployment data indicates that performance is significantly influenced by factors outside the control of the state agencies administering the UI program, most notably economic conditions, measured by the Total Unemployment Rate (TUR). Regression analysis indicates that the reemployment rate declines by about two percentage points for every one point rise in the Unemployment rate, and so the 1.8 point decline is quite consistent with the 1.2-percentage point rise in the TUR. The administration expects that the TUR will fall to 8.8 percent from the 9.7 percent experienced during the year ending June 30, 2010, and so reemployment is expected to rebound to 56.4 percent by FY 2012. The measure is also sensitive to the percentage of UI claimants who have no expectation of recall to their previous employment. This group, which increases during economic downturns, has a reemployment rate significantly below the rate for claimants on temporary lay-off.

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ETA - Provide workers with the resources necessary to increase their likelihood of obtaining middle class jobs

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of participants employed in the first quarter after exit (Apprenticeship)	Target	--	--	--	Base	66.50%	63.10%	63.60%	In FY 2010, over 50,000 program participants completed their apprenticeships and received a nationally recognized credential that is portable, stackable, and provides a pathway to the middle class.	Employment cutbacks, reduced hours, high unemployment rates, and lack of work projects (particularly in building trades) negatively impacted results.	ETA will continue technical assistance strategies to provide support to sponsors to increase the numbers of apprentices who complete their programs and then maintain employment.
	Result	--	--	--	70.20%	63.60%	--	--			
	Status	--	--	--	--	N	--	--			
Percent of participants employed in the first quarter after exit (Employment Service)	Target	64.00%	61.00%	60.30%	56.50%	46.20%	46.60%	47.40%	The program served over 22 million. Many participants were referred to more intensive interventions, including WIA and TAA training. Over 6.5 million participants found work.	Increased layoffs and general employment instability accounted for the decline in the proportion of participants entering employment.	DOL will share promising approaches; encourage practices that help workers back to work; and encourage states to connect systems to target reemployment services to UI claimants.
	Result	60.00%	64.00%	59.70%	47.80%	--	--	--			
	Status	N	Y	N	N	--	--	--			
Percent of participants employed in the first quarter after exit (WIA Adult)	Target	76.00%	71.00%	66.20%	65.50%	52.90%	53.10%	53.70%	While the rate is below 60%, the number entering employment grew 27% from PY 2008. ARRA funding allowed One-Stop Centers to deliver intensive training services to more workers.	Unemployment rose from 4.8 prior to the downturn to over 9 % for much of the past year. Even as the economy began adding jobs at the end of the year, demand far outpaced supply.	Promote career pathway approaches that satisfy specific skill demands of local employers and the remedial education needs of the local population, and that make extensive use of wrap-around services.
	Result	70.00%	70.00%	68.10%	54.00%	--	--	--			
	Status	N	N	Y	N	--	--	--			
Percent of participants employed in the first quarter after exit (WIA Dislocated Worker)	Target	84.00%	79.00%	71.00%	66.30%	49.30%	49.70%	50.60%	ARRA provided increased resources and staff capacity to One-Stop Career Centers. The numbers of dislocated workers who entered employment after receiving program services rose 30% from a year ago.	As described in the WIA Adult section, labor market conditions reduced the number of job options available to program participants.	
	Result	78.00%	73.00%	67.60%	51.00%	--	--	--			
	Status	N	N	N	N	--	--	--			
Percent of participants employed in the first quarter after exit (WIA Indian and Native American Program)	Target	54.50%	61.00%	64.30%	60.20%	53.40%	54.00%	55.30%	Increasing the total number served and providing TA to help grantees tailor training opportunities to the realities of the local economy, enhance partnerships, and update info collection systems.	Limited employment opportunities and economic development on and/or near Indian reservations and in Native American communities significantly contributed to the decrease in the entered employment rate	Continue emphasizing occupational training and adult education.
	Result	60.00%	68.00%	62.60%	56.00%	--	--	--			
	Status	Y	Y	N	N	--	--	--			

Strategic Goal 1

ETA - Provide workers with the resources necessary to increase their likelihood of obtaining middle class jobs

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of participants employed in the first quarter after program exit (WIA National Farmworker Jobs Program)	Target	85.00%	77.00%	73.80%	72.20%	79.40%	79.70%	80.40%	Emphasized outreach and recruitment to farmworkers and employers in emerging industries to secure employment opportunities for farmworkers in emerging industry sectors		Focus on employment opportunities in emerging industries and occupations by emphasizing occupational training and adult education, especially in green and health care occupations.
	Result	80.00%	78.00%	80.30%	80.70%	--	--	--			
	Status	N	Y	Y	Y	--	--	--			
Percent of UI claimants reemployed by the end of the first quarter after the quarter in which they received their first payment.	Target	Base	65.00%	65.20%	59.00%	58.60%	54.40%	56.40%	In CY 2009, 30 states met their Acceptable Level of Performance (ALP). ALPs are developed for each state based on their total unemployment rate and the percent of job-attached UI claimants.	Although the target was adjusted, continued adverse labor market conditions negatively affected performance.	
	Result	62.40%	65.10%	62.50%	55.00%	53.00%	--	--			
	Status	--	Y	N	N	N	--	--			

Sources: WIA Adult and Dislocated Worker – Annual State WIA performance reports (ETA-9091) and quarterly reports (ETA-9090). INAP – grantee records. Apprenticeship – Registered Apprenticeship Partners Information Data System (RAPIDS). MSF – WIA Standard Participant Record (WIASPR) and Program Status Summary Reports (ETA-9095). UI – State ETA 9047 reports.

Notes: UI Data are for claimants who received their first payments between April 2010 and March 2011, who were reemployed between July 2010 and June 2011. In FY 2009, the Office of Apprenticeship converted to the Common Measures to track the outcomes of apprentices that either have completed or cancelled from the program. Currently 32 states enter data on registered programs and apprentices into the program's case management system, RAPIDS.

Analysis and Future Plans

Veterans' Employment and Training Service

VETS assesses the performance of the One-Stop Career Center system on behalf of disabled veterans by applying three common measures: the entered employment rate, the employment retention rate and the average earnings. Under Goal 1.1, VETS assesses the outcomes for all veterans by applying the same measures. For PY 2009, all three of these indicators for disabled veterans were sharply impacted by the severe recession in progress at the time that the outcomes were measured. The entered employment rate for disabled veterans declined by 21 percent from the prior year, which is identical to the decline experienced by all veterans. The declines in the retention rate and average earnings for disabled veterans were much less severe, at five percent and two and one-half percent respectively compared with the prior year. The rates of decline in these two measures for disabled veterans were slightly lower than the corresponding rates of decline for all veterans.

For disabled veterans, VETS has encouraged front-line service delivery staff to respond in two principal ways to assist disabled veterans to counter the severe constraints imposed by current economic conditions. First, VETS has encouraged a refocusing of the responsibilities of DVOP specialists and LVER staff. DVOP specialists have been encouraged to place greater emphasis on the delivery of intensive services (e.g., counseling,

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assessment, lifelong learning skills and referral to training), with a priority for disabled veterans. This is intended to help disabled veteran jobseekers to be better prepared to compete for the scarce job openings in the current labor market. LVER staff members have been encouraged to place greater emphasis on employer outreach, which is intended to expand the number of job openings available with employers who are favorably inclined toward veterans and disabled veterans. Second, some disabled veterans are referred to One-Stop Career Centers as part of their participation in the Vocational Rehabilitation and Employment (VR&E) Program, which is sponsored by the Department of Veterans Affairs (VA). For those disabled veterans, DVOP specialists coordinate closely with their VA counterparts to identify other opportunities, such as eligibility for VA sponsored work experience, to enhance their employability. In addition to adapting its service delivery strategies for disabled veterans, VETS also has taken steps to meet the unique needs of homeless female veterans and homeless veterans with families by adding a specific component to HVRP for this target group, starting with PY 2010. For the three performance measures under this goal that relate to disabled veterans, VETS has projected the performance targets for PY 2010 by applying the regression adjusted methodology developed by ETA, which seeks to account for the impact of economic conditions on performance outcomes.

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VETS - Improve veterans' access to training and employment opportunities

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of disabled veteran participants employed in the first quarter after exit	Target	55.00%	56.00%	58.50%	51.40%	41.70%	42.10%	42.90%	Disabled veterans accessed One-Stop Career Centers and remained active participants during the recession.	As for all veterans, as unemployment rose, lack of vacancies precluded entry to employment for many.	Refocusing of veterans' specialists roles to increase intensive services and referral of disabled veterans to WIA training and to a WIA OJT initiative should improve outcomes.
	Result	55.00%	58.40%	55.80%	43.90%	--	--	--			
	Status	Y	Y	N	N	--	--	--			
Percent of disabled veteran participants employed in the first quarter after exit still employed in the second and third quarters after exit	Target	79.00%	79.00%	81.00%	76.90%	70.80%	70.90%	71.30%	While the percent decline in the rate of entry for disabled veterans was identical to that for all veterans (21%), the decline in the retention rate was even lower than for all veterans (5% vs. 6%).		VETS' refocusing of the roles of veterans' specialists to increase intensive services and employer outreach is expected to improve the retention of disabled veterans.
	Result	78.00%	81.10%	79.70%	75.80%	--	--	--			
	Status	N	Y	N	N	--	--	--			
Average earnings of disabled veteran participants in the second and third quarters after exit	Target	--	--	\$15,500.00	\$14,743.00	\$16,969.00	\$17,096.00	\$17,318.00	Wages for disabled veterans were relatively stable.	Fewer employment opportunities were available for disabled veterans at prevailing wages.	VETS continues to work with VA in seeking to place disabled veterans in positions with the highest possible career potential.
	Result	--	--	\$16,873.00	\$16,449.00	--	--	--			
	Status	--	--	Y	Y	--	--	--			
Percent of female HVRP participants employed in the first quarter after exit	Target	--	--	--	--	--	Base	TBD			VETS implemented a new HVRP component dedicated to serving female veterans and veterans with families.
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Percent of TAP participants who indicate the workshop prepared them for gainful employment	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Quarterly Labor Exchange Reporting System reports included in the Enterprise Business Support System and Unemployment Insurance records.

Notes: Net Cost reflects the full cost of each program as assigned by DOL entities to the Department's outcome goals less any exchange revenue earned. Full cost consists of (a) both direct and indirect costs, and (b) the costs of identifiable supporting services provided by other segments within DOL and by other Federal agencies.

Analysis and Future Plans

Office of Disability Employment Policy

With respect to the employment of transition-age youth, ODEP will build on its Guideposts for Success series, lessons learned from its Individual Learning Plan research on postsecondary career goal outcomes, and information gleaned from ODEP's demonstration apprenticeship grants. ODEP

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will finalize development of policy and strategies to increase the staff expertise and provide a youth-oriented, youth-concentric soft skills curriculum to build capacity within youth-service organizations. In addition, ODEP will collaborate with OFCCP to develop technical assistance tailored to Federal contractors' affirmative action obligations with respect to hiring individuals with disabilities. ODEP will launch a Federal Community of Practice to implement Executive Order 13548, among other tools and strategies to increase the representation of individuals with disabilities in the Federal workforce.

Women's Bureau

In FY 2010, the Women's Bureau continued its emphasis on helping women veterans who are experiencing homelessness. The Bureau created the publication *Trauma-Informed Care for Women Veterans Experiencing Homelessness: A Guide for Providers*, to better equip service providers with a deeper understanding of the unique experiences and needs of female veterans. Additionally, a "Women Veterans Who are Experiencing Homelessness Summary Report" was created. This report included information from listening sessions, identified the needs of homeless women veterans and explored factors that lead to homelessness as well as issues regarding reintegration into the workforce and how to improve services and resources for this population.

In FY 2011, the Bureau will conduct four regional "Stand Down" events for women veterans. Additionally, case studies, a resource guide for transitioning veterans, and a consolidated resource guide that includes research findings, local resources, publications, and best practices, will be produced. A year-long research project will also be conducted to identify factors leading women veterans into homelessness.

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

"Homeless Veterans Reintegration Program Effectiveness Study," December 2009 (ICF International)	
Relevance: USDOL's Center for Performance Planning and Results (CPPR) in the Office of the Assistant Secretary for Administration and Management (OASAM) and VETS contracted with the ICF Team to examine: • How well HVRP is accomplishing its mission and meeting its goals; and • Program data and trends to help inform future policy and programmatic decisions within VETS The study specifically focused on four main issues: • How has the introduction of Common Measures reporting impacted grantee performance? • How do DVOP specialists and LVERs influence HVRP grantee processes, performance, and outcomes? • How do performance results differ across grantee types and characteristics? • What are the characteristics of HVRP participants that contribute to success in the program?	
Findings and Recommendations:	Next Steps:

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- Grantees did not report a large burden or difficulty associated with Common Measures. The greatest impact of Common Measures on grantee performance was how key Common Measures assess and reflect a grantee's employment and retention outcomes.
- As grantee performance increases, the perceived negative impact of Common Measures decreases, but this may be the result of greater understanding of the reporting system.
- Most grantees rated DVOPs and LVERs as somewhat or very effective, and the vast majority noted that their expectations for DVOPs and LVERs were being met either moderately or completely; however there is a reported lack of clarity about the specific roles and responsibilities of DVOPs and LVERs relative to HVRP grantees, their programs, and their participants.
- Urban or non-urban designation (funding category) does not predict performance, but no new grantees in this study were rated as high performing grantees.
- Performance (low to high) was almost evenly distributed across urban and non-urban grantees
- The majority of high performing grantees were non-profit secular organizations.
- High performing grantees were most often long-term participants in the program; however years of total experience was not a strong predictor of grantee performance.
- Since a number of grantees reported that the three-year cycle with annual reviews is burdensome, particularly for smaller organizations, VETS may want to investigate other options for grant-year cycles.

Selecting Grantees

- VETS will identify the factors that influence success to refine the program to ensure the greatest success of grantees and the best use of funds.
- VETS will continue to monitor the changing characteristics of homeless veterans seeking services through HVRP to ensure that the program is responsive to changing needs.

Grantee Monitoring

- VETS will provide clear training on HVRP reporting systems and will provide follow-up technical assistance available to all grantees as needed.
- VETS is exploring alternate strategies to achieve a better balance between demanding high entered employment rates and serving all homeless veterans
- VETS will implement and award a performance-based additional option year to qualified grantees.

Supporting Grantees

- VETS will provide greater clarification to both states and to HVRP grantees about the performance expectations and the roles and responsibilities of the DVOPs and LVERs.
- VETS will examine the content and impact of the training and technical assistance and also evaluate the awareness of grantees about this resource.

Additional Information: Contact Kenneth Fenner at Fenner.Kenneth@dol.gov or (202)693-4728

Office of Inspector General (OIG) Audit of VETS Homeless Veterans Reintegration Program (HVRP), September 2010 (OIG Report No. 06-10-003-02-001)

Relevance: The OIG conducted an audit of VETS HVRP Program to answer the question: Did VETS' HVRP effectively meet the employment needs of homeless Veterans?

Findings and Recommendations:

- Develop and implement procedures at the national and regional levels requiring greater oversight of grantees.
- Ensure underperforming grantees are properly placed on a CAP, and adequately monitored.
- Develop and implement a standardized methodology for each Grant Officer's Technical Representatives (GOTR) to use in performing grant-level monitoring of operations and performance.
- Develop and implement a reliable primary reporting system to ensure the accuracy and integrity of performance reporting.

Next Steps:

- VETS has issued guidance that HVRP grantees awarded grants in Program Year 2009 and 2010 are to meet 90% of planned cumulative quarterly goals for federal expenditures, enrollments, placements into employment, and training by the end of the second quarter. Grantees that do not achieve at least 75% of their planned cumulative quarterly goals must provide the GOTR with a Corrective Action Plan (CAP) that: a) details actions to achieve no less than 90% of cumulative planned performance; and, b) includes a timeline clearly indicating when the results of these corrective actions will be realized.
- VETS National Office has issued guidance to regional staff directing that if an eligible grantee for a second or third year award has missed its technical

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	performance and/or financial goals, as described above, the GOTR is to initiate a CAP before recommending second or third year funding, and is to designate that the continuation is “at high risk.” • VETS National Office will issue guidance requiring GOTRs to: a) submit each quarter a standardized Quarterly Desk Audit Review for each grant; and, b) provide first level approval of all grantee quarterly reports, to include any required CAPs. • VETS has activated the Veterans Employment and Training Operations and Programs Activity Report (VOPAR), an electronic reporting system.
Additional Information: Contact Kenneth Fenner at Fenner.Kenneth@dol.gov or (202) 693-4728	
Office of Inspector General (OIG) Audit of VETS Transition Assistance Program (TAP), September 2010 (OIG Report No. 06-10-002-02-001)	
Relevance: Due to the severe economic recession, the unemployment rate of separating and retiring military personnel rose from 9.8 percent in 2009 to 11.8 percent in 2010. The OIG conducted an audit of VETS’ TAP to answer the question: Did VETS’ TAP have effective management controls to ensure it provided employment assistance to Veterans?	
Findings and Recommendations: • Develop and implement procedures to report and document participant attendance, a monitoring process, and controls for contract activities and administration. • Ensure VETS personnel adequately monitor TAP workshops • Retain participant information needed to measure and report outcome goals. • Establish a new MOU with its partner agencies • Revise methods for contractor cost justification cost comparisons. • Recover unsupported and questioned contract costs.	Next Steps: • VETS will continue to report participant attendance in VOPAR and distribute Participant Critique Forms. VETS will work with DoD to develop processes to further document attendance credit for Service Members who complete full 2.5 day employment workshop, and to collect and collate participant critique forms. • VETS will establish standard forms and policy for monitoring TAP Employment Workshops and collecting monitoring reports in VOPAR. • Though currently there are no outcome goals for the TAP Employment Workshop, DOL is working toward providing and measuring follow-up services to Transitioning Service Members, in conjunction with DoD. • In conjunction with the TAP reengineering, VETS will work with the partner agencies to revise and establish a new MOU that covers the TAP Employment Workshop. • The DOL Office of Procurement Services Contracting Officer and the COTR for the TAP Employment Workshop Facilitation contract have, since April 2010, implemented more stringent management controls for contract administration. This includes revised methods for cost justification. • The VETS COTR for the TAP Employment Workshop Facilitation contract is working closely with the Contracting Officer to identify any unsupported and questioned contract costs.
Additional Information: Contact Timothy Winter at winter.timothy@dol.gov or (202) 693-4705	

Outcome Goal 1.4—Help middle-class families remain in the middle class

Analysis and Future Plans

Employment and Training Administration

It is the Department's goal to help keep middle-class families in the middle-class. Over 150,000 exiters were still employed nine months after completing program services and gaining employment through the WIA Dislocated Worker program, NEG's, and TAA. TAA achieved its retention target, while the WIA Dislocated Worker and National Emergency Grant programs fell slightly short. Throughout the year, high unemployment and mass layoff events contributed to significant demand for employment and training services.

During the past year, the Department developed and disseminated career and workforce information to the workforce development system, partner agencies and the public through national electronic tools. ETA believes that improved workforce information and job assessment tools are critical in creating a match between jobseekers and those employers willing to hire. ETA developed and disseminated O*NET occupational competency profiles, coordinated workforce information grants to states, and provided technical assistance on the analysis and strategic use of labor market information. To improve the Department's ability to provide information with the public, ETA launched the worker reemployment website that provides employment, training, and information financial assistance for unemployed workers including those who have been recently laid-off workers. The site also includes resources for getting immediate help with unemployment insurance, healthcare, and other financial needs; job searching and resume tips; changing careers and understanding transferable skills; and upgrading skills through education and training.

DOL plans to provide additional guidance and training for State staff who deliver services to trade affected workers to reflect changes to the program. TAA developed the capability to process the increased flow of petitions. Through refining and modifying those changes to reflect continued petition workload, the Department will continue to manage petition processing workload within the 40 day processing time allowed for each investigation. In addition, DOL will continue its effort to monitor quality in the petition processing area to ensure that petitions are processed accurately and effectively.

During the coming year, ETA is continuing to bolster the workforce information to aid job matching. In PY 2009, mySkillsmyFuture.org was released. The website helps laid-off workers and those changing careers find new occupations to explore. Users can identify occupations that require skills and knowledge similar to their current or previous job, learn more about these suggested matches, locate local training programs, and/or apply for jobs. Two enhancements are being planned this year to allow the selection of additional worker preferences as well as provide access to information in Spanish. For those without a prior work history, the Department is developing a career assessment tool called Career Profiler.

For the TAA programs, ETA will continue to focus on obtaining timely and accurate data. The 2009 Amendments required an extensive revision to the data collection component of State reporting. In FY 2010, those changes were implemented and the transparency and accountability they foster will

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continue to result in a greater focus on meeting performance goals by State Workforce Agency staff and provide more reliable data for program monitoring and provision of technical assistance.

ETA - Ensure that those workers adversely affected by foreign and domestic economic conditions can remain in the middle class

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of participants employed in the first quarter after exit still employed in the second and third quarters after exit (WIA Dislocated Worker)	Target	90.00%	89.00%	84.70%	84.00%	78.00%	78.00%	78.30%	Worker re-training in the midst of substantial layoffs nationwide appears to have helped many individuals gain employment and, subsequently, retain employment.	The labor market mismatch between the number of workers looking for jobs and the number of job openings remained the single biggest challenge to placement.	DOL will help states improve their use of labor market information, skills assessment tools, and social media technologies to enhance the quality of job matching for both employers and jobseekers.
	Result	88.00%	87.00%	86.00%	79.70%	--	--	--			
	Status	N	N	Y	N	--	--	--			
Percent of TAA participants employed in the first quarter after exit still employed in the second and third quarters after exit	Target	85.00%	85.00%	91.00%	87.50%	83.30%	82.90%	83.20%	Positive outcomes were due in part to both increased focus on co-enrollment with WIA to provide wrap around services to TAA participants and more effective case management.		
	Result	90.00%	88.00%	90.00%	88.00%	86.20%	--	--			
	Status	Y	Y	I	Y	Y	--	--			
Average petition processing time in days (TAA)	Target	--	--	--	--	Base	40.0	40.0	DOL continues to reduce the extensive petition backlog created by program expansion under the 2009 amendments, and significant improvements were made between the first and fourth quarters.		
	Result	--	--	--	--	142.0	--	--			
	Status	--	--	--	--	--	--	--			
Percent of participants employed in the first quarter after exit still employed in the second and third quarters after exit (National Emergency Grants)	Target	--	--	--	Base	76.80%	77.10%	77.50%	Reemployment services provided through National Emergency Grants helped individuals secure employment and gain the skills needed to retain employment at levels close to the target set for PY 2009.	Difficult economic conditions and associated layoffs contributed to participants being unable to retain employment even after they were initially hired.	Focus resources on proven activities, such as on-the-job training, that provide participants with the skills needed to obtain and retain middle-class jobs.
	Result	--	--	--	78.50%	--	--	--			
	Status	--	--	--	--	--	--	--			
Percent of TAA petition determinations processed in compliance with established review procedures	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: TAA - Trade Act Participant (TAPR), Quarterly Determinations, Allowance Activities and Employability Services. WIA DW- Annual State WIA performance reports (ETA-9091) and quarterly reports (ETA-9091). NEG - WIA Standardized Record Data.

Notes:

Analysis and Future Plans

Veterans' Employment and Training Service

In FY 2010, one of the two goals was achieved. The percent of USERRA referrals completed within the 60-day target established by the Veterans' Benefits Improvement Act of 2008 (VBIA) surpassed VETS' FY 2010 goal by four percent, as both VETS and the Office of the Solicitor successfully implemented streamlining measures to improve efficiency and effectiveness. However, the percent of USERRA investigations completed within VBIA's 90-day target fell three percent short of VETS' goal for the year because some cases presented unanticipated difficulties.

Compliance assistance efforts will continue to focus on National Guard and Reserve components, because they are the source of most USERRA claims. In FY 2010, for example, claims by National Guard and Reservists accounted for 82 percent of total claims. VETS expects this trend to continue and possibly increase due to continued use of the National Guard and Reserve in America's ongoing wars overseas.

VETS is committed to continuous improvement of its USERRA program, and toward that end conducted a rigorous independent process evaluation using the Lean Six Sigma method. The study was conducted to: help identify ways to meet the statutory requirement to complete investigations within 90 days of a signed complaint; prepare to handle the increased number and complexity of cases arising from the return of significant numbers of service members from Iraq and Afghanistan; and develop a measure of the quality of USERRA investigations.

The study recommended that VETS should make refinements to specific aspects of the USERRA investigation process; reorganize the allocation of workload; assign cases based on the level of complexity and the needs of the case; and, measure the quality of USERRA investigations by applying distinct criteria to cases referred for prosecution and cases not referred for prosecution. The results of this study are being used by VETS to develop other outcome-oriented and quality measures, to be incorporated in performance goals for future years.

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VETS - Reduce employer-employee employment issues originating from service members' military obligations conflicting with their civilian employment

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of USERRA investigations completed within 90 days	Target	--	--	--	--	87.00%	87.00%	87.00%	VETS' focus on expediting USERRA cases in FY 2010 resulted in 99.6% percent of investigations being completed within timeframes agreeable to claimants.	Some cases presented unanticipated difficulties that prevented VETS from reaching its timeliness target.	Enhanced quality assurance reviews of casework, as recommended by an independent Lean Six Sigma evaluation of VETS' USERRA program, will improve case processing and increase performance results.
	Result	--	--	--	86.00%	84.00%	--	--			
	Status	--	--	--	--	N	--	--			
Percent of USERRA referrals completed within 60 days	Target	--	--	--	--	59.00%	60.00%	60.00%	Emphasis on timely action by both VETS and the Office of the Solicitor resulted in improved timeliness for DOL's processing of USERRA referrals in FY 2010 compared to FY 2009.	The number of USERRA referrals settled as a result of DOL action decreased slightly in FY 2010 compared to FY 2009.	Enhanced quality assurance reviews of casework, as recommended by an independent Lean Six Sigma evaluation of VETS' USERRA program, will improve case processing and increase performance results.
	Result	--	--	--	56.00%	63.00%	--	--			
	Status	--	--	--	--	Y	--	--			
Percent of USERRA cases resolved or referred in compliance with standard operating procedures	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: USERRA Information Management System (UIMS)

Notes:

Analysis and Future Plans

Office of Disability Employment Policy

In FY 2011, ODEP conducted research and held a Strategic Roundtable on Aging, Disability and Employment to identify actionable steps that address Federal, workforce systems and employer facilitators and barriers encountered by mature workers with disabilities extending their careers beyond the traditional retirement age, and also conducted related research on effective practices to assist workers with disabilities who have exhausted their unemployment insurance benefits return to work and remain in the middle class. In FY 2012, ODEP will issue policy and practice recommendations for the workforce system based on this research.

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

Strategic Goal 1

ETA – “Co-enrollment Involving Programs Under the Workforce Investment Act Dislocated Worker Formula Grant Program and the Trade Adjustment Assistance Program,” December 2009 (Social Policy Research Associates)

Relevance: This study was designed to establish a universe in which *all* participants in the Trade Adjustment Assistance (TAA) program would be co-enrolled in the Workforce Investment Act (WIA) Dislocated Worker (DW) program for a period, with the assurance that there would thus be no underlying selectivity bias affecting the analysis of co-enrollees’ outcomes

Findings and Recommendations:

- TAA exiters who were co-enrolled in the dislocated worker program are both more likely to enter employment and to retain employment than those who are not co-enrolled.
- In general, the sites agreed that co-enrollment was beneficial for both participants and the programs. In particular, local staff suggested that the most beneficial aspects of co-enrollment for participants are:
 - Rigorous assessment, provision of labor market information, and up-front counseling for deciding between training and job search, and for selecting a training program and provider that is likely to lead to suitable employment;
 - Additional support during training, especially the financial support associated with transportation, child care, and training-related expenses;
 - Placement services after training has ended and follow-up services after participants have been placed into employment; and
 - Requirement to select training programs for the perceived improved likelihood that selected programs will lead to successful employment.
- Two types of participants were singled out by local sites as benefitting the most from co-enrollment: participants in training and participants with limited English proficiency or very low levels of education.

Next Steps:

- This study was conducted prior to the passage of TGAAA which implemented the 2009 Amendments to the Trade Act of 1974. The 2009 Amendments appropriated funds for case management purposes for each state which mitigates the need for co-enrollment services under partner programs addressed in this study. Under the 2002 Amendments, these services could only be obtained through those partner programs at the time of this study.
- While enactment of the 2009 Amendments tends to address the issues identified in this study and preclude the need for additional "next steps", relevant data found in this study will be used for future policy decision making where appropriate.

Additional Information: This study can be found at <http://bostonregion1.workforce3one.org/view/2001002758224083811/info>.

ETA – “National Evaluation of the Trade Adjustment Assistance Program: Characteristics of Workers Eligible Under the 2002 TAA Program and Their Early Program Experiences,” April 2010 (Mathematica Policy Research)

Relevance: This evaluation sought to better understand the characteristics of the population eligible for the 2002 provisions of TAA and its members’ experiences with the program. The report provided policymakers with information that can be used to assess and improve program implementation.

Findings and Recommendations:

- The study found that the characteristics of the TAA eligible population had long tenure at their former employer and likely developed a specialized set of non-transferrable skills. The TAA eligible workers were also older and sometimes less educated than other workers looking for employment. The TAA program was designed to alleviate some of these challenges.
- Half of eligible TAA workers participated in the program. These workers cited training as a key reason for participation. Interest in training greatly exceeded interest in receiving TRA benefits, particularly among younger workers. Among eligible workers that did not

Next Steps:

- This study reflected the TAA program prior to the 2009 Amendments. The provisions enacted in 2009 reflected these findings and significantly expanded training options available to trade affected workers consistent with these findings. At this time, no further "next steps" are planned based on this study.

Strategic Goal 1

participate, the main explanation was that the nonparticipants had found a job. • Consistent with their primary reason for participation, TAA participants received significantly more training than nonparticipants. The most common type of training among TAA participants and nonparticipants was for a skill or occupation, although workers also enrolled in two-year community college programs and other general education classes (GED, ESL, and adult basic education). • Females were more likely than males to participate in TAA, and among participants, they were more likely to receive HCTC and training. Older workers were more likely to participate in TAA than younger workers but were less likely to enroll in training. Workers with different levels of completed education selected different training programs; among trainees funded by TAA, high school dropouts were more likely to enroll in GED or ESL programs, while those with a high school diploma or some college were more likely to enroll in two-year community college programs.	
Additional Information: This study is accessible at http://wdr.doleta.gov/research/keyword.cfm?fuseaction=dsp_resultDetails&pub_id=2442&mp=y.	
VETS – “Process and Performance (Lean Six Sigma) Analysis of the USERRA Program,” September 2009 (Eastern Research Group)	
Relevance: The study was conducted to: help identify ways to meet the statutory requirement to complete investigations within 90 days of a signed complaint; prepare to handle the increased number and complexity of cases arising from the return of significant numbers of service members from Iraq and Afghanistan; and develop a measure of the quality of USERRA investigations.	
Findings and Recommendations: • Revise the format of the Case Investigation Plan to better focus on the processing of evidence. • Make refinements to ten specific aspects of the USERRA investigation process. • Reorganize the allocation of workload between full-time USERRA investigators and VETS staff members who handle USERRA cases, along with other responsibilities. • Assign cases to a high or low tier, based on level of complexity, and assign staff to investigate based on the needs of the case rather than staff availability/proximity. • Develop a measure of the quality of USERRA investigations by applying four criteria to all cases referred for prosecution and applying five criteria to a sample of cases not referred for prosecution.	Next Steps: • Continue to integrate improvements in the Case Investigation Plan with the new case management system. • Continue to refine key aspects of the USERRA investigation process. • Continue to explore strategies to optimize the match between case complexity and investigator skill level, while accommodating the constraints imposed by location, staff availability and costs. • Continue to explore the feasibility of adopting a measure of quality as a performance measure for USERRA.
Additional Information: Contact Robert Wilson at Wilson.Robert@dol.gov or (202) 693-4719	

Outcome Goal 1.5—Secure wages and overtime

Analysis and Future Plans

Wage and Hour Division

WHD has completed the investigative work on 194 randomly selected janitorial firms. Preliminary results indicate a compliance rate of approximately 43 percent. The evaluation investigations found over \$471,000 in back wages due 1,143 workers. Several firms employed independent contractors, but incurred only recordkeeping violations because the workers were paid at or above the minimum wage and worked only part time. WHD expects to complete the final analysis in the near future. The final analysis will guide compliance strategies in this industry. WHD will implement those strategies as part of its FY 2012 operating plan. Similar baseline evaluations of compliance will be undertaken in FY 2011 for residential construction and in FY 2012 for the hotel/motel industry.

WHD - Ensure that vulnerable workers are employed in compliance and secure sustained and verifiable employer compliance, particularly among the most persistent violators

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of firms in the janitorial industry in compliance with applicable statutes	Target	--	--	--	--	Base	TBD	TBD	The analysis of franchises, joint employment, and independent contractor issues in this industry were discussed with all investigators to ensure these issues were addressed during the investigations.	The sample was randomly selected from the Dunn and Bradstreet database. WHD found many of the janitorial firms were out-of-business as a result of the recession or were employing relatives.	Upon completion of the final analysis, WHD will develop and implement industry specific strategies to promote compliance.
	Result	--	--	--	--	43.00%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of construction companies in compliance with applicable statutes	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Percent of firms in the hotel/motel industry in compliance with applicable statutes	Target	--	--	--	--	--	--	Base			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Wage and Hour Investigator Support and Reporting Database (WHISARD).

Notes:

Analysis and Future Plans

Employment and Training Administration

Statutes, regulations, and administrative requirements establish mandatory timeframes within which OFLC must process certain applications or take given actions. Each foreign labor certification program is administered under a different set of requirements according to its unique role in the labor market.

For the permanent labor certification program, 37 percent of permanent labor certification program applications were resolved within six months of the initial filing date. When compared to FY 2009, processing times improved substantially due, in large part, to the implementation of a management plan that resulted in the reduction of the backlog of pending permanent cases by approximately 50 percent from 66,885 in September 2009 to less than 35,000 cases in October 2010. As part of its FY 2011 Operating Plan, OFLC will continue backlog reduction activities designed to bring processing times in line with established FY 2011 goal of 81 percent.

A key and long standing challenge within the foreign labor certification programs has been balancing program integrity activities and the impact of those efforts on overall case processing times and the generation of case backlogs. Eligible U.S. employers will continue to have access to foreign workers when qualified domestic workers are not available. However, additional screens and analytical rigor in the foreign labor certification programs helps ensure American jobs are truly open to U.S. workers, that they get those opportunities first as the Congress originally intended, and that job opportunities are made available to foreign workers only when employers can establish need based on a sound labor market test (H-1B excepted). Increased integrity activities such as conducting audit investigations and supervised recruitments, which began in 2009, increase the average length of time to resolve a permanent application as these are labor-intensive regulatory processes. However, these two integrity measures also generate the highest number of denials and non-certifications, outcomes which enhance program integrity and contribute to jobs being available to U.S. workers.

The results of these integrity activities are now being reported and demonstrate that a little more than one half of the resolved permanent applications during FY 2010 selected for integrity review were found in compliance. Because the regulations require employers to attest to compliance with program requirements at the time of filing a permanent application, this indicator measures the likelihood that OFLC will certify an employer application following a more thorough investigation of the employer's compliance with program requirements or when U.S. workers may be available for certain requested positions. Greater scrutiny also ensures, as the statute requires, that the hiring of foreign workers occurs subject to all terms and conditions, including wages, which safeguard the employment and economic security of American workers and their families.

Strategic Goal 1

OFLC will apply stricter scrutiny to applications. In the future, OFLC will revise the PERM application form – which expires in June 2011 – to both strengthen its integrity (by clarifying program requirements) and seek more detailed justifications in key parts of the form. Managers at OFLC headquarters and the national processing center levels will, where feasible, attempt to implement operational strategies to maintain production levels while enhancing audit investigations and other program integrity efforts. In FY 2011, the Department intends to propose legislation to establish an employer-paid user fee to partially fund the PERM, H-2A and H-2B programs to: make the programs more responsive to labor market demand; ensure financial resources to process applications timely; and recognize the benefit of the certification is to the employer and not the public.

Finally, OFLC will initiate a baseline review of its SOPs to confirm they are still accurate and appropriate for the current business process, and will develop a methodology to randomly select a sample of resolved permanent program applications for quality review. Implementation of this quarterly review process will be labor intensive and will require an adequate base level of funding in FY 2011 to achieve the desired performance outcome.

ETA - Maintain oversight to ensure that employers are compliant with wage and overtime laws with respect to certified foreign laborers

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of employer applications for permanent labor certification resolved within six months of filing	Target	60.00%	65.00%	75.00%	92.00%	80.00%	81.00%	--	Increased resource allocation to rapidly reduce PERM backlog by 50% in one year significantly improved timeliness and average cycle time.	Enhanced integrity activities limited progress in achieving timeliness goal; audits and supervised recruitments take longer than 6 months to complete.	Continue PERM backlog reduction efforts by another 30% in FY 2011 to improve timeliness results.
	Result	86.00%	74.00%	92.00%	18.00%	37.00%	--	--			
	Status	Y	Y	Y	N	I	--	--			
Percent of resolved permanent applications selected for integrity review and found in compliance	Target	--	--	--	--	60.00%	61.00%	--	Pilots of integrity activities led to implementation of enhanced supervised recruitment and increased audit processes.	Increases in the number of PERM cases subject to integrity activities negatively impact timeliness measure.	Re-engineer PERM form to provide greater clarity in program requirements; enhance integrity activities for PERM applications requiring less than Bachelors' degree.
	Result	--	--	--	--	55.00%	--	--			
	Status	--	--	--	--	N	--	--			
Percent of determinations issued by OFLC in compliance with standard operating procedures	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: OFLC PERM Electronic Filing and Case Processing System.

Notes:

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

Strategic Goal 1

ETA – “Co-enrollment Involving Programs Under the Workforce Investment Act Dislocated Worker Formula Grant Program and the Trade Adjustment Assistance Program,” December 2009 (Social Policy Research Associates)

Relevance: This study was designed to establish a universe in which *all* participants in the Trade Adjustment Assistance (TAA) program would be co-enrolled in the Workforce Investment Act (WIA) Dislocated Worker (DW) program for a period, with the assurance that there would thus be no underlying selectivity bias affecting the analysis of co-enrollees’ outcomes

Findings and Recommendations:

- The study finds that the pilot states increased their co-enrollment of TAA participants in the WIA DW program whose performance and retention was unaffected and performance on average earnings increased. TAA exiters who were co-enrolled in the dislocated worker program are both more likely to enter employment and to retain employment than those who are not co-enrolled.
- In general, the sites agreed that co-enrollment was beneficial for both participants and the programs. In particular, local staff suggested that the most beneficial aspects of co-enrollment for participants are:
 - Rigorous assessment, provision of labor market information, and up-front counseling for deciding between training and job search, and for selecting a training program and provider that is likely to lead to suitable employment;
 - Additional support during training, especially the financial support associated with transportation, child care, and training-related expenses;
 - Placement services after training has ended and follow-up services after participants have been placed into employment; and
 - Requirement to select training programs for the perceived improved likelihood that selected programs will lead to successful employment.
- Two types of participants were singled out by local sites as benefitting the most from co-enrollment: participants in training and participants with limited English proficiency or very low levels of education.

Next Steps:

- This study was conducted prior to the passage of TGAAA which implemented the 2009 Amendments to the Trade Act of 1974. The 2009 Amendments appropriated funds for case management purposes for each state which mitigates the need for co-enrollment services under partner programs addressed in this study. Under the 2002 Amendments, these services could only be obtained through those partner programs at the time of this study.
- While enactment of the 2009 Amendments tends to address the issues identified in this study and preclude the need for additional "next steps", relevant data found in this study will be used for future policy decision making where appropriate.

Additional Information: This study can be found at <http://bostonregion1.workforce3one.org/view/2001002758224083811/info>.

ETA – “National Evaluation of the Trade Adjustment Assistance Program: Characteristics of Workers Eligible Under the 2002 TAA Program and Their Early Program Experiences,” April 2010 (Mathematica Policy Research)

Relevance: This evaluation sought to better understand the characteristics of the population eligible for the 2002 provisions of TAA and its members’ experiences with the program. The report provided policymakers with information that can be used to assess and improve program implementation.

Findings and Recommendations:

- The study found that the characteristics of the TAA eligible population had long tenure at their former employer and likely developed a specialized set of non-transferrable skills. The TAA eligible workers were also older and sometimes less educated than other workers looking for employment. The TAA program was designed to alleviate some of these challenges.

Next Steps:

- This study reflected the TAA program prior to the 2009 Amendments. The provisions enacted in 2009 reflected these findings and significantly expanded training options available to trade affected workers consistent with these findings. At this time, no further "next steps" are planned based on this study.

Strategic Goal 1

- Half of eligible TAA workers participated in the program. These workers cited training as a key reason for participation. Interest in training greatly exceeded interest in receiving TRA benefits, particularly among younger workers. Among eligible workers that did not participate, the main explanation was that the nonparticipants had found a job.
- Consistent with their primary reason for participation, TAA participants received significantly more training than nonparticipants. The most common type of training among TAA participants and nonparticipants was for a skill or occupation, although workers also enrolled in two-year community college programs and other general education classes (GED, ESL, and adult basic education).
- Females were more likely than males to participate in TAA, and among participants, they were more likely to receive HCTC and training. Older workers were more likely to participate in TAA than younger workers but were less likely to enroll in training. Workers with different levels of completed education selected different training programs; among trainees funded by TAA, high school dropouts were more likely to enroll in GED or ESL programs, while those with a high school diploma or some college were more likely to enroll in two-year community college programs.

Additional Information: This study is accessible at http://wdr.doleta.gov/research/keyword.cfm?fuseaction=dsp_resultDetails&pub_id=2442&mp=y.

VETS – “Process and Performance (Lean Six Sigma) Analysis of the USERRA Program,” September 2009 (Eastern Research Group)

Relevance: The study was conducted to: help identify ways to meet the statutory requirement to complete investigations within 90 days of a signed complaint; prepare to handle the increased number and complexity of cases arising from the return of significant numbers of service members from Iraq and Afghanistan; and develop a measure of the quality of USERRA investigations.

Findings and Recommendations:

- Revise the format of the Case Investigation Plan to better focus on the processing of evidence.
- Make refinements to ten specific aspects of the USERRA investigation process.
- Reorganize the allocation of workload between full-time USERRA investigators and VETS staff members who handle USERRA cases, along with other responsibilities.
- Assign cases to a high or low tier, based on level of complexity, and assign staff to investigate based on the needs of the case rather than staff availability/proximity.
- Develop a measure of the quality of USERRA investigations by applying four criteria to all cases referred for prosecution and applying five criteria to a sample of cases not referred for prosecution.

Next Steps:

- Continue to integrate improvements in the Case Investigation Plan with the new case management system.
- Continue to refine key aspects of the USERRA investigation process.
- Continue to explore strategies to optimize the match between case complexity and investigator skill level, while accommodating the constraints imposed by location, staff availability and costs.
- Continue to explore the feasibility of adopting a measure of quality as a performance measure for USERRA.

Additional Information: Contact Robert Wilson at Wilson.Robert@dol.gov or (202) 693-4719

Outcome Goal 1.6—Foster acceptable work conditions and respect for workers’ rights in the global economy to provide workers with a fair share of productivity and protect vulnerable people.

Analysis and Future Plans

In FY 2010 ILAB went through a major rethinking and retooling of production measures and performance indicators that reflect its policy agenda of fostering fair working conditions in the global economy that protect vulnerable people and provide workers with a fair share of productivity and voice in their work lives. In light of these new measures, ILAB began collecting initial data during the first quarter of FY 2011. ILAB will be using FY 2011 as a baseline year to establish predictability in the use of these new measures. Therefore, ILAB expects to be able to provide targets for each measure in FY 2012.

In order to measurably improve worker rights and livelihoods for vulnerable populations, ILAB’s nine new performance indicators will provide information on every area of work in which ILAB engages. ILAB will now track the number of policy positions adopted reflecting ILAB and DOL priorities by the U.S. Government and other international fora. With regard to ILAB’s technical assistance to eliminate child labor, ILAB will track the number of current or potential child laborers provided education or vocational services along with the number of countries with increased capacity to address child labor or forced labor, and the number of households receiving livelihood services. ILAB will also measure the number of countries in which worker rights or conditions improve as well as those countries with improved capacity to protect worker rights or improve working conditions as the result of DOL interventions. Finally, the number of workers better able to exercise their rights or those who experience improved working conditions as well as those workers with improved livelihoods, all as the result of DOL interventions, will be measured. These measures will provide tangible evidence that DOL interventions are improving worker rights and livelihoods for vulnerable populations around the world.

While ILAB revised its performance indicators in FY 2010, ongoing DOL-supported child labor prevention and elimination projects continued to report their progress under ILAB’s previous performance indicators. These indicators, which capture information related to the new indicators, are: number of children prevented or withdrawn from exploitive child labor and provided education and/or training opportunities as a result of DOL-funded child labor elimination projects; and number of countries with increased capacities to address child labor as a result of DOL-funded child labor elimination projects. ILAB exceeded its targets for both indicators. Under the first indicator, DOL-funded child labor elimination projects prevented or withdrew 103,002 children from exploitive labor in FY 2010, bringing the total number of children reached since the program’s inception to almost 1.5 million. In addition, 30 countries increased their capacity to address child labor with technical assistance provided by DOL-funded projects. These countries increased capacity to address child labor by taking actions such as adopting new laws and policies on child labor, implementing new social programs to address the issue, and increasing their inspection and enforcement capabilities.

Strategic Goal 1

Additionally, in FY 2010 Congress provided DOL \$6.5 million to implement model programs to address worker rights through technical assistance in countries with which the United States has trade preference programs. With the new funding, ILAB awarded a grant of more than \$5.3 million to the International Labor Organization to support a new Better Work project in Bangladesh and expand existing Better Work projects in Cambodia and Vietnam. With funding received through the State Department, ILAB also initiated a new Better Work project in Nicaragua. Better Work is a unique partnership program of the International Labor Organization and the International Finance Corporation that seeks to improve labor conditions in global supply chains. Better Work projects monitor conditions in export factories, publish the results in a transparent manner and assist suppliers to comply with labor standards that many buyers and customers demand. In FY 2010 ILAB also continued its oversight of previously funded Better Work projects in Haiti and Lesotho, launched a new worker rights program in the Maldives, and continued oversight of other worker rights initiatives in Afghanistan, Bahrain, Costa Rica, the Dominican Republic, Egypt, El Salvador, Guatemala, Guyana, Honduras, Pakistan, Sri Lanka, Tanzania, and Ukraine.

Going forward, ILAB is realigning its efforts and focusing on monitoring and oversight of Free Trade Agreements, improving the analytical quality of its research, disseminating its reports strategically, actively engaging labor ministries and international and regional organizations, and addressing the root causes of child labor. ILAB will expand technical assistance funding to design new, integrated programs in countries that show sufficient political will to improve worker rights, working conditions, and livelihoods as well as a new generation of child labor prevention and elimination projects that will place a greater emphasis on improving family livelihoods. ILAB will also continue its role as the lead agency within the United States government on International Labor Organization policy and program issues; representing the United States government in the labor and employment components of key international organizations; providing education and technical assistance to trade agreement countries; and assisting in the development and implementation of United States government policy on international child labor, forced labor, and human trafficking issues.

In FY 2012 ILAB will support Presidential and Department priorities of ensuring protection of worker's rights internationally through robust enforcement of labor commitments under U.S. free trade agreements (FTAs) and trade preference programs and through technical assistance programs that inspect factory conditions in trading partner countries that have been proven effective in raising incomes and working conditions for low-income workers in developing countries abroad.

Improving incomes and working conditions in key labor markets is critical to having a lasting impact on global workers' rights and livelihoods, including those of U.S. workers in a global labor market. The increase in funding requested by ILAB for FY 2012 will help provide the resources needed to establish these programs, and once established with demonstrated success, allow ILAB to recruit support from other donor countries, thereby leveraging the resources of the United States.

In FY 2012 ILAB will target key countries for monitoring and enforcement of labor issues, thereby contributing to the strengthening of regulatory programs. These countries will include as many as feasible of the following: the 13 developing countries with which the U.S. has existing free trade agreements (the six Central American countries, Peru, Chile, Mexico, Bahrain, Oman, Morocco and Jordan); potential new free trade partners such as

Strategic Goal 1

South Korea, Colombia, and Panama; selected new negotiating partners such as Vietnam and Brunei; and high priority trade preference countries where labor rights and conditions are a significant concern, such as Bangladesh, Philippines, Uzbekistan, Sri Lanka, Niger, Pakistan and the Democratic Republic of the Congo.

ODEP will continue its exchange of disability employment policy, effective practices and strategies with members of the G-20 and other foreign delegations who request a briefing with ODEP through ILAB's International Visitor's Program. In FY 2012 ODEP will also build on its Individual Learning Plan research to study the long-term, post-secondary career goal outcomes for youth with disabilities in comparison with youth without disabilities. Significant trends identified will inform policy and practices that may affect working conditions, productivity and limit opportunities to attain employment goals.

ILAB - Improve worker rights and livelihoods for vulnerable populations

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of policy positions adopted by the U.S. government through the interagency process that reflect ILAB and DOL priorities	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of policy positions adopted by international for a and countries that reflect ILAB and DOL priorities	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of households receiving livelihood services	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of children engaged in or at high-risk of entering the worst forms of child labor provided education or vocational services	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of countries with increased capacity to address child labor or forced labor	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Strategic Goal 1

ILAB - Improve worker rights and livelihoods for vulnerable populations

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of countries in which worker rights and/or working conditions are improved	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of countries with improved capacity of the government and/or other social partners to protect worker rights and/or improve working conditions as a result of DOL interventions	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of workers better able to exercise their rights and/or that experience improved working conditions as a result of DOL interventions	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of workers with improved livelihoods as a result of DOL interventions	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Grantee Technical Progress Reports, Project Monitoring and Internal Records

Notes:

Program Evaluations and Audits

No relevant evaluations or audits were completed in FY 2010.

Strategic Goal 2: Ensure workplaces are safe and healthy

Outcome Goal 2.1—Secure safe and healthy workplaces, particularly in high-risk industries

Analysis and Future Plans

Occupational Safety and Health Administration

In FY 2010, OSHA reached seven of eight performance indicator targets. The target of one performance indicator, Federal Agency lost time case rate for injuries and illnesses, was not reached. On July 19, 2010, a Presidential Memorandum established Protecting Our Workers and Ensuring Reemployment (POWER) – a new federal agency safety, health and return to employment initiative that directs the Department of Labor to reduce injury and illness rates and improve return-to-work (RTW) outcomes for injured federal Executive Branch employees. Under the Presidential Safety, Health and Return to Employment (SHARE) Initiative – which aimed for comparable goals and was completed in FY 2009 – Federal agencies improved workplace injury and lost production time rates and improvement is expected to continue under POWER. While POWER did not immediately follow the conclusion of SHARE, government-wide performance improvement did continue in FY 2010 as measured against the new POWER goals.

In FY 2011, in an effort to encourage hazard abatement among all employers, OSHA will target high-risk workplaces, strengthen enforcement initiatives, focus on a broader range of hazards, increase publicity and direct outreach, strengthen support for Whistleblower protection activities, and increase enforcement effectiveness evaluation activities. The agency, through the regulatory agenda, will also seek to make fundamental changes in the way employers and workers cooperate to secure safe workplaces, by requiring employers to *plan, prevent and protect* workers from exposure to occupational hazards, through the Injury and Illness Prevention Program standard. Compliance assistance products and programs, such as the On-site Consultation Program, remain a critical tool for OSHA, and the agency plans to invest more in this service to ensure that it is available to help.

Worker involvement is a focus for OSHA, and the agency's initiatives, including outreach, education and new OSHA standards, will reflect this focus. OSHA is enhancing workers' voice in the workplace by expanding the agency's outreach efforts to reach vulnerable workers in high-risk industries with information about their rights and the hazards they face.

Strategic Goal 2

OSHA - Improve workplace safety and health through the enforcement of occupational safety and health regulations and standards

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of serious, willful, repeat violations in large construction projects	Target	--	--	--	--	--	--	Base			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Percent of serious, willful, repeat violations in high-hazard manufacturing industry	Target	--	--	--	--	--	--	Base			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Recidivism rate for serious, willful, and repeat violations in manufacturing industry	Target	--	--	--	--	--	--	Base			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of fatalities associated with the four leading causes of workplace death – falls, electrocutions, caught in or between, and struck by – in General Industry	Target	--	--	--	--	731.0	716.0	TBD	Enforcement programs such as the Site Specific Targeting, National and Local Emphasis, and the Severe Violators Enforcement Programs targeted high-hazard industries associated with fatalities.	OSHA cannot predict the number of fatalities and recognizes that lower fatality numbers may be related to economic conditions throughout the country.	OSHA will develop new NEPs and LEPs that aim to reduce fatalities in high-hazard workplaces with hard-to-reach and non-English speaking workers.
	Result	--	--	--	743.0	644.0	--	--			
	Status	--	--	--	--	Y	--	--			
Number of fatalities associated with the four leading causes of workplace death – falls, electrocutions, caught in or between, and struck by – in Construction	Target	--	--	--	--	562.0	551.0	TBD	Enforcement programs such as the Site Specific Targeting, National and Local Emphasis, and the Severe Violators Enforcement Programs targeted high-hazard industries associated with fatalities.	OSHA cannot predict the number of fatalities and recognizes that lower fatality numbers may be related to economic conditions throughout the country.	OSHA will develop new NEPs and LEPs that aim to reduce fatalities in high-hazard workplaces with hard-to-reach and non-English speaking workers.
	Result	--	--	--	571.0	372.0	--	--			
	Status	--	--	--	--	Y	--	--			

Strategic Goal 2

OSHA - Improve workplace safety and health through the enforcement of occupational safety and health regulations and standards

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of hazards abated associated with hearing loss in construction and manufacturing	Target	--	--	--	--	604.0	600.0	650.0	Increased use of Site Specific Targeting and National/ Local Emphasis Programs in high-hazard areas contributed to hazards abated associated with hearing loss in construction and manufacturing.		OSHA will target severe violators of the OSH Act by implementing the Severe Violator Enforcement Program, which began in June 2010.
	Result	--	--	--	595.0	640.0	--	--			
	Status	--	--	--	--	Y	--	--			
Number of hazards abated associated with illnesses in general industry and construction	Target	--	--	--	--	11,600.0	11,500.0	12,000.0	Increased use of Site Specific Targeting and National/ Local Emphasis Programs in high-hazard areas contributed to hazards abated associated with illnesses in general industry and construction.	Although OSHA exceeded the targeted number of safety inspections, it did not meet the targeted number of health inspections. OSHA will continue to develop emphasis programs to target health hazards.	OSHA completed the NEP on diacetyl substitutes. OSHA will develop new NEPs and LEs related to health hazards such as isocyanates and hazards in the primary metals industry.
	Result	--	--	--	11,428.0	12,115.0	--	--			
	Status	--	--	--	--	Y	--	--			
Number of hazards abated associated with workplace amputations	Target	--	--	--	--	7,305.0	7,000.0	7,500.0	Increased use of Site Specific Targeting and National/ Local Emphasis Programs in high-hazard areas contributed to hazards abated associated with workplace amputations.		OSHA has conducted a review of the NEP on Amputations for FY 2006 - 2009 and is considering an update to the NEP.
	Result	--	--	--	7,197.0	7,451.0	--	--			
	Status	--	--	--	--	Y	--	--			
Total number of employees removed from workplace hazards through inspections	Target	--	--	--	--	455,093.0	460,000.0	500,000.0	Conducting inspections in workplaces identified as high-hazard under SST criteria, related to an SVEP employer under SVEP, or otherwise specified in an OSHA targeting program.		OSHA will continue to utilize targeting programs such as the SST program and the SVEP program to remove the largest number of employees from hazards as possible.
	Result	--	--	--	452,828.0	519,353.0	--	--			
	Status	--	--	--	--	Y	--	--			
Federal Agency total case rate for injuries and illnesses	Target	3.82	3.70	3.66	3.49	3.10	3.10	2.97	Agencies that remained focused on reducing injuries and illnesses were likely to monitor their OSHA logs to determine the most common injuries and then focused on methods to reduce these injury types.	Without a Presidential Initiative in place, agencies did not have this specific goal to achieve.	In FY 2010 the President introduced the POWER Initiative. Agencies will now be more focused on reducing their injury and illness rates.
	Result	3.49	3.32	3.37	3.22	3.08	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

Strategic Goal 2

OSHA - Improve workplace safety and health through the enforcement of occupational safety and health regulations and standards

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Federal Agency lost time case rate for injuries and illnesses	Target	1.76	1.71	1.66	1.61	1.42	1.42	1.36	Agencies that remained focused on reducing injuries and illnesses were likely to monitor their OSHA logs to determine the most common injuries and then focused on methods to reduce these injury types.	Without a Presidential Initiative in place, agencies did not have this specific goal to achieve and were not focused on the reduction in their rates to meet this specific goal.	In FY 2010 the President introduced the POWER Initiative. Agencies will now be more focused on reducing their injury and illness rates.
	Result	1.71	1.61	1.57	1.48	1.44	--	--			
	Status	Y	Y	Y	Y	I	--	--			

Sources: OSHA Information System (OIS), the OSHA Integrated Management Information System (IMIS), and OWCP/OPM data.

Notes:

Analysis and Future Plans

Mine Safety and Health Administration

MSHA did not meet its FY 2010 target to reduce the mining industry's 5-year fatality rate by 5 percent. The catastrophic disaster on April 5, 2010 at the Upper Big Branch mine in Montcoal, West Virginia caused the death of 29 miners and accounted for 45 percent of all mining fatalities in FY 2010.

MSHA has developed and is implementing an escalating enforcement strategy that identifies mines with compliance or other safety and health issues for more aggressive oversight, and uses the agency's most aggressive enforcement tools against egregious violators. MSHA's impact inspection initiative selects mines with specific conditions or compliance issues that merit increased agency attention and enforcement for intensified inspections. MSHA's new potential pattern of violations (PPOV) process focuses on chronic violators that have failed to improve compliance in response to increased inspections and other enforcement actions. PPOV mines violations must significantly reduce their rate of significant and substantial (S&S) violations, and have incentives to implement comprehensive corrective action programs that address the root causes of the mine's compliance problems. Mines that fail to improve will be placed in pattern of violation (POV) status and be subject to closure orders for any S&S violation. Fourteen mines are currently going through the new PPOV process. Mines that do not respond to administrative enforcement tools and their conduct presents a continuing hazard to miners are subject to injunctive action under Section 108 of the Mine Act. In October, DOL brought the first injunction action in the history of the Act to enjoin a mine's pattern of violations against Freedom Energy, a Massey mine in Kentucky, and continues to consider other mines for injunctive action.

MSHA has set ambitious targets for reducing mining fatalities. While MSHA is confident that its integrated approach to prevention of mining accidents, including aggressive enforcement, meaningful outreach and special emphasis programs will result in a significant reduction in mining fatalities over the long term. However, because of the low probability, high impact nature of mine disasters, and the fact that mine operators are

Strategic Goal 2

ultimately responsible for the health and safety of miners, the ability to predict achievement is limited.

MSHA's approach toward reducing fatalities in mining not only targets chronic violators of health and safety rules, but also focuses the industry on preventing common causes of fatal mine accidents and disasters through initiatives such as Rules to Live By and Rules to Live By II. This program includes industry outreach and education to raise awareness, as well as enhanced enforcement. The Rules to Live By initiative focuses on 24 frequently cited standards that cause or contribute to fatal accidents in the mining industry in nine categories. Rules to Live By II focuses on frequently cited standards which were cited during major disasters over the last ten years, and which contributed to five or more fatalities.

Regardless of increased enforcement efforts, MSHA cannot be at every mine on every shift. In addition to making sure operators carry out their responsibility to ensure the health and safety of miners, miners must also be aware of their rights and responsibilities to be engaged participants in ensuring their own health and safety. MSHA has updated its guidance for miners on their rights and responsibilities and will be ramping up a program to educate miners on their rights. MSHA is also conducting a program evaluation to develop a survey instrument to assess the degree to which miners are aware of their rights to identify hazardous conditions, request Agency inspections without discrimination and select a co-worker or other as a representative of miners to represent them in health and safety matters with MSHA and the mine operator. This evaluation will help improve MSHA's miners' rights education program.

MSHA is also reviewing data showing early indications that impact inspections against mines identified as the most egregious operators are yielding fewer citations and orders. Whether this shows an improving trend or operator adaptation to agency enforcement tactics is under review.

MSHA met its Noise Reduction Performance Goal of reducing miners' noise overexposures. The protections instituted and the reductions achieved improved the health and safety of the nation's miners, increased their quality of life, and reduced future medical costs.

In FY 2010 – to meet its more aggressive performance target of 7.63 percent for Percent of Designated Occupation samples exceeding the applicable respirable coal mine dust standard – MSHA's strategy consisted of a multi-faceted approach:

- Requiring mine operators to implement dust control parameters proven to be effective in controlling respirable dust.
- Stepped-up enforcement with emphasis on operator compliance with the approved dust control parameters at mines targeted by MSHA's Special Dust Emphasis Teams and by individual districts.
- Training of enforcement personnel and meetings with mine operators on lessons learned from the special inspections performed by the national Dust Emphasis Teams to achieve more consistent compliance with approved dust control parameters on a daily basis.
- Dissemination of information on Best Dust Control Practices under MSHA's End Black Lung – Act Now campaign.
- Conducting joint MSHA/NIOSH Dust Control Workshops around the country on Best Practices for Controlling Respirable Dust in Coal Mining.

Strategic Goal 2

MSHA - Secure safe and healthy workplaces, particularly in high-risk industries

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Five-year rolling average of fatal injuries per 200,000 hours worked	Target	--	--	--	Base	0.0171	0.0178	TBD	Rules to Live By initiative, increased inspector presence, targeted enforcement activities.	Mine operators failed to comply with MSHA standards. Enforcement tools not adequate to address chronic violators.	Expand the Rules to Live By initiative, enhance the inspector training programs, and improve the Pattern of Violations process.
	Result	--	--	--	0.0180	0.0187	--	--			
	Status	--	--	--	--	N	--	--			
Percent of noise exposures in coal mines above the citation level	Target	5.00%	4.80%	3.59%	4.45%	3.94%	2.99%	2.93%	Educating industry on effective noise technologies including coated and dual sprocket conveyor chains; barriers, enclosures and cabs; improved maintenance, and administrative controls.	Target was met - current strategies were effective.	A Program Information Bulletin will be updated to include new technologically feasible noise controls for underground and surface equipment as soon as they become commercially available.
	Result	4.40%	3.66%	4.54%	4.02%	3.05%	--	--			
	Status	Y	Y	N	Y	Y	--	--			
Percent of inspector Designated Occupation samples exceeding the applicable respirable coal mine dust standard	Target	9.50%	9.00%	11.50%	9.55%	7.63%	6.32%	6.19%	Requiring operators to implement better designed dust controls and making sure that the specified controls are being complied with on each shift.	Mine operators failed to comply with MSHA standards	Dissemination of information on "Best Dust Control Practices" and conduct dust control workshops.
	Result	11.30%	12.20%	9.74%	7.78%	6.45%	--	--			
	Status	N	N	Y	Y	Y	--	--			
Percent of Metal and Nonmetal Mines conducting their own silica dust surveys and noise evaluations for miners	Target	--	--	--	--	Base	17.00%	34.00%			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Ten-year rolling average of the number of high-hazard potential impoundment/dam failures with significant release per year	Target	--	--	--	--	--	1.1000	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Strategic Goal 2

MSHA - Secure safe and healthy workplaces, particularly in high-risk industries

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Compliance levels among mines that have received potential pattern of violation notices	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Readiness of MSHA, mining industry, and mine rescue team emergency response	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Injury data - Mine operators' and non-exempt contractors' Mine Accident, Injury, and Employment reports and MSHA's Standardized Information System.

Noise data - MSHA Form 2000-84 and MSHA's Standardized Information System.

Notes: MSHA's fatality rate reflects the number of fatalities per 200,000 hours worked during the prior five-year period - FY 2011 result is required to calculate the five-year average in FY 2012. FY 2012 target for noise exposures in coal mines will be two percent below the FY 2011 target or less. MSHA's rate for the number of high-hazard potential impoundment/dam failures with significant release per year reflects the prior 10-year period - FY 2011 result is required to calculate the FY 2012 target.

Analysis and Future Plans

Wage and Hour Division

During 2010, WHD investigators completed the field work in 65 investigations of employers utilizing the H-2A immigration program in order to establish a statistically valid baseline. While the investigations were primarily conducted to determine the level of compliance with H-2A, compliance with the Fair Labor Standards Act (FLSA), the Migrant Seasonal Protection Act (MSPA) and the Field Sanitation standards of the Occupational Safety and Health Act (OSHA/FS) was also addressed. This initiative was undertaken pursuant to the Secretary's strategic goals of securing safe and healthy workplaces, particularly in high risk industries (which includes agriculture), and increasing workers' incomes and narrowing wage and income inequality. WHD program planning has not specifically included investigations of H-2A employers for the past eight years. This initiative sought to reinvigorate Wage and Hour's presence among users of the H-2A immigration program. Field work was being completed on some cases to the very end of the fiscal year and not all investigations have been concluded and not all case information recorded, so there is analysis remaining to be done. In addition, timely appeals of assessed civil monetary penalties have been received. Preliminary analysis found that 78 percent (51 of 65) of the employers surveyed were not in compliance with H-2A regulations. New H-2A regulations are now effective. WHD's compliance strategies will center on identifying crops, geographic locations, and employer types, i.e., growers or contractors that are most likely to be in violation.

Strategic Goal 2

WHD - Ensure basic safety and health protections for young workers and farmworkers

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent H-2A employers in compliance with applicable statutes	Target	--	--	--	--	Base	TBD	TBD	WHD undertook a concentrated effort to conduct non-complaint investigations of H-2A certified employers to determine the level of compliance with all provisions of applicable law.	Impact of investigations was reduced by prior year data (some employers no longer used H-2A workers) and the sample was skewed towards employers requesting a small number of workers.	WHD is refining its methodology for sampling high volume H-2A users and will be stratifying the FY 2011 sample to improve results and predictions of where violations are likely to occur.
	Result	--	--	--	--	21.00%	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Wage and Hour Investigator Support and Reporting Database (WHISARD)

Notes:

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

OSHA – “Workplace Safety and Health: Enhancing OSHA’s Records Audit Process Could Improve the Accuracy of Worker Injury and Illness Data,” October 2009 (GAO)	
Relevance:	
Findings and Recommendations: GAO is recommending that the Secretary of Labor direct OSHA to (1) require inspectors to interview workers during records audits, and substitute other workers when those initially selected are unavailable; (2) minimize the time between the date injuries and illnesses are recorded by employers and the date they are audited; (3) update the list of high hazard industries used to select worksites for records audits; and (4) increase education and training to help employers better understand the recordkeeping requirements. OSHA agreed with these recommendations.	Next Steps: The recordkeeping audit program was discontinued and replaced with the Recordkeeping National Emphasis Program (NEP) See10-07(CPL 02). GAO recommendations 1 and 2 were incorporated into the NEP. In addition, OSHA published its intent in the Regulatory Agenda to update its industry coverage of the Recordkeeping Regulation part 1904. This addresses GAO recommendation 3. To address recommendation 4, OSHA is currently considering several options for posting on the internet which will help the regulated community better understand the recordkeeping regulation requirements. This includes Advisor software and an electronic training module.
Additional Information: The report (GAO-10-10) is available at: http://www.gao.gov/cgi-bin/getrpt?GAO-10-10	
OSHA – “Whistleblower Protection: Sustained Management Attention Needed to Address Long-standing Program Weaknesses,” August 2010 (GAO)	
Relevance:	

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Findings and Recommendations: To improve program performance and oversight, GAO is recommending that the Secretary of Labor require OSHA to take several actions: • Ensure that all investigators complete mandatory training. • Require staff who supervise investigators to complete the mandatory investigator training. • Track whistleblower program expenses, including FTEs, separately from other OSHA programs, and annually report these expenses to Congress. • Develop an action plan, with specific milestones, for addressing identified internal control weaknesses. This plan should include mechanisms for strengthening the whistleblower national office's control over the program. • Incorporate strategic goals specifically for the whistleblower program into Labor's strategic plan, and develop performance measures to track progress in achieving these goals.	Next Steps: • Management is reviewing recommendations and discussing implementation.
Additional Information: The report (GAO-10-722) is available at: http://www.gao.gov/new.items/d10722.pdf.	
OSHA – “Complainants did not Always Receive Appropriate Investigations Under the Whistleblower Protection Program,” September 2010 (OIG)	
Relevance:	
Findings and Recommendations: • The OIG recommended that the Assistant Secretary for Occupational Safety and Health implement controls to oversee and monitor investigations and caseloads, develop specific performance measures, update the Whistleblower Investigations Manual, and designate subject matter experts with technical competencies in specific whistleblower statutes.	Next Steps: • Management is reviewing recommendations and discussing implementation.
Additional Information: The report (02-10-202-10-105) is available at: http://www.oig.dol.gov/public/reports/oa/2010/02-10-202-10-105.pdf.	
OSHA – “OSHA Needs to Evaluate the Impact and Use of Hundreds of Millions of Dollars in Penalty Reductions as Incentives for Employers to Improve Workplace Safety and Health,” September 2010 (OIG)	
Relevance:	
Findings and Recommendations: • The OIG made 11 recommendations to the Assistant Secretary for Occupational Safety and Health to commit the necessary resources to effectively evaluate the impact of penalty reductions, improve information systems, and revise and implement policies and procedures. • OSHA provided comments on the OIG report expressing concerns about some audit findings and recommendations. Based on OSHA's response, the OIG clarified two recommendations, but the OIG's overall conclusions remain unchanged.	Next Steps: • Management is reviewing recommendations and discussing implementation.
Additional Information: The report (No. 02-10-201-10-105) is available at: http://www.oig.dol.gov/public/reports/oa/2010/02-10-201-10-105.pdf	

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MSHA – “Journeyman Mine Inspectors Do Not Receive Required Periodic Retraining,” March 2010 (Office of Inspector General)	
Relevance: Mine Inspector Training – Determine what training is needed, how is MSHA equipped to provide the training, do inspectorate receive appropriate training to adequately execute their enforcement responsibilities.	
Findings and Recommendations: - Findings: MSHA lacked controls to track and assure completion of required periodic retraining by journeyman inspectors. Training records for entry-level inspectors lacked timely supporting documentation. MSHA’s system for recording training activity lacked sufficient controls to assure that adequate documentation was maintained to support training completion. - Recommendation: MSHA hold inspectors accountable for assuring that journeyman inspectors complete retraining – inspection activities would be suspended if designated training was not completed.	Next Steps: Corrective actions will be implemented.
Additional Information: The report (No. 05-10-001-06-001) is available at: http://www.oig.dol.gov/public/reports/oa/2010/05-10-001-06-001.pdf .	
MSHA – “In 32 Years MSHA Has Never Successfully Exercised Its Pattern of Violations Authority Report,” September 2010 (Office of Inspector General)	
Relevance: Pattern of Violation (POV) process review allows MSHA to take enhanced enforcement actions when a mine demonstrates recurring safety violations that could significantly and substantially contribute to the cause and effect of health and safety issues.	
Findings and Recommendations: - Findings: MSHA attempted to implement a standardized method based on quantitative data for identifying potential POV mines – the process was unreliable and the criteria were complex and lacked a supportable rationale. - Recommendations: MSHA re-evaluate current POV regulations and policies.	Next Steps: - Revise screening criteria for POV process. - Revise POV regulatory requirements.
Additional Information: The report (No. 05-10-005-06-001) is available at: http://www.oig.dol.gov/public/reports/oa/2010/05-10-005-06-001b.pdf .	
MSHA – “Alert Memorandum: MSHA Set Limits on the Number of Potential Pattern of Violation Mines to be Monitored,” June 2010 (Office of Inspector General)	
Relevance:	
Findings and Recommendations: - Re-evaluate the appropriate POV status of the 10 mines that were previously removed from POV oversight and monitoring based on the Coal Mine Safety and Health limits. - Assure that on future POV analysis all decisions to include or remove mines from POV-related enforcement efforts are based solely on the health and safety conditions at each mine.	Next Steps: - During the follow-up inspection, the mines were found to be within an acceptable significant and substantial rate. - Corrective action taken.
Additional Information: The report (No. 05-10-004-06-001) is available at http://www.oig.dol.gov/public/reports/oa/2010/05-10-004-06-001.pdf .	
WHD – “Debarment Authority Should Be Used More Extensively in Foreign Labor Certification Programs,” September 2010 (Office of Inspector General)	
Relevance:	
Findings and Recommendations: Implement procedures and controls to assure that ETA and WHD assess and document the	Next Steps: WHD has agreed to examine the feasibility of implementing the

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appropriateness of debarring each individual convicted of a Foreign Labor Certification (FLC) violation resulting from an Office of Inspector General (OIG) investigation. • Implement procedures and controls to assure that ETA and WHD report FLC suspensions and debarments to designated Department personnel for inclusion on the government-wide exclusion system. • Strengthen FLC application processing controls to ensure the detection and resolution of applications with invalid Employer identification Numbers (EIN).	recommendations.
Additional Information: The report (No. 05-10-002-03-321) is available at http://www.oig.dol.gov/public/reports/oa/2010/05-10-002-03-321.pdf.	

Strategic Goal 3: Assure fair and high quality work-life environments

Outcome Goal 3.1—Break down barriers to fair and diverse workplaces so that every worker’s contribution is respected.

Analysis and Future Plans

Office of Federal Contractor Compliance Programs (OFCCP)

FY 2010 was a period of transition for OFCCP, which included the development of new performance indicators that better reflect the impact OFCCP has on the contractor community. This is a challenging task given that the federal contractor community is dynamic, with employers entering and leaving daily. In addition, there is no one repository that lists all entities involved in federal contract work. However, OFCCP is undertaking the implementation of statistical techniques to estimate the size of the contractor community, which will serve as a foundation for measuring its performance.

OFCCP’s performance measures as detailed in the Department of Labor’s FY 2011-2016 Strategic Plan are:

- Compliance rate for federal contractors;
- Impact of OFCCP evaluations on contractor compliance;
- Discrimination rate for federal contractors; and
- Compliance rate with technical requirements for federal contractors.

Data collection was initiated for the compliance and discrimination measures beginning in the first quarter of FY 2011 and targets will be established in FY 2012 and updated annually thereafter. Importantly, given the time needed to complete a compliance evaluation and the required time that must lapse between compliance evaluations of a specific contractor facility, OFCCP expects to provide targets for its impact measure in FY 2015.

In FY 2010, OFCCP embarked upon the development of a predictive statistical model to more accurately identify potential violators. OFCCP will use its predictive model, the results from an assessment of patterns of discrimination within select industries, and data regarding the impact of evaluations on the contractor community to both maximize its limited resources and focus on those contractors and industries that are more likely to be found in non-compliance.

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To accomplish the goals and improve the compliance rate of contractors, OFCCP has engaged in several initiatives centered on regulatory reform, training, and outreach.

Regulatory Reform: An effective enforcement program begins with clear regulatory language that sets forth the requirements a federal contractor must take to ensure a diverse workforce free from discriminatory practices. In FY 2010, OFCCP embarked on an aggressive program to evaluate, revise, and strengthen its regulations. In addition, OFCCP set a priority to revise its Federal Contract Compliance Manual that provides guidance to both OFCCP staff and contractors on how to evaluate their affirmative action programs. Combined, both initiatives will aid OFCCP in detecting and reducing workplace discrimination.

Training: In FY 2010, OFCCP revitalized its Training Academy and provided more than 250 new compliance officers (CO) with a revised Introductory Course. The purpose of the training was to improve the quality of our compliance audits and ensure consistent evaluations. In FY 2011, OFCCP will continue its introductory training program and begin development of an intermediate and advanced level curriculum. In addition, OFCCP will also partner with EEOC and DOJ to provide joint training.

Outreach: The FY 2011 production measures include the reporting of compliance assistance hours and events. These measures reflect the enormous effort OFCCP will undertake to break down barriers to fair and diverse workplaces by educating workers about their rights. Compliance Assistance is a central OFCCP strategy to realizing Secretary Solis' vision of good jobs for everyone.

In FY 2010, a Communications Team was created within OFCCP to expand beyond traditional outreach and compliance assistance to outreach community groups, workers and their advocates. As a part of this outreach, OFCCP will develop tools for employees of federal contractors so there is a better understanding of rights and responsibilities. OFCCP will continue to report its compliance assistance activities, but this goal will now report a greater proportion of events focused on community and worker groups.

Going forward in FY 2011, OFCCP will effectively support the Presidential and Department priorities of ensuring fair and high quality work life environments through its regulatory reform, compliance assistance, and enhanced enforcement activities.

Office of Disability Employment Policy (ODEP)

ODEP will continue its Add Us In initiative, designed to develop policy and strategies to increase employment of all individuals with disabilities by small businesses, particularly those owned or operated by African-Americans; Asian-Americans; Latino or Hispanic Americans; members of federally recognized tribes and Native Americans; lesbian, gay, bisexual and transgender individuals; women and people with disabilities. In addition, ODEP will continue prior work with BLS and the Census Bureau under Strategic Goal 5 to develop and implement a CPS disability supplement and report which will provide relevant disability statistics.

Strategic Goal 3

OFCCP - Ensure diversity and fairness in federal contractor workplaces

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Compliance rate for federal contractors	Target	--	--	--	--	--	Base	TBD	During FY 2010, OFCCP undertook the development of a sampling approach to estimate the compliance and discrimination rate throughout the contractor community.	The previous measure of compliance could not be projected across the contractor community. The measure was an indicator of only those contractors evaluated in a given year.	A study is being conducted to allow for the estimation of rates across the contractor community.
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Discrimination rate for federal contractors	Target	--	--	--	--	--	Base	TBD	During FY 2010, OFCCP undertook the development of a sampling approach to estimate the compliance and discrimination rate throughout the contractor community.	The previous measure applied to a subset of contractors; it could not be projected across the contractor community. Further discrimination findings were limited to instances with 10 or more victims.	OFCCP revised the definition of discrimination to include cases with less than 10 victims. For scheduling, we created a study to allow for the projection of rates to the broader community.
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Compliance rate with technical requirements for federal contractors	Target	--	--	--	--	--	Base	TBD	This goal placed emphasis on the other EEO requirements, an important part of OFCCP's mandate. It assisted in ensuring that contractors comply with other EEO requirements.	There was a training need to ensure that evaluations and investigations were thorough and of a consistent quality across the regions.	In FY 2010, OFCCP trained more than 250 new compliance officers with an introductory course. In FY11, OFCCP will partner with EEOC and DOJ to develop an intermediate and advance level course.
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Case Management System (CMS)

Notes:

Program Evaluations and Audits

No relevant independent evaluations or audits were completed in FY 2010.

Outcome Goal 3.2—Provide workplace flexibility for family and personal care-giving.

Analysis and Future Plans

In FY 2011, WHD will conduct a customer satisfaction survey of FMLA complainants to determine their level of satisfactions with the services that the agency has provided to them in response to their concerns. This baseline will provide a benchmark from which WHD can measure new techniques in responding to incoming FMLA allegations of violations, as well as the impact of the agency's American Bar Association referral program for FMLA complainants.

WHD - Promote flexible workplace policies through enforcement of the Family Medical Leave Act (FMLA)

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of FMLA complainants who are "satisfied" or "very satisfied" with WHD's services	Target	--	--	--	--	Base	TBD	--			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources:

Notes:

Analysis and Future Plans

ODEP will partner with the WB in FY 2012 to jointly sponsor research on workplace flexibility practices across industry sizes and geographic sectors regarding the issues, justification, and recommendations on the positive effects of workplace flexibility and telework on the environment, government efficiency, and work-family balance that address the needs of all employers and workers, but especially those with complex needs.

In FY 2010 the Women's Bureau worked with the White House Council on Women and Girls and national work and family researchers and advocates to organize a series of ten *National Dialogue on Workplace Flexibility* events. Additionally, the Women's Bureau worked with BLS to create a series of questions for the purpose of producing a supplemental module to the American Time Use Survey (ATUS) Supplement designed to measure workers' use and access to paid leave and flexibility of work schedules. For FY 2011, the Bureau will host *National Dialogue on Workplace Flexibility* events in ten large cities across the nation. The Bureau collaborated with the Office of Disability Employment Policy (ODEP) to host a Workplace Flexibility Roundtable and to develop a "tool kit" with best practices on implementing workplace flexibility policies for people with disabilities.

Strategic Goal 3

Program Evaluations and Audits

No relevant evaluations or audits were completed in FY 2010.

Outcome Goal 3.3—Ensure worker voice in the workplace

Analysis and Future Plans

Office of Labor-Management Standards

In 2010, OLMS was able to meet or exceed all performance goals while setting baselines for four new goals. While setting the baselines, OLMS began developing strategies for meeting these new goals. The new goals endeavor to increase public disclosure reporting of employer-consultant agreements to persuade employees concerning their collective bargaining rights, decrease the number of delinquent filers of labor organization financial reports, decrease the number of chronically delinquent filers of labor organization financial reports, and improve customer satisfaction with the OLMS web site.

In 2008, OLMS established baselines and targets for three measures: the elapsed number of days to resolve union officer election complaints, the percent of electronically filed reports, and the percent of targeted audits that result in criminal cases. Each of these measures and goals were established to promote both OLMS effectiveness and efficiency and to increase union financial integrity and democracy and labor-management transparency. These are major tenets of the Secretary's goal to Ensure Worker Voice in the Workplace.

The increased complexity of union financial transactions continues to be a major challenge. By identifying anomalies in union financial reports and using other targeting measures, OLMS strives to more effectively identify unions where criminal activity may be present. As noted, OLMS has become more successful in this area, exceeding its related performance goal for both 2009 and 2010.

OLMS has also invested in the use of new technology to facilitate the electronic filing of union financial reports. During 2010, OLMS implemented a new, web-based system for the electronic filing of LM-2 union annual reports that ameliorates barriers to electronic filing that have been identified by OLMS stakeholders. In 2011, OLMS will implement a similar system for its LM-3 and LM-4 union filers. Continued outreach enabled OLMS to reach its e-filing goal in 2010, and the rollout of Phase II of its e-filing project should contribute to additional electronic filings for 2011.

OLMS also established a goal in 2008 to decrease the number of elapsed days to resolve union officer election complaints. In passing the Labor-Management Reporting and Disclosure Act in 1959, Congress established a 60-day deadline for court filing of an election complaint. An analysis of data indicated that in these cases, waivers of the 60-day limit were increasing, extending the average elapsed time to 92 days. Waivers of the 60-day filing deadline are sometimes necessary to accommodate settlement discussions between OLMS and the union and for other valid reasons. However, quicker resolution of election complaints ensures quicker restoration of democratic voice and a democratically operated union and, because of this, in 2008, OLMS created a performance measure tracking elapsed days, with 92 elapsed days as the baseline. In both 2009 and 2010, OLMS exceeded its goals for this measure and continues to examine new methods for reducing its elapsed days further. A new team-based approach for handling election cases has proven

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successful and will continue to be implemented throughout OLMS during 2011. OLMS also plans to accelerate early Office of the Solicitor involvement in cases that may result in litigation.

OLMS - Ensure union financial integrity, democracy, and transparency

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of "persuader" LM-10 and LM-20 reports received	Target	--	--	--	--	Base	545.0	615.0	During 2010, OLMS established a baseline for this new performance measure.		OLMS will continue to fully implement its cross-match program, which, in its first year, reaped good results in identifying non-filers.
	Result	--	--	--	--	474.0	--	--			
	Status	--	--	--	--	--	--	--			
Percent of disclosure reports filed electronically	Target	--	--	--	Base	18.50%	24.50%	30.50%	OLMS rolled out Phase I of its Electronic Filing System, which provided a more intuitive and easier interface for large labor organization filers.	The implementation of Phase II of the OLMS Electronic Filing System was delayed, resulting in fewer electronic filers among smaller unions than planned.	OLMS expects that Phase II of the Electronic Filing System will be implemented during 2011. This roll-out coupled with an outreach program is expected to increase the number of electronic filers.
	Result	--	--	--	17.40%	20.60%	--	--			
	Status	--	--	--	--	Y	--	--			
Average number of days to resolve union officer election complaints	Target	--	--	Base	88.0	84.0	80.0	78.0	OLMS continued to coordinate with the Solicitor's office, allowing for earlier intervention. In addition, a new team approach to election case was begun, resulting in more expeditious case handling.	OLMS has still been unable to fully eliminate the need for waivers, resulting in extended case processing time.	District offices are increasing use of a team approach to investigate election cases and the national office will further accelerate Office of the Solicitor involvement to resolve cases sooner.
	Result	--	--	92.0	70.0	81.0	--	--			
	Status	--	--	--	Y	Y	--	--			
Percent of targeted audits that result in a criminal case	Target	--	--	Base	12.00%	12.50%	13.00%	13.50%	OLMS has implemented a program through which District Offices can share best practices for targeting.	OLMS has not been able to fully measure how various target measures interact in terms of their ability to more fully identify cases where fraud or embezzlement have occurred.	OLMS is enhancing its Case Data System to track targeting methods and determine which produce the highest fallout rate. OLMS is highlighting office-by-office fallout rates and sharing best practices.
	Result	--	--	11.50%	12.10%	14.60%	--	--			
	Status	--	--	--	Y	Y	--	--			
Customer satisfaction score for OLMS Web site users	Target	--	--	--	--	Base	59.0	60.0	During 2010, OLMS established a baseline for this new performance measure.		OLMS has identified search and navigation issues as main aspects of customer dissatisfaction, and will continue to make changes to improve these areas of the web site, resources permitting.
	Result	--	--	--	--	58.0	--	--			
	Status	--	--	--	--	--	--	--			

Strategic Goal 3

OLMS - Ensure union financial integrity, democracy, and transparency

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of delinquent filers of labor organization financial reports	Target	--	--	--	--	Base	5,401.0	5,251.0	During 2010, OLMS established a baseline for this new performance measure.		OLMS will couple a strong outreach program through its Voluntary Compliance Agreement program with the roll-out of PHASE II of its Electronic Filing System which is expected to reduce delinquencies.
	Result	--	--	--	--	5,551.0	--	--			
	Status	--	--	--	--	--	--	--			
Number of chronically delinquent filers of labor organization financial reports	Target	--	--	--	--	Base	1,970.0	1,870.0	During 2010, OLMS established a baseline for this new performance measure.		OLMS will couple a strong outreach program through its Voluntary Compliance Agreement program with the roll-out of PHASE II of its Electronic Filing System which is expected to reduce delinquencies.
	Result	--	--	--	--	2,070.0	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Data for Performance Indicators measuring "Persuader" reports, electronically filed reports, days elapsed for election cases, targeted audits resulting in criminal cases, delinquent filers, and chronically delinquent files are stored in and retrieved from the electronic Labor Organizations Reporting System (e.LORS).

Data for the OLMS Website Customer Satisfaction performance indicator is collected and reported under a contract with ForeSee, Inc.

Notes: The e.LORS database is a robust and mature database that provides data in a timely and verifiable manner, allowing OLMS to access data and information on an as-needed basis. ForeSee is a nationally recognized company providing website customer satisfaction data to a number of Federal agencies.

Analysis and Future Plans

Mine Safety and Health Administration

MSHA's Office of Assessments coordinates discrimination complaint processing and temporary reinstatement proceedings to protect miners from discrimination when they exercise their right to report health and safety hazards without fear of retaliation. MSHA completed 187 discrimination case investigations in FY 2010, completing 145 cases (78%) within 60 days. MSHA resolved 83 temporary reinstatement requests in FY 2010, completing 71 reviews (86%) within 20 days.

Beginning in FY 2010, from October 2009 through June 2010, the Office of Assessments transmitted a weekly status report to MSHA's field investigators and solicitors reporting on all active section 105(c) discrimination cases and provided alerts of cases approaching their scheduled completion due date. During the fourth quarter of the fiscal year, due to a shortage of staff, the weekly activity report was temporarily suspended.

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MSHA will resume the weekly reports during the second quarter of FY 2010. In addition, the Agency is reviewing the Special Investigations program to determine if the current reporting structure, organizational location, and/or staffing levels of the Headquarters' special investigations review functions should be changed.

MSHA is currently conducting a program evaluation to develop a survey instrument to assess the degree to which miners are aware of their rights to indentify hazardous conditions, request Agency inspections without discrimination and select a co-worker or other as a representative of miners to represent them in health and safety matters with MSHA and the mine operator.

MSHA - Improve the timeliness of discrimination complaint investigations

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of investigations of miner discrimination complaints that are completed within 60 days of receipt	Target	--	--	--	Base	75.00%	80.00%	85.00%	Beginning in October 2009 through June 2010, weekly status reports were distributed to the field investigators which provided alerts of cases approaching their scheduled completion due dates.	Failure to distribute status reports during the fourth quarter of FY 2010.	Establish a process to automate, produce and distribute standardized reports on a consistent basis.
	Result	--	--	--	68.00%	78.00%	--	--			
	Status	--	--	--	--	Y	--	--			
Percent of investigations of miner requests for temporary reinstatement that are completed within 20 days of receipt	Target	--	--	--	Base	50.00%	85.00%	85.00%	Beginning in October 2009 through June 2010, weekly status reports were distributed to the field investigators which provided alerts of cases approaching their scheduled completion due dates.	Failure to distribute status reports during the fourth quarter of FY 2010.	Establish a process to automate, produce and distribute standardized reports on a consistent basis.
	Result	--	--	--	39.00%	86.00%	--	--			
	Status	--	--	--	--	Y	--	--			

Sources: Discrimination Investigations are tracked in a stand-alone database (Privacy Act Systems of Records - DOL/MSHA-10) into which enforcement and Office of Assessments personnel record applicable discrimination investigation information (dates, milestones, outcomes etc). The system is located on a server on MSHA's segment of the DOL network.

Notes:

Program Evaluations and Audits

There were no relevant program evaluations or audits completed in FY 2010.

Strategic Goal 4: Secure health benefits and, for those not working, provide income security

Outcome Goal 4.1—Facilitate return to work for workers experiencing workplace injuries or illnesses who are able to work.

Analysis and Future Plans

OWCP supports the Secretary of Labor's vision of good jobs for everyone through the achievement of Strategic Outcome Goal 4.1 - Facilitate return to work for workers experiencing workplace injuries or illnesses who are able to work.

Return to work is most successful through early identification of work injury or illness, prompt development of case information, and efficient provision of assistance services that will support recovery and return to work. Achievement of this is measured by the Division of Federal Employees' Compensation (DFEC) using two key indicators: disability duration, measured as lost production days, and the percentage of workers successfully returned to employment following injury or illness.

Besides early intervention, DFEC provides assistance to Federal employing agencies to elevate their participation in reemploying injured workers; makes greater use of technology to improve communications and data and information exchanges with employers and claimants; and, through regular monitoring of longer-term disability cases, identifies cases whose medical conditions improve and those individuals who could benefit from vocational rehabilitation and job placement services.

A July 19, 2010 memorandum from President Obama launched the Presidential initiative Protecting Our Workers and Ensuring Reemployment (POWER), replacing the Safety, Health and Return to Employment initiative (SHARE). SHARE concluded in FY 2009 and was successful in reducing both new injury and lost production day rates in the Federal Government. POWER was formally rolled out in September and October 2010 through a memorandum from the Secretary of Labor and at a formal meeting jointly led by OWCP and the Occupational Safety and Health Administration (OSHA) for Federal agency Washington headquarters staff.

POWER expands on SHARE's accomplishments by setting more aggressive targets over four years (FY 2011-14) for non-Postal Executive Branch agencies to continue to reduce injury and illness rates and increase return-to-work outcomes for injured federal employees. OWCP administers four of POWER's performance goals whose baselines were established by DFEC using FY 2009 results. Performance in FY 2010 exceeded the baselines in all four indicators:

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Decrease Government-wide Lost Production Day (LPD) rates – Under POWER, individual Executive Branch agencies are directed to reduce LPD rates (per 100 employees) by 1 percent per year through FY 2014. The Government-wide LPD rate was reduced in FY 2010 to 34.6 days from the FY 2009 result of 35.8 days. Success is due to FECA's early intervention strategies in assisting injured workers to return to work, and employing agencies' continuing dedication to reemploying their workers, emphasized under POWER's antecedents – Federal Worker 2000 and SHARE.

Increase the share of Federal employees with work-related injuries or illnesses that are reemployed by (non-Postal) Federal agencies within two years of coming under FECA's Disability Management program – POWER's four-year target is to increase the overall share of cases that are returned to work by the 14 largest Executive Branch agencies to 92 percent within two years of the cases' start of management by DFEC. Results for those agencies increased the share from 85.8 percent in FY 2009 to 89.7 percent in FY 2010. FY 2010 results also reflect the continuing success of FECA early intervention strategies in assisting injured workers to return to work, and employing agencies' continuing dedication to reemploying their workers.

The ability of DFEC to promptly initiate supportive actions is improved if Federal employers are timely in their submission of injury reports and wage-loss claims. For this reason, POWER includes two additional goals. The first of these is to increase nationwide timeliness of Notices of Injury by FY 2014 to 85 percent filed within 14 days. The FY 2009 result was 80.1 percent filed within 14 days. In FY 2010, 81.7 percent were timely filed. Agencies continue their attention to timely delivery. Fourteen agencies are using Electronic Data Interchange (EDI) systems to report injuries electronically. Most of these agencies made immediate significant gains in timeliness subsequent to adoption of EDI. To expand the electronic filing capability to all agencies, DFEC is developing a web-based capability (ECOMP) that will enable employing agencies to transmit Notice of Injury forms electronically and cut the time of delivery. E-filing will be required by FECA regulations starting January 1, 2013. The second goal through FY 2014 is to increase the nationwide timeliness for Wage Loss Claim filing to 70 percent filed within 7 days. The FY 2010 result was 62.2 percent filed within 7 days. The ECOMP electronic filing capability will also enable employing agencies to transmit Claims forms electronically.

In the context of Federal employment, ODEP will partner with OWCP to identify effective practices, develop materials and conduct outreach tailored to successfully returning FECA claimants, particularly those deemed hardest to re-employ, to work. Working with OWCP, OPM, and other Federal partners, ODEP will provide technical assistance to support government-wide adoption and implementation of effective and innovative return-to-work strategies, including but not limited to job accommodations and centralized accommodations funding, job restructuring and customization, telework, and technology.

Strategic Goal 4

OWCP - Assist in the recovery and re-employment of injured workers

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Government-wide LPD rate in non-Postal government agencies	Target	60.00	49.00	48.50	42.00	35.40	35.40	35.10	Successful early case intervention and employers' dedication to assisting and reemploying their injured workers.	Certain Federal agencies' missions tend to make work more hazardous and reemployment opportunities less readily available; organizational characteristics also restrict return to work opportunities.	Support POWER LPD goals by assisting agencies to analyze their circumstances and seek ways to further reduce LPD.
	Result	52.20	46.30	41.30	35.80	34.60	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Percent of injured federal workers coming under FECA Disability Management that are reemployed by (non-Postal) federal agencies	Target	--	--	--	--	86.90%	86.70%	88.40%	Early intervention and nurse return to work assistance and Federal employers' dedication to reemploying their injured workers.	Certain Federal agencies' missions tend to make work more hazardous and reemployment opportunities less readily available; organizational characteristics also restrict return to work opportunities.	Provide agencies with more precise case tracking reports; identify and mitigate obstacles preventing reemployment; and test new strategies for increasing return to work rates.
	Result	--	--	--	--	89.70%	--	--			
	Status	--	--	--	--	Y	--	--			

Sources: Integrated Federal Employees' Compensation System (iFECS), individual Federal agencies' payroll systems, and Office of Personnel Management Employment and Trends reports

Notes:

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

"Special Report Relating to the Federal Employees' Compensation Act Special Benefit Fund," October 2009 (Office of Inspector General)	
Relevance: The Office of Inspector General (OIG) contracted with an independent certified public accounting firm to prepare the report on the Fund as of and for the year ended September 30, 2009.	
Findings and Recommendations: Management should ensure that the Division of Federal Employees' Compensation (DFEC) Branch of Accounting and Fiscal Services (BAFS) supervisors follow the established guidance and perform a more detailed review of the schedules. BAFS should establish policies and procedures to prepare and review the Schedule quarterly instead of just at fiscal year end.	Next Steps: Management agreed to formalize written policies and procedures for preparation and review of the schedules, and stated this action would be completed during the second quarter of FY 2011. Management also stated that quarterly trial schedules will be prepared for each of the first three quarters of FY 2011 once the procedures are formally established.
Additional Information: The report is available at http://www.oig.dol.gov/public/reports/oa/2010/22-10-001-04-431.pdf	

Strategic Goal 4

“Management Advisory Comments Identified in an Audit of the Consolidated Financial Statements for the Year Ended September 30, 2009,” March 2010 (Office of Inspector General)

Relevance: The OIG conducted this audit to express an opinion on the fair presentation of DOL’s consolidated financial statements. Additionally, other objectives included expressing an opinion on DOL’s compliance with requirements of section 803(a) of the *Federal Financial Management Improvement Act (FFMIA) of 1996* (Public Law 104-278), based on an examination.

Findings and Recommendations:

- Reinforce policies and procedures to maintain proper supporting documentation for all accounting transactions and balances.
- Implement procedures to ensure that the review of all Accountability Review reports is completed in accordance with the Manual.
- Continue to stress the importance of claim examiner compliance with the Manual related to timely claim file review, follow-up on obtaining the information supporting claimants’ continuing eligibility (medical evidence and forms CA-1032 or CA-12), and updates to the claimants’ pay rate based on the information provided in the form CA-1032.
- Revise existing policies and procedures to require management to develop and implement a methodology for estimating the FECA year-end accrual and allowance for doubtful accounts receivable that is supported by a documented analysis of historical trends. This analysis should be updated annually to take into consideration actual results and changes in the industry.

Next Steps:

- OWCP issued guidance to reinforce the policies and procedures for the documentation of the validity of UDOs.
- Changes to the procedures in the Manual regarding OWCP Accountability Reviews were released July 26, 2010.
- Training materials related to Periodic Entitlement Review were made available to all DFEC staff in October 2009.
- Analysis of these processes undertaken at the end of the last audit cycle tended to support the current methodology, as the preliminary figures closely matched the current estimates. However, OWCP will more formally document these estimates and provide a detailed methodology.

Additional Information: The report is available at <http://www.oig.dol.gov/public/reports/oa/2010/22-10-006-13-001.pdf>

Outcome Goal 4.2—Ensure income support when work is impossible or unavailable.

Analysis and Future Plans

Office of Workers' Compensation Programs

OWCP effectively supports Strategic Outcome Goal 4.2 by promptly and accurately processing claims to determine entitlement and establish liability for payment, and timely delivering benefits, thereby shortening the duration of income interruptions.

Increase the timeliness of First Reports of Injury and First Payment of Compensation – The Division of Longshore and Harbor Workers' Compensation met its FY 2010 targets for each of two performance indicators which measure the timeliness of Defense Base Act (DBA) case actions by employers and insurance carriers. Injury report timeliness in FY 2010 for DBA cases was 75 percent within 30 days against a goal of 63 percent within 30 days. First payment timeliness in FY 2010 for DBA cases was 56 percent within 30 days against a goal of 50 percent within 30 days.

Growing numbers of DBA cases present significant challenges for the Longshore program. Between FY 2002 and FY 2010, DBA injury and death cases received by the Longshore program have increased from 347 to 14,844. Because of overseas' communications, geographic, and other limitations, DBA claims typically entail lengthy and more resource-intensive development time on the part of employer/carriers. Performance goals focus on the role of employers/carriers' in achieving results. The Longshore program will continue to work with upper management of large employers and carriers to improve timeliness. On individual cases, the program will work with insurance claims adjusters to make timely claim investigation and claim decisions, leading to faster payment of benefits. In FY 2011, the Longshore program will add two new indicators to measure first injury reporting and first payment timeliness for all other Longshore cases.

Black Lung Claims Decision Timeliness – The Black Lung Program did not meet its goal of reducing the average time to render a Preliminary Decision and Order. Against a target of 200 days, results were 210 days. Performance was affected by an increase in claims by 62 percent over FY 2009 in response to the extended eligibility provided by amendments in the Patient Protection and Affordable Care Act (PPACA) of 2010. Based on historical data from a previous change in regulations (FY 2001), when claim filings increased in the first year, the program expects the surge to continue and then taper off over the next three years. To reflect the additional work time related to the amendments, the Black Lung program has adjusted the performance target upward to 250 days in FY 2011 and expects to reduce average time to 240 days in FY 2012.

Timely Adjudication in EEOICPA Claims – The Division of Energy Employees Occupational Illness Compensation (DEEOIC) continues to provide timely claims adjudication and benefit delivery. In FY 2010, the Energy program reached its initial processing performance targets for average days under Part B with a result of 97 days against a target of 120 days, and for Part E with an average of 125 days against a target of 160 days. The goal for Final Decisions was achieved with a result of 95.7 percent against a target of 89 percent. In FY 2011, DEEOIC will establish a

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baseline for FY 2012 goals to measure the overall time to make claims decisions, from intake to final decisions. The new indicators will combine Part B and Part E results and more precisely account for various contingent claims actions involved in the claims process, including performing dose reconstructions or conducting legal hearings, and thereby provide a more transparent picture of the adjudication process.

OWCP - Reduce the consequences of work-related injuries

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Average number of days to process Black Lung claims	Target	315	247	220	218	200	250	240	Claim filings increased by 62% over FY 2009 due to extended claimant eligibility provided by provisions in the PPACA.	The program did not meet its goal of reducing the average time to render a Preliminary Decision and Order due to increased workload caused by enactment of the PPACA.	The program's focus will be to process the increased number of claims received so that claimants continue to receive decisions and beneficiaries receive their income support in a timely manner.
	Result	251	224	205	201	210	--	--			
	Status	Y	Y	Y	Y	N	--	--			
Percent of Employer's First Report of Injury filed within 30 days for Defense Base Act (DBA) cases	Target	--	--	--	--	65%	75%	85%	Efforts by the Longshore program to change employer/carrier performance. Poorer performing employers were contacted to resolve problems. Longshore's electronic reporting facilitates data sharing.		Staff continue to work with industry upper management and claims adjusters to decrease time for claims investigations and claims decisions
	Result	--	--	--	55%	75%	--	--			
	Status	--	--	--	--	Y	--	--			
Percent of Employer's First Report of Injury filed within 30 days for non-DBA cases	Target	--	--	--	--	Base	78%	85%			New performance measure. This measure will improve timeliness of claims processing for non-DBA cases within 30 days.
	Result	--	--	--	--	72%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of First Payment of Compensation issued within 30 days for DBA cases	Target	--	--	--	--	50%	58%	65%	Efforts by the Longshore program to change employer/carrier performance. Poorer performing employers were contacted to resolve problems. Longshore's electronic reporting facilitates data sharing.		Staff continue to work with industry upper management and claims adjusters to decrease time for claims investigations and claims decisions
	Result	--	--	--	43%	56%	--	--			
	Status	--	--	--	--	Y	--	--			
Percent of First Payment of Compensation issued within 30 days for non-DBA cases	Target	--	--	--	--	Base	83%	85%			
	Result	--	--	--	--	81%	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Black Lung Automated Support Package, Longshore Case Management System

Notes:

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EEOICPA - Reduce the consequences of work-related injuries

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Average days between filing date and final decision for cases not sent to NIOSH when a hearing is not held	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Average days between filing date and final decision for cases not sent to NIOSH when a hearing is held	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Average days between filing date and final decision for cases sent to NIOSH when a hearing is not held	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Average days between filing date and final decision for cases sent to NIOSH when a hearing is held	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Energy Case Management System

Notes:

Analysis and Future Plans

Employment and Training Administration

The FY 2010 performance targets were not achieved.

First Payment Timeliness – Making timely payments to unemployed workers is critical to fulfilling the UI system's key statutory objective of making full payment of unemployment compensation "when due." The FY 2010 target of 85.9 percent was not attained; 82.2 percent of first payments were made within 14/21 days, down from the FY 2009 level of 82.9 percent. First payment timeliness declined in 31 states. The 32 states performing below the 87 percent minimum acceptable level of performance in the UI performance management system (UI Performs) have submitted corrective action plans that outline the actions they will take to improve their performance as part of their FY 2011 State Quality Service Plan.

Detection of Overpayments – Establish for recovery at least 52.8 percent of the amount of estimated overpayments that states can detect and recover. Ensuring that benefits are paid only to those who meet eligibility requirements and that erroneous payments are detected and recovered is critical to the integrity of any benefit payment program.

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States detected and established for recovery 49.5 percent of the estimated overpayments, which was below the FY 2010 target of 52.8 percent. Recoverable overpayments estimated by the Benefit Accuracy Measurement (BAM) survey increased from \$2.8 billion in FY 2009 to \$4.0 billion in FY 2010 as benefits paid increased 50 percent, from \$50 billion to \$76 billion. Although States increased overpayment detections by 31 percent, from \$1.5 billion to almost \$2.0 billion, they could not keep pace with the increase in overpayments. Thirty-two states' detection of overpayments ratios fell from FY 2009 to FY 2010 as a result.

Establish Tax Accounts Promptly – 90.0 percent of the UI tax liability determinations for new employers will be made within 90 days of the end of the quarter in which employers become liable. Promptly enrolling new employers in the UI program is key to fulfilling major program objectives of supporting the timely payment of taxes – which fund UI benefits – and making timely and accurate eligibility determinations based on employer-reported wages.

In FY 2010, 86.4 percent of new status determinations were made within the specified 90-day period. Although this is considerably short of the 90 percent target, it represents a 2.3 percentage point improvement from the year before. Statistical studies have indicated that new status timeliness is broadly countercyclical with a significant upward trend since 1997. As economic activity falls, status timeliness tends to rise because the status determinations workload falls. However, the broad historical relationship was broken temporarily by the recent recession, as it appears that many states reassigned staff from tax to UI claims functions in response to the sharply increased claims workloads. This caused status determinations timeliness to decline between FY 2008 and FY 2009 despite a fall in status determinations workloads. Staff diversion seems to have moderated between FY 2009 and FY 2010 as status performance improved. Reflecting the 2007-2009 recession's impact, the FY 2012 target has been set at 86.9 percent.

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ETA - Facilitate timely and accurate payments to unemployed workers

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of all intrastate first payments that will be made within 21 days.	Target	89.90%	90.00%	88.40%	85.70%	85.90%	84.00%	85.70%	As of September 2010, 22 states exceeded the UI Performs Acceptable Level of Performance standard of 87 percent.	The persistent high workload levels continued to overwhelm the capacity of most state agencies to meet the timeliness target.	States failing to achieve the Acceptable Level of Performance standard must develop a Corrective Action Plan.
	Result	87.60%	88.20%	86.80%	82.90%	82.20%	--	--			
	Status	N	I	N	N	N	--	--			
Percent of the amount of estimated overpayments that states detect established for recovery.	Target	59.50%	60.00%	56.00%	51.80%	52.80%	51.40%	52.30%	State Benefit Payment Control (BPC) operations significantly increased overpayment detections by 31 percent, from \$1.5 billion to almost \$2.0 billion.	Recoverable overpayments established by the Benefit Accuracy Measurement (BAM) survey increased from \$2.8 billion to \$4 billion in FY09-10 as benefits paid increased from \$50 billion to \$76 billion.	States failing to achieve the 50 percent UI Performs Acceptable Level of Performance standard must develop a Corrective Action Plan as part of the State Quality Service Plan.
	Result	62.10%	54.80%	56.20%	52.90%	49.50%	--	--			
	Status	Y	N	Y	Y	N	--	--			
Percent of determinations about UI tax liability of new employers made within 90 days of the end of the first quarter they became liable	Target	82.50%	82.80%	84.90%	88.70%	90.00%	86.40%	86.90%	FY 2010 performance of 86.4 percent of new status determinations made within 90 days represented a 2.3 percentage point improvement from the year before; 44 states improved their performance.	States' continued diversions of tax staff to perform UI claims activities in response to the large increase in workloads prevented states from meeting the performance target.	States failing to achieve the 50 percent UI Performs Acceptable Level of Performance standard must develop a Corrective Action Plan as part of the State Quality Service Plan.
	Result	83.70%	85.60%	84.90%	84.10%	86.40%	--	--			
	Status	Y	Y	Y	N	I	--	--			

Sources: Payment Timeliness: ETA 9050 and 9050p reports; Detect Overpayments: Benefit Accuracy Measurement (BAM) program and ETA 227 report.; Tax liability determinations: ETA 581 report.

Notes:

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

OWCP – “Longshore and Harbor Workers’ Compensation Act Special Fund Financial Statements and Independent Auditors’ Report,” March 2010 (Office of Inspector General)	
Relevance: The Office of Inspector General (OIG) audited the financial statements of the Longshore and Harbor Workers’ Compensation Act Special Fund as of September 30, 2009, and for the year then ended.	
Findings and Recommendations: OIG concluded that the Fund’s financial statements as of and for the years ended September 30, 2009 and 2008, are presented fairly, in all material respects, in conformity with U.S. generally accepted accounting principles.	Next Steps: No recommendations made to OWCP.

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• The OIG noted no matters involving the internal control and its operation that is considered to be a material weakness as defined in this report. • The results of the tests of compliance with certain provisions of laws and regulations disclosed no instances of noncompliance or other matters that are required to be reported.	
Additional Information: The report is available at http://www.oig.dol.gov/public/reports/oa/2010/22-10-004-04-432.pdf	
OWCP – “District of Columbia Workmen’s Compensation Act Special Fund Financial Statements and Independent Auditors’ Report,” March 2010 (OIG)	
Relevance: The OIG audited the financial statements of the District of Columbia Workmen’s Compensation Act Special Fund as of September 30, 2009, and for the year then ended.	
Findings and Recommendations: • OIG concluded that the Fund’s financial statements as of and for the years ended September 30, 2008 and 2007, are presented fairly, in all material respects, in conformity with U.S. generally accepted accounting principles. • The OIG noted no matters involving the internal control and its operation that is considered to be a material weakness as defined in this report. • The results of the tests of compliance with certain provisions of laws and regulations disclosed no instances of noncompliance or other matters that are required to be reported.	Next Steps: • No recommendations made to OWCP.
Additional Information: The report is available at http://www.oig.dol.gov/public/reports/oa/2010/22-10-005-04-432.pdf	
OWCP – “Contingency Contracting – DOD, State, and USAID Continue to Face Challenges in Tracking Contractor Personnel and Contracts in Iraq and Afghanistan,” October 2009 (Government Accountability Office)	
Relevance: The Government Accountability Office (GAO) analyzed Department of Defense (DOD, State, and US Agency for International Development (USAID) data for Iraq and Afghanistan for FY 2008 and the first half of FY 2009 on the (1) status of agency efforts to track information on contracts and contractor personnel; (2) number of contractor personnel; (3) number of killed and wounded contractors; and (4) number and value of contracts and extent to which they were awarded competitively.	
Findings and Recommendations: • DOD, State, and USAID should ensure that the agencies’ criteria for entering contracts and contractor personnel into the Synchronized Predeployment and Operational Tracker (SPOT) system are consistent with the National Defense Authorization Act for FY 2008 and with the agencies’ respective information needs for overseeing contracts and contract personnel. The SPOT system tracks information on contracts and contractor personnel in Iraq and Afghanistan. • DOD, State, and USAID should establish uniform requirements on how contract numbers are to be entered into SPOT so that contract information can accurately be pulled from the Federal Procurement Data System-Next Generation (FPDS-NG) as agreed to in the memorandum of understanding. • DOD, State, and USAID should revise SPOT’s reporting capabilities to ensure that they fulfill statutory requirements and agency information needs, such as those	Next Steps: • No recommendations made to OWCP.

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related to contractor personnel killed or wounded.	
Additional Information: The report is available at http://www.gao.gov/new.items/d101.pdf	
OWCP – “Black Lung Benefits Program – Administrative and Structural Changes Could Improve Miners’ Ability to Pursue Claims,” October 2009 (GAO)	
Relevance: GAO reviewed the Black Lung Program on (1) how long it takes to process and resolve black lung benefits claims; (2) at what rate and for what reasons black lung claims and appeals are denied by DOL; and (3) what barriers, if any, confront miners or their survivors in pursuing their claims.	
Findings and Recommendations: • Take steps to reduce the number of black lung cases remanded from the Benefits Review Board (BRB) to the Office of Administrative Law Judges (OALJ) by convening a group to determine the causes of these remands and develop solutions for reducing their incidence. • Obtain summary information on how long it takes to resolve claims using its current automated system to routinely track cases through the entire adjudication process and develop associated performance measures. • Consider shortening the time required to schedule hearings for black lung cases by examining the feasibility of using video teleconferencing technology to streamline the schedule of hearings in remote areas. • Based on feedback from relevant black lung medical stakeholders, including approved diagnostic providers and Black Lung Clinics, develop options for improving how doctors’ opinions are documented on DOL’s medical evaluation form. • Evaluate and report on claimant access to legal and lay representation by implementing changes to the data management systems of OWCP, OALJ, and BRB that will permit accurate data about claimant representation throughout the claims and appeals process. • Evaluate and address blood gas testing practices that may contribute to inaccurate disability test readings by implementing a feedback mechanism to record and track complaints from federal black lung claims stakeholders about testing practices. • Examine the following issues and evaluate the potential for proposing structural changes to the program to Congress.	Next Steps: • The Department believes that an internal DOL group properly selected may be able to offer suggestions to the OALJ and BRB that would reduce remands, and will establish such a group. • OWCP’s Automated Support Package currently tracks the receipt of claims and their movement through the stages of development and adjudication. However, OWCP will carefully consider methods of expanding its claim tracking system to maintain information and report on claims after they leave OWCP jurisdiction. • This recommendation was addressed to the OALJ. • OWCP recognizes that the medical evaluation form used by the examining physician may lead to an incomplete justification of the physician’s opinions, so we are beginning the process of analyzing reports, particularly those on this form. OWCP will consider feedback from stakeholders, primarily physicians, in seeking to improve this medical documentation. • OWCP has instituted changes that enable it to track claims with either attorney or lay representation. OWCP can determine the starting and ending dates of representation, and whether the representation is an attorney or non-attorney. • OWCP has expanded its Microsoft Access database to include reports on problems with physicians encountered by either the District Office or a party who then makes a report to the District Office. • After review, the suggestions proposed by GAO to structurally change the program would not be justified for a number of reasons.
Additional Information: The report is available at http://www.gao.gov/new.items/d107.pdf	
OWCP – “Energy Employees Compensation – Additional Independent Oversight and Transparency Would Improve Program’s Credibility,” March 2010 (GAO)	
Relevance: GAO examined (1) claim-processing time; (2) costs of administering the program; (3) extent to which there are quality controls to ensure that claim determinations are supported with objective and scientific information; and (4) actions taken by agencies to promote program transparency for claimants.	
Findings and Recommendations: • Strengthen the quality control measures in place for Part B lung disease claims and Part E processes with independent reviews. Such measures should include, for example, instituting periodic peer reviews of sampled reports by Part E consulting	Next Steps: • The Division of Energy Employees Occupational Illness Compensation (DEEOIC) plans to engage an appropriate external scientific entity to conduct a careful and objective study of our Site Exposure Matrices and provide recommendations for

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exposure matrix, and obtaining periodic expert review of medical evidentiary requirements for the Part B claims related to lung diseases. - Establish a formal agreement and action plan with the Secretary of Energy to release more information, where appropriate, in the site exposure matrix database in order to allow greater public access and input. In doing so, Labor should actively seek additional information from worker representatives and site experts about job descriptions, processes, and potential exposure. - Develop formal action plans, within Labor's scope of authority, in response to the Labor Ombudsman's reports regarding major claimant concerns and make the plans and updates on their subsequent status publicly available. One such plan should offer Labor's response to the Ombudsman's reports about consistent problems with customer service.	strengthening it. - In January 2011, the Department of Energy (DOE) authorized the release of more detailed information for the final six DOE sites to go along with the previous release in April 2010 of 48 DOE sites and all uranium mining and milling facilities. DEEOIC released this information publicly on January 11, 2011. - OWCP now formally responds to the annual reports of the DOL Ombudsman. In addition, the program conducted a survey to assess overall claimant satisfaction with the DEEOIC claims process. This survey was mailed to 5,000 claimants.
Additional Information: The report is available at http://www.gao.gov/new.items/d10302.pdf	
OWCP – “Customer Satisfaction with the Energy Employees Occupational Illness Compensation Program,” June 2010 (Synovate)	
Relevance: The Energy Employees Occupational Illness Compensation Program contracted with Synovate to measure the perceptions of applicants about the service they received from the program.	
Findings and Recommendations: - Almost three in four (74 percent) DEEOIC applicants who have completed the claims process would recommend the program to a friend. - Receiving benefits is the biggest factor behind willingness to recommend – 97 percent of people who were awarded benefits would recommend the program, while 61 percent of those denied benefits would recommend the program. - A majority of applicants are satisfied with the service they received from their Resource Centers, District Offices, and Final Adjudication Branches.	Next Steps: Based on the survey results, DEEOIC intends to update program brochures, provide customer service and sensitivity training for all district offices/Final Adjudication Branches, update wage loss and impairment handouts, create a fact sheet for the hearing process/rights to object to include with Recommended Decisions to deny, add an analysis section to Recommended Decisions, and provide Medical Bill training by September 30, 2011.
Additional Information: To request a copy of the report, contact U.S. Department of Labor, DEEOIC, 200 Constitution Avenue, N.W., Room C-3321, Washington, DC 20210, telephone (202) 693-0081.	
ETA – “Review of Report on Improper Payments in the Unemployment Insurance Program,” September 2010 (OIG)	
Relevance: The OIG reviewed and made recommendations on the report submitted by the Department's program accountable official for Unemployment Insurance, as required by Executive Order (EO) 13520, 'Reducing Improper Payments.'	
Findings and Recommendations: The Inspector General recommended that: - The UI Program Accountable Official modify the plan (to reduce improper UI payments) to include: - Specific details regarding rate reduction by utilizing corrective actions with clear milestones illustrating the impact the rate	Next Steps: As recommended by the OIG report, the FY 2011 plan will outline specific strategies focused at reducing improper payments. - ETA's strategies for reducing overpayments will focus on the areas where states have the most control to reduce improper payments and where there is the potential for the greatest impact. ETA has engaged with the National Association of State Workforce Agencies to form a state-federal workgroup to implement a national action agenda for reducing overpayments. Areas the workgroup will focus include: - Reducing overpayments caused by UI claimants who return to work and continue to claim 5 weeks or more of UI

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reduction will have on improper payments. - Targeted reduction strategies to include specific guidelines that encourage collaborative efforts between the Department and the states to ensure reductions of improper payments are achieved. - Financial impacts and cost benefit analyses that show corrective actions will bring about a rate of return on investment. - Specific targeted reduction strategies and ways to ensure state participation and compliance with initiatives to meet or exceed reduction targets. 2. The UI Program Accountable Official consider the use of a more accurate presentation of the reduction plan's progress in reducing improper payments. For example, consider using other reports that provide real-time data, as well as a more accurate count of the entire improper payments universe than the current methodology.	benefits. These claimants are responsible for nearly half of all benefit year earnings overpayments, which account for nearly 30% of all UI overpayments (the single largest cause.) - Technical assistance to states to support state specific root cause analysis and development of state specific action plans. - Aggressive outreach and funding to states as available to accelerate state and employer participation in the State Information Data Exchange System (SIDES) to automate and standardize the collection of employee separation information from employers and third party administrators to improve accuracy of claimant eligibility determinations. Currently, these overpayments are the second leading cause of overpayments, accounting for nearly 20 percent of the total. - Performing formal cost benefit analysis is time consuming and expensive and has the potential to delay action. In addition, it is challenging due to the complexity of the UI program. ETA believes the better investment of our scarce resources is to actively collaborate with states to identify those strategies that have the potential to have the greatest impact in the reduction of improper payments. - As discussed above, ETA is committed to working with state partners to encourage their participation in and cooperation with initiatives to reduce improper payments. Additionally, ETA will explore new performance measures to provide incentives to states to reduce improper payment rates. ETA will also make supplemental budget resources available to the states to support state integrity initiatives, contingent on appropriations. - ETA will supplement the BAM survey by modifying the Overpayment Detection and Recovery Activities report (ETA 227) to obtain a more accurate count of the number of UI claimants in the population who have received high dollar overpayments as defined by OMB. These overpayments are reported quarterly to the IG, as required by Executive Order 13520. Because requests to modify data collection systems must be submitted for approval to OMB under the PRA, these data will not be available until the first quarter of calendar year 2012 at the earliest. - As part of the FY 2012 Budget Passback, ETA has developed a methodology paper for the OMB to request that the Department's primary overpayment rate for the Improper Payments Information Act (IPIA) should be the Operational rate (fraud and nonfraud recoverable overpayments that state agencies can detect through cost-effective methods), rather than the Annual Report rate, which includes all overpayments.
Additional Information: The report is available at http://www.oig.dol.gov/public/reports/oa/2010/22-10-020-03-315.pdf.	
ETA – “Recovery Act: More Than \$1.3 Billion In Unemployment Insurance Modernization Incentive Payments Are Unlikely To Be Claimed By States,” September 2010 (OIG)	
Relevance: The OIG conducted an audit to determine the status of the \$7 billion of incentive payments, which states had to apply for in order to receive their share; as well as the status of the \$500 million in administrative grants, which the states automatically received.	
Findings and Recommendations: To better ensure more than \$1 billion of Recovery Act funds are put to best use, the Inspector General recommended the Assistant Secretary for Employment and Training (1) keep Congress informed on the status of unused funds, and as appropriate, make recommendations to the Secretary to work with	Next Steps: - To keep Congress informed on the status of unused funds, ETA has posted on its Web site, at http://www.dol.gov/recovery/map/map-ui-modernization.htm, a map of all states and their status with respect to receiving funding for UI modernization. - ETA supports the recommendation that unused funds become unrestricted in the FUA as provided for in the American Recovery and Reinvestment Act of 2009 (ARRA). ARRA establishes the date upon which any remaining funds will become unrestricted as “the close of fiscal year 2011.” (See 42 USC 1103(f)(6)). Because states are limited to established legislative sessions within which to change their laws, ETA supports existing law, which provides that the funds remain restricted until the

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Congress to reinstate those funds into the Federal Unemployment Account (FUA), and(2) request detailed spending plans from the states for the \$500 million of administrative funds, and provide assistance, as appropriate, to help ensure these funds are spent as intended.

- close of the fiscal year, and believes such funds should not become unrestricted until October 1, 2011.
- The federal/state partnership that is the foundation of the UI program gives states significant flexibility with regard to administration of the program; it is not normal practice for the Department to require states to provide detailed spending plans unless specifically required by statute. However, ETA will provide guidance and technical assistance to states on use of the money and that the funds should be spent as quickly as possible.
 - ETA will provide guidance to states clarifying Congressional intent that states expend funds from the \$500 million distribution during the recession and recovery to expedite delivery of services, reduce improper payments, and improve tax operations. ETA will work through its regional offices to provide the technical assistance and guidance addressed above. In addition, ETA will explore modification of oversight documents to incorporate review of state actions relating to the expenditure of the \$500 million special administrative transfer in an upcoming modification of the core monitoring guide.
 - ETA will also continue to monitor expenditures of these funds. ETA obtains from the Bureau of Public Debt, on a near-daily basis, reports of each state's current balance of administrative funds.

Additional Information: The report is available at <http://www.oig.dol.gov/public/reports/oa/2010/18-10-012-03-315.pdf>.

Outcome Goal 4.3—Improve health benefits and retirement security for all workers.

Analysis and Future Plans

During FY 2010, EBSA's program was significantly impacted by the ongoing implementation of the COBRA premium assistance program and the increased call volume from the public that it created for our participant assistance program. In addition, early in FY 2010 the Congress passed the Patient Protection and Affordability Care Act (ACA) which significantly impacted both the workload and regulatory priorities of the Agency. Notwithstanding this unprecedented workload, EBSA achieved its performance goals that were established before any of these unanticipated events. With respect to the enforcement program, the agency reached its performance target for the ratio of closed civil cases with corrected fiduciary violations to closed civil cases. With respect to criminal case work, EBSA achieved its target to report cases accepted for prosecution. In previous performance reports, EBSA cautioned that the safe harbor regulation could substantially impact both the civil and criminal enforcement programs. Approximately one-third of the investigations conducted by EBSA focus on this issue of determining the appropriate period within which participant contributions to a small plan need to be deposited to the participant's account in order to be deemed to be in compliance with the law. However, in EBSA's analysis, the safe-harbor to date has not materially reduced EBSA's overall enforcement ratios in FY 2009 or FY 2010. EBSA will continue to monitor the impact of the regulation subsequent to FY 2010 results and adjust performance targets, as necessary.

Despite experiencing unprecedented call volume from the public in FY 2010, the Office of Participant Assistance provided superior participant assistance by responding to 99 percent of all written inquiries within 30 days of receipt and responding to over 99 percent of telephone inquiries by the close of the next business day. Total inquiry volume for the fiscal year exceeded 376,000 including the adjudication of over 15,000 COBRA subsidy denial appeals. More than 99 percent of the appeals were processed within the 15 business day statutory requirement. Benefit recoveries achieved by the participant assistance program contributed more than \$164 million to EBSA's overall monetary results of over \$1 billion.³ This informal resolution of complaints without utilizing the more resource intensive investigative process enables EBSA to direct its investigative assets to more egregious and wide-spread violations of ERISA. An integral part of EBSA's enforcement program, leads referred by Benefits Advisors, resulted in the opening of 1,064 investigations.

The Agency also conducted outreach and education programs designed to educate plan participants and officials regarding their rights and responsibilities under ERISA. Seven compliance webcasts were held reaching 11,000 plan sponsors and service providers. Eight Health Benefits Education Seminars and five Fiduciary Education Seminars were conducted; 479 Rapid Response Workshops were held for dislocated workers; over 600,000 educational publications were distributed and over 7.8 million visitors were hosted on the Agency's website. These activities are a critical component of our efforts to enhance the benefit security of America's workers, retirees and their families. We believe that retirement, health and other benefits will be more secure if plan officials are more knowledgeable and therefore in a better position to be in compliance. As well, better

³ Monetary results are a product of EBSA's investigative, compliance and participant assistance activities.

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informed plan participants are more able to ensure they receive all the benefits to which they are entitled under their plan as well as bring potential violations to the attention of EBSA.

Going forward, in 2011, EBSA, for the first time, will begin conducting investigations that will lead to measuring overall compliance with ERISA and the impact of EBSA investigations on the compliance rate. These broad-based composite measures will provide us information related to compliance in the community beyond those investigations that we conduct. In addition, EBSA will resume its measurement of the level of customer satisfaction with our Participant Assistance Program, an activity it conducted with the assistance of the Gallup Organization from FY 2003 through FY 2006. The evaluation results will allow EBSA to make direct process improvements as necessary.

ODEP will expand *ePolicyWorks Health Care*, an online, collaborative workspace and real-time information-sharing tool that focuses on assisting the disability health care community to more effectively develop national health policy that supports and improves the employment outcomes of people with disabilities. This unique online platform was created by ODEP in FY 2010 in response to the President's Open Government initiative and incorporates many Web 2.0 features such as RSS feeds, an announcements board, a discussion forum, and legislative and issue-specific updates, as well as social networking and online workgroup capabilities. Members of *ePolicyWorks Health Care* include Federal agency staff, national advocacy and provider associations, and employer organizations.

Strategic Goal 4

EBSA - Improve health benefits and retirement security for all workers

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of employee benefit plans in compliance with the civil provisions of ERISA	Target	--	--	--	--	--	--	Base			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Participant assistance program customer satisfaction index	Target	--	--	--	--	--	Base	TBD			
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Ratio of closed civil cases with corrected fiduciary violations to civil cases closed	Target	--	61%	64%	67%	67%	67%	67%	EBSA effectively targeted investigations to achieve corrections of ERISA violations.	Correlation between benefit plan reporting compliance and overall compliance with the law was not demonstrated. Other benefit plan management indices may be more effective indicators of compliance.	EBSA, for the first time, will begin conducting investigations that will lead to measuring overall compliance with ERISA and the impact of EBSA investigations on the compliance rate.
	Result	--	69%	70%	72%	72%	--	--			
	Status	--	Y	Y	Y	Y	--	--			
Ratio of criminal cases accepted for prosecution to cases referred	Target	--	48%	50%	52%	67%	67%	67%	EBSA effectively deployed a new Contributory Plan Criminal Project.	Correlation between benefit plan reporting compliance and overall compliance with the law was not demonstrated. Other benefit plan management indices may be more effective indicators of compliance.	EBSA, for the first time, will begin conducting investigations that will lead to measuring overall compliance with ERISA and the impact of EBSA investigations on the compliance rate.
	Result	--	67%	74%	79%	79%	--	--			
	Status	--	Y	Y	Y	Y	--	--			

Sources: Enforcement Management System

Notes:

Program Assessments, Evaluations and Audits

No relevant program evaluations or audits were completed in FY 2010.

Strategic Goal 5: Produce timely and accurate data on the economic conditions of workers and their families

Outcome Goal 5.1—Improve the timeliness, accuracy, and relevance of information on labor market activity, working conditions, and price changes in the economy.

Analysis and Future Plans

BLS revised its performance framework in 2010. For most performance measures, 2010 is the baseline year. In 2010, BLS reached 100 percent of the underlying timeliness, accuracy and relevance targets for its Labor Force Statistics, Prices and Living Conditions, and Productivity and Technology Principal Federal Economic Indicators. The Office of Compensation and Working Conditions reached 100 percent of the underlying timeliness and accuracy targets, but missed its relevance target for the number of indexes published (quarterly) for the Employment Cost Index (ECI) program by three indexes (or one percent). BLS incorporates seasonal revisions into its estimates once per year, in the 3rd quarter. BLS dropped several series that did not exhibit seasonality. Beginning in 2011, BLS will report only on non-seasonally adjusted indexes in this performance measure.

In addition, BLS measured dissemination through the average number of Internet site user sessions each month, and exceeded its target of 6.1 million in FY 2010 by reaching nearly 7.0 million user sessions. Finally, in FY 2010, BLS expanded its use of the American Customer Satisfaction Index (ACSI) to measure customer satisfaction of its full Web site. BLS achieved a score of 75.

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BLS - Improve the timeliness, accuracy, and relevance of information on labor market activity, working conditions, and price changes in the economy.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of timeliness targets achieved for the Labor Force Statistics Principal Federal Economic Indicators (PFEIs).	Target	--	--	--	--	Base	100%	100%	Prepared detailed documentation and work plans to keep projects on schedule, which helped ensure that targets were met.		Will continue to improve statistical products by evaluating new survey methods, technologies, survey design, and collection approaches.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of accuracy targets achieved for the Labor Force Statistics PFEIs.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of relevance targets achieved for the Labor Force Statistics PFEIs.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of timeliness targets achieved for the Prices and Living Conditions PFEIs.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of accuracy targets achieved for the Prices and Living Conditions PFEIs.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			

Strategic Goal 5

BLS - Improve the timeliness, accuracy, and relevance of information on labor market activity, working conditions, and price changes in the economy.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of relevance targets achieved for the Prices and Living Conditions PFEIs.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of timeliness targets achieved for the Compensation and Working Conditions PFEI.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of accuracy targets achieved for the Compensation and Working Conditions PFEI.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of relevance targets achieved for the Compensation and Working Conditions PFEI.	Target	--	--	--	--	Base	100%	100%		Missed number of indexes published target for the Employment Cost Index program by 3 indexes. Dropped several series that did not exhibit seasonality.	Beginning in FY 2011, will report only on non-seasonally adjusted indexes for Employment Cost Index measure.
	Result	--	--	--	--	0%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of timeliness targets achieved for the Productivity and Technology PFEI.	Target	--	--	--	--	Base	100%	100%	Prepared detailed documentation and work plans to keep projects on schedule, which helped ensure that targets were met.		Will continue to improve statistical products by evaluating new survey methods, technologies, survey design, and collection approaches.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			

Strategic Goal 5

BLS - Improve the timeliness, accuracy, and relevance of information on labor market activity, working conditions, and price changes in the economy.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2006	FY/PY 2007	FY/PY 2008	FY/PY 2009	FY/PY 2010	FY/PY 2011	FY/PY 2012	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of accuracy targets achieved for the Productivity and Technology PFEL.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Percent of relevance targets achieved for the Productivity and Technology PFEL.	Target	--	--	--	--	Base	100%	100%	See above.		See above.
	Result	--	--	--	--	100%	--	--			
	Status	--	--	--	--	--	--	--			
Average number of Internet site user sessions each month (Dissemination).	Target	2,900,000	3,700,000	4,300,000	5,100,000	6,100,000	6,900,000	6,900,000	Made products and services on website more accessible and usable. Expanded capabilities for users seeking specific data sets from large series.		Will increase customer awareness of existing data, and will use feedback to determine how the data or dissemination methods could be improved.
	Result	3,658,814	4,223,523	5,032,111	6,090,587	6,972,577	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Customer satisfaction with BLS products and services as measured by the American Customer Satisfaction Index (Mission Achievement).	Target	--	--	--	--	Base	75	75	Reviewed survey feedback, which included more detailed information on functionality, search, navigation, and other areas of site performance.		Will improve the usefulness of products, provide easier access to time series data, and modernize systems and processes used to load data on website.
	Result	--	--	--	--	75	--	--			
	Status	--	--	--	--	--	--	--			

Sources: For most performance measures, internal BLS documents. For the Mission Achievement indicator, the American Customer Satisfaction Index 2010 E-Gov Scores Q3: http://www.theacsi.org/images/stories/images/govsatscores/10Q3_egovscores.xls.

Notes: BLS revised its performance framework in 2010. For most performance measures, 2010 is the baseline year.

Program Evaluations and Audits

Independent evaluations and audits completed in FY 2010 are summarized below.

“Customer Satisfaction with the BLS Website,” September 2010 (Federal Consulting Group)	
Relevance: In 2010, BLS expanded its use of the American Customer Satisfaction Index (ACSI) to measure customer satisfaction on its full Web site. BLS reaches most of its data users through its Web site, averaging nearly 7 million user sessions each month. The ACSI survey randomly prompts BLS data users while they are on the bls.gov Web site for feedback regarding the extent to which the Web site meets their needs. BLS uses these results to improve its Web site to better serve its stakeholders and as a measure of mission achievement. As BLS continues to provide more information to customers on its Web site, it is important to know how satisfied customers are with the delivery of BLS products and services.	
Findings and Recommendations: The score for the survey running on the BLS full Web site was 75.	Next Steps: - Improve support for Web site users seeking information. - Improve the Web site’s content, understandability, and delivery. - Modernize the hardware and software platform underlying the BLS Web site to

Strategic Goal 5

	improve ability to deploy web content.
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Source: The American Customer Satisfaction Index 2010 E-Gov Third Quarter Scores are available at (http://www.theacsi.org/images/stories/images/govsatscores/10Q3_egovscores.xls)

Measures Not Included in the FY 2011-FY 2016 Strategic Plan

Under GPRA, performance goals, measures and targets are identified for reporting purposes in the Congressional Budget Justification (CBJ) issued during that fiscal year. Therefore, DOL is obliged to report PY 2009 and FY 2010 results for measures listed in its FY 2011 Performance Plan, which was published as part of the CBJ in February 2010 (see <http://www.dol.gov/dol/budget/>). However, the September 2010 update of the Department's Strategic Plan had just begun in earnest when the budget and performance plan were taking final form in December 2009. Changes to the goal structure were minor but many measures were revised, replaced, or removed from the plan. Because this APR is primarily a planning document that uses historical information to inform future strategies and targets, it is organized around goals and measures selected to represent Departmental goals for the budget year.

The table below lists these performance measures, their targets and results for PY 2009/FY 2010. Results are not provided for measures that were new this year, i.e., their target was to collect baseline data. It is organized by the new goal structure, with changes noted to assist cross-reference to the FY 2011 Performance Plan.

Agency – Measure (Program) FY or PY	Target FY 2010 PY 2009	Result FY 2010 PY 2009	Why not included?
Outcome Goal 1.1			
ETA - Average wage of participants at initial placement (Job Corps) PY	\$8.85	\$9.05	The goal has been modified to clarify that the measurement is of Job Corps graduates, not participants.
ETA – Average wage of graduates placed in an occupation or industry related to their training (Job Corps) PY	\$9.45	\$9.59	Listed under Outcome Goal 1.2 in FY 2011 Performance Plan
Outcome Goal 1.2			
ETA – Number of participants receiving certifications (Community-Based Job Training Grants) PY	26,938	23,408	The Community-Based Job Training Grants initiative is not a long-term program, and should not be included in the outcome goal. The initiative is included in the Priority Goal on credential attainment.
ETA – Percent of students who achieve literacy or numeracy gains of one or more Adult Basic Education (ABE) levels (Job Corps) PY	58%	64%	Listed under Outcome Goal 1.3 in FY 2011 Performance Plan
Outcome Goal 1.4			
ETA – Percent of participants employed in the first quarter after exit still employed in the second and third quarters after exit (Employment Service) PY	76.6%	75.3%	The services provided by the Employment Service do not focus on retention; therefore the measure is less appropriate for this program.

Agency – Measure (Program) FY or PY	Target FY 2010 PY 2009	Result FY 2010 PY 2009	Why not included?
ETA – Percent of participants still employed in the second and third quarters after exit (Apprenticeship) FY	81.4%	80.9%	Apprenticeship does not fund employer training or any program follow-up activities to support retention; therefore the measure is less appropriate for the program.
Outcome Goal 1.5			
WHD – Percent of prior violators who achieved and maintained FLSA compliance following a full FLSA investigation	70%		The Department is developing a new methodology to measure the effectiveness of WHD's enforcement efforts.
ETA – H-2A applications with no pending state actions processed within 15 days of receipt and 30 days from the date of need (OFLC) FY	53%	58%	This goal is included in the annual budget submission and is included in the FY 2011 Operating Plan.
Outcome Goal 3.1			
OFCCP – Number of cases of Executive Order discrimination resolved FY	80		ODEP has other outcome measures that will be reported in the Department's Performance Plan under Goals 1.2 and 3.1 as targets are established. ODEP's budget will continue to contain targets and results for these three output measures, which support Goals 1.2, 1.3, 1.4, 1.6, 3.1, 3.2, 4.1, and 4.3.
OFCCP – Number of investigations in individual Vietnam Era Veterans' Readjustment Assistance Act and disability discrimination cases FY	10		
ODEP – Policy Outputs FY	32		
ODEP – Formal Agreements FY	22		
ODEP – Effective Practices FY	23		
Outcome Goal 4.1			
OWCP – Percent of Federal employees with work-related injuries or illnesses coming under FECA's Quality Case Management and Vocational Rehabilitation Programs (FECA) FY	81.4%	89.7%	Measurement redefined in 2010; baseline consists of FY 2009 actuals.
OWCP – Meet Communications Goals: Increase automation for the receipt of claims from Federal agencies; reduce caller hold times; respond to calls timely; and respond to more calls on the same day. (FECA) FY	3 of 4	Met 3 of 4	Replaced and not included in the Strategic Plan

Agency – Measure (Program) FY or PY	Target FY 2010 PY 2009	Result FY 2010 PY 2009	Why not included?
OWCP – Percent of Wage-Loss Claims received timely from non-Postal Federal agencies (FECA) FY	60%	62.2%	Listed under Outcome Goal 4.2 in FY 2011 Performance Plan; not included in the Strategic Plan; included under Priority Goals.
Outcome Goal 4.2			
OWCP – Average number of days to process Energy Program Part B initial claims (Energy) FY	120	98	Listed under Outcome Goal 1.4 in FY 2011 Performance Plan; Replaced and not included in the Strategic Plan
OWCP – Average number of days to process Energy Program Part E initial claims (Energy) FY	160	127	Listed under Outcome Goal 1.4 in FY 2011 Performance Plan; Replaced and not included in the Strategic Plan
OWCP – Percent of Final Decisions in Part B and Part E in the Energy Program processed within 180 days for hearing cases and 75 days for all other cases (Energy) FY	89%	97.8%	Listed under Outcome Goal 1.4 in FY 2011 Performance Plan: Replaced and not included in the Strategic Plan
Outcome Goal 4.3			
PBGC – Customer Satisfaction score for premium filers FY	71	71	PBGC reports on this measure in PBGC's Annual Performance Report, available at http://www.pbgc.gov/Documents/2010_annual_report.pdf
PBGC – Customer Satisfaction score for responding to trustee plan participant callers FY	80	79	See above
PBGC – Customer Satisfaction score for retirees receiving benefits from PBGC FY	85	87	See above